SENIOR NOTES INDENTURE (EXCERPT)

RECITALS

This Indenture is dated as of 2023-06-15, among the Issuer and the Trustee named herein, governing the Issuer's 7.750% Senior Notes due 2031-06-15 (the "Notes") in the aggregate outstanding principal amount of 175,000,000.00.

ARTICLE I. DEFINITIONS

The terms defined below apply throughout this Indenture unless the context otherwise requires. Terms used but not otherwise defined that are defined in the Trust Indenture Act have the meanings so assigned to them. Where a term below cross-references another Article of this Indenture rather than restating a mechanic, that Article's own text controls and this Article's cross-reference is not itself an independent statement of the mechanic.

Rules of Construction. For purposes of this Indenture, except as otherwise expressly provided or unless the context otherwise requires: (a) an accounting term not otherwise defined has the meaning assigned to it in accordance with GAAP; (b) "or" is not exclusive; (c) words in the singular include the plural, and words in the plural include the singular; (d) "will" shall be interpreted to express a command; (e) provisions apply to successive events and transactions; (f) references to agreements and other instruments include subsequent amendments, restatements, supplements and other modifications thereto, but only to the extent such amendments, restatements, supplements and modifications are not prohibited by the terms of this Indenture; (g) the words "herein," "hereof" and "hereunder" and other words of similar import refer to this Indenture as a whole and not to any particular Article, Section or other subdivision; (h) references to Articles and Sections refer to Articles and Sections of this Indenture unless otherwise indicated; and (i) the term "including" means "including without limitation." All calculations with respect to the covenants contained in this Indenture, unless otherwise provided, shall be made in accordance with GAAP as in effect on the Issue Date; if, after the Issue Date, there occurs a GAAP Change that would affect the calculation of any financial ratio or requirement under this Indenture, the Issuer may elect that such calculation continue to be determined in accordance with GAAP as in effect on the Issue Date, notwithstanding such GAAP Change, by delivering an Officer's Certificate to that effect to the Trustee, in which case such election, once made, shall be irrevocable.

"Acceptable Bank" means any bank or trust company that (a) is organized under the laws of the United States, any state thereof or the District of Columbia, or is a U.S. branch or agency of a bank organized under the laws of any other jurisdiction, and (b) has, or is a Subsidiary of a bank holding company that has, capital, surplus and undivided profits of at least a specified dollar amount.

"Accounting Change Election" means an election made by the Issuer, by Officer's Certificate delivered to the Trustee, to have all subsequent determinations under this Indenture that depend on GAAP made in accordance with GAAP as in effect at the time of such determination, notwithstanding a GAAP Change occurring after the Issue Date; absent such an election, GAAP as in effect on the Issue Date governs every such determination, as stated in the definition of GAAP.

"Accredited Investor" has the meaning assigned to such term in Rule 501(a) under the Securities Act.

"Acquired Indebtedness" means Indebtedness of a Person existing at the time such Person becomes a Restricted

Subsidiary or assumed in connection with the acquisition of assets from such Person, in each case other than Indebtedness incurred in connection with, or in contemplation of, such Person becoming a Restricted Subsidiary or such acquisition.

"Acquisition Agreement" means the agreement, if any, pursuant to which the Sponsor or its Affiliates acquired Capital Stock of the Issuer in the Transactions.

"Additional Assets" means (a) any property or assets (other than Indebtedness and Capital Stock) used or useful in a Permitted Business; (b) the Capital Stock of a Person that becomes a Restricted Subsidiary as a result of the acquisition of such Capital Stock by the Issuer or another Restricted Subsidiary; or (c) Capital Stock constituting a minority interest in any Person that at such time is a Restricted Subsidiary; provided that any such Restricted Subsidiary is primarily engaged in a Permitted Business.

"Additional Interest" means the additional interest accruing on the Notes pursuant to a Registration Default under a registration rights agreement entered into in connection with the original issuance of the Notes, if any; a Registration Default and the escalating rate at which Additional Interest accrues are matters stated in that separate registration rights agreement and are not restated in this Indenture.

"Additional Notes" means additional Notes issued from time to time under this Indenture in accordance with Section 2.10, in addition to the Initial Notes.

"Affiliate" means, with respect to any specified Person, any other Person directly or indirectly controlling or controlled by or under direct or indirect common control with such specified Person. For purposes of this definition, "control" (including, with correlative meanings, the terms "controlling," "controlled by" and "under common control with"), as used with respect to any Person, means the possession, directly or indirectly, of the power to direct or cause the direction of the management or policies of such Person, whether through the ownership of voting securities, by agreement or otherwise; provided that beneficial ownership of 10% or more of the Voting Stock of a Person shall be deemed to be control.

"Affiliate Transaction" has the meaning set forth in Article XVI (Limitation on Transactions with Affiliates), which states the transaction thresholds and approval mechanics in full; this Article I entry does not restate them.

"Agent Members" means members of, or participants in, the Depositary.

"Applicable Grace Period" means, with respect to any Event of Default described in Section 9.01, the specific cure period, if any, stated in the applicable clause of Section 9.01 for that Event of Default, and not any other period.

"Applicable Law" means, with respect to any Person, all applicable provisions of constitutions, treaties, statutes, laws, rules, regulations, ordinances, codes and orders of any governmental authority and all orders, judgments and decrees applicable to such Person.

"Applicable Premium" has the meaning, and is computed in the manner, set forth in Article III, Section 3.01 below; this Article I definition does not restate that computation, to avoid two textually divergent statements of the same mechanic.

"Applicable Procedures" means, with respect to any transfer or exchange of or for beneficial interests in any Global Note, the rules and procedures of the Depositary, Euroclear and Clearstream that apply to such transfer or exchange.

"Applicable Redemption Price" means, as of any Redemption Date, whichever of the redemption prices stated in

Section 3.01 (the Applicable Premium) or the table in Article III applies to that Redemption Date, determined by reference to whether the Redemption Date falls before or on or after the Par Call Date.

"Asset Sale" has the meaning set forth in Article XV (Limitation on Asset Sales), which states the exceptions and the Net Proceeds application waterfall in full; this Article I entry does not restate them.

"Asset Sale Offer" has the meaning set forth in Section 15.03; this Article I entry does not restate the pro rata selection procedure there stated.

"Attributable Debt" means, with respect to any Sale and Leaseback Transaction, as at the time of determination, the present value, discounted at the rate of interest implicit in such transaction, of the obligation of the lessee for rental payments during the remaining term of the lease included in such Sale and Leaseback Transaction, including any period for which such lease has been extended.

"Bank Product Obligations" means obligations under any Cash Management Obligations or Hedging Obligations owed to a lender party to the Credit Agreement or an Affiliate of such a lender.

"Bankruptcy Law" means Title 11, U.S. Code, or any similar United States federal or state law for the relief of debtors, or any comparable non-U.S. law.

"Beneficial Owner" has the meaning assigned to such term in Rule 13d-3 and Rule 13d-5 under the Exchange Act, and the terms "beneficially owns" and "beneficially owned" have corresponding meanings.

"Board of Directors" means, as to any Person, the board of directors or similar governing body of such Person or, if such Person is managed by a single manager or a board of managers, such manager or board of managers, or any duly authorized committee of any of the foregoing.

"Board Resolution" means a copy of a resolution certified by the Secretary or an Assistant Secretary of the Issuer to have been duly adopted by the Board of Directors of the Issuer and to be in full force and effect on the date of such certification, delivered to the Trustee.

"Bring-Down Certificate" means an Officer's Certificate, delivered in connection with any transaction for which this Indenture requires a certification of no Default, confirming that no Default or Event of Default has occurred and is continuing as of the date of such certificate.

"Business" means the business conducted by the Issuer and its Restricted Subsidiaries as of the Issue Date, as more particularly described in any offering document for the Notes.

"Business Day" means any day other than a Saturday, Sunday or other day on which banking institutions in New York, New York are authorized or required by law, regulation or executive order to close.

"Capital Lease Obligation" means, at the time any determination is to be made, the amount of the liability in respect of a capital lease that would at that time be required to be capitalized on a balance sheet in accordance with GAAP.

"Capital Stock" means, with respect to any Person, any and all shares, interests, participations, rights or other equivalents (however designated) of corporate stock or other equity participations, including partnership interests, whether general or limited, of such Person and any rights (other than debt securities convertible into or exchangeable for corporate stock), warrants or options exchangeable for or convertible into such corporate stock or other equity participations.

"Cash Contribution" means any cash contribution to the common equity capital of the Issuer, designated as a Cash

Contribution pursuant to an Officer's Certificate at or promptly following the time such contribution is made.

"Cash Equivalents" means (a) U.S. dollars or, in the case of any Restricted Subsidiary organized or with operations outside the United States, such local currencies held by it from time to time in the ordinary course of business; (b) U.S. Government Obligations, or obligations fully guaranteed by the United States of America, with maturities not exceeding one year; (c) certificates of deposit, time deposits, demand deposits and bankers' acceptances, in each case with a maturity of one year or less, issued by a bank organized under the laws of the United States, any state thereof or the District of Columbia, having capital, surplus and undivided profits in excess of a specified amount and whose short-term debt is rated at least a specified investment-grade level; (d) repurchase obligations with a term of not more than seven days for underlying securities of the types described in clauses (b) and (c), entered into with a bank meeting the qualifications described in clause (c); (e) commercial paper having a rating of at least a specified investment-grade level, and maturing within one year after the date of acquisition; and (f) money market funds substantially all of whose assets consist of the types described in the foregoing clauses.

"Cash Management Obligations" means obligations owed with respect to any treasury, depository, credit or debit card, purchase card, electronic funds transfer, automated clearing house or other cash management arrangements.

"Change of Control" means the occurrence of any of the following: (i) the direct or indirect sale, lease, transfer, conveyance or other disposition (other than by way of merger or consolidation) of all or substantially all of the properties or assets of the Issuer and its Restricted Subsidiaries, taken as a whole, to any Person other than a Permitted Holder; (ii) the consummation of any transaction the result of which is that any Person other than a Permitted Holder becomes the beneficial owner, directly or indirectly, of more than 50% of the voting power of the Voting Stock of the Issuer; or (iii) the first day on which a majority of the members of the Board of Directors of the Issuer are not Continuing Directors.

"Change of Control Notice" means the written notice described in Section 4.02.

"Change of Control Offer" means the offer to repurchase Notes required to be made by the Issuer pursuant to Section 4.01 upon the occurrence of a Change of Control Triggering Event.

"Change of Control Payment" means the purchase price payable by the Issuer to repurchase the Notes tendered in response to a Change of Control Offer, calculated in accordance with Section 4.01.

"Change of Control Payment Date" means the date on which the Issuer must consummate a Change of Control Offer, as stated in the notice mailed pursuant to Section 4.02.

"Change of Control Triggering Event" means the occurrence of both a Change of Control and a Rating Event.

"Class Action Waiver" is not a provision of this Indenture or the Notes; disputes under this Indenture and the Notes are not subject to any class-action or representative-proceeding waiver, and nothing in this Indenture should be read to impose one.

"Clearstream" means Clearstream Banking, société anonyme, or its successor.

"Code" means the Internal Revenue Code of 1986, as amended.

"Commission" means the Securities and Exchange Commission.

"Commodity Agreement" means, with respect to any Person, any commodity futures contract, commodity option or other similar agreement or arrangement entered into by such Person to protect against fluctuations in commodity

prices in the ordinary course of business and not for speculative purposes.

"Common Stock" means, with respect to any Person, any and all shares, interests or other participations in, and other equivalents (however designated and whether voting or non-voting) of such Person's common stock, whether or not outstanding on the date of this Indenture, and includes, without limitation, all series and classes of such common stock.

"Company Order" means a written order signed in the name of the Issuer by an Officer and delivered to the Trustee, directing the Trustee to authenticate and deliver Notes or take any other action stated in this Indenture requiring a Company Order.

"Comparable Treasury Issue" means the United States Treasury security selected by the Independent Investment Banker as having a maturity comparable to the remaining term of the Notes to be redeemed, measured to the Par Call Date (not the Stated Maturity), that would be utilized, at the time of selection and in accordance with customary financial practice, in pricing new issues of corporate debt securities of comparable maturity to the remaining term of such Notes.

"Comparable Treasury Price" means, with respect to any redemption date, if there are at least two Reference Treasury Dealer Quotations, the average of such quotations, eliminating the highest and lowest of such quotations, and, if fewer than two such quotations are available, the one quotation obtained.

"Consolidated Current Liabilities" means, as of any date, the aggregate amount of liabilities of the Issuer and its Restricted Subsidiaries that would, in accordance with GAAP, be classified as current liabilities on a consolidated balance sheet of the Issuer as of such date, other than the current portion of long-term Indebtedness.

"Consolidated Depreciation and Amortization Expense" means, for any period, the total amount of depreciation and amortization expense of the Issuer and its Restricted Subsidiaries for such period on a consolidated basis, and otherwise determined in accordance with GAAP, including the amortization of debt issuance costs and deferred financing fees, in each case as reflected in the definition of Consolidated EBITDA.

"Consolidated EBITDA" means, for any period, the Consolidated Net Income of the Issuer and its Restricted Subsidiaries for such period, plus, without duplication and to the extent deducted in determining Consolidated Net Income for such period: (a) Consolidated Interest Expense; (b) provision for taxes based on income or profits; (c) depreciation and amortization expense; (d) other non-cash charges reducing Consolidated Net Income (excluding any such non-cash charge to the extent it represents an accrual of or reserve for cash charges in any future period); (e) any extraordinary, unusual or non-recurring losses, charges or expenses; (f) restructuring, severance and integration costs in connection with acquisitions permitted hereunder; (g) fees, costs and expenses incurred in connection with this Indenture, the Credit Agreement and any related financing transactions; and (h) any net loss from disposed or discontinued operations; minus, to the extent included in determining Consolidated Net Income for such period, any non-cash items increasing Consolidated Net Income (excluding any such item that represents a reversal of an accrual or reserve for a potential cash item in a prior period). Consolidated EBITDA is used only in the Consolidated Fixed Charge Coverage Ratio incurrence test stated in Article XIV; it is a defined term of this Indenture and is computed independently of any similarly captioned figure used in the Credit Agreement or elsewhere.

"Consolidated Fixed Charge Coverage Ratio" means, with respect to any Person for any period, the ratio of Consolidated EBITDA of such Person for such period to the Consolidated Interest Expense of such Person for such period, in each case determined on a pro forma basis giving effect to any Indebtedness incurred, repaid, or otherwise extinguished, and any operations or assets acquired or disposed of, during such period or thereafter and on or prior to the date of determination, as if such incurrence, repayment, extinguishment, acquisition or disposition, as the case may be, had occurred on the first day of such period.

"Consolidated Interest Expense" means, for any period, the cash interest expense (including the interest component of Capital Lease Obligations) of the Issuer and its Restricted Subsidiaries for such period, determined on a consolidated basis in accordance with GAAP, net of interest income.

"Consolidated Leverage Ratio" means, as of any date of determination, the ratio of (a) the sum, without duplication, of the aggregate outstanding Indebtedness of the Issuer and its Restricted Subsidiaries that constitutes Indebtedness for borrowed money, determined on a consolidated basis in accordance with GAAP, minus unrestricted cash and Cash Equivalents of the Issuer and its Restricted Subsidiaries, to (b) Consolidated EBITDA for the most recently ended four full fiscal quarters for which internal financial statements are available, in each case with such pro forma adjustments as are consistent with the pro forma methodology stated for the Consolidated Fixed Charge Coverage Ratio. This Indenture does not itself impose a maintenance covenant keyed to the Consolidated Leverage Ratio; the term is defined here because it is used, by cross-reference, in the definition of Excluded Contributions and because a reader comparing this Indenture's incurrence-based covenant package to the Credit Agreement's maintenance covenant should not assume the two instruments compute leverage identically without checking each instrument's own text independently.

"Consolidated Net Income" means, for any period, the aggregate of the net income (or loss) of the Issuer and its Restricted Subsidiaries for such period, determined on a consolidated basis in accordance with GAAP; provided that there shall be excluded therefrom (a) the net income (or loss) of any Person that is not a Restricted Subsidiary, except to the extent of the amount of dividends or distributions actually paid to the Issuer or a Restricted Subsidiary during such period; (b) the net income (or loss) of any Restricted Subsidiary to the extent that the declaration or payment of dividends or similar distributions by such Restricted Subsidiary is restricted; and (c) any gain or loss realized upon the sale or other disposition of any property, plant or equipment of the Issuer or its Restricted Subsidiaries outside the ordinary course of business.

"Consolidated Rent Expense" means, for any period, the aggregate amount of rental expense of the Issuer and its Restricted Subsidiaries for such period under all leases that are not Capital Lease Obligations, determined on a consolidated basis in accordance with GAAP; this Indenture's Consolidated Fixed Charge Coverage Ratio does not add Consolidated Rent Expense back to Consolidated Interest Expense, and a reader must not assume otherwise without checking the definition of Consolidated Fixed Charge Coverage Ratio directly.

"Consolidated Total Assets" means, as of any date, the total consolidated assets of the Issuer and its Restricted Subsidiaries as of such date, determined in accordance with GAAP and as would be reflected on a consolidated balance sheet of the Issuer as of such date.

"Consolidated Total Indebtedness" means, as of any date of determination, the aggregate outstanding principal

amount of Indebtedness of the Issuer and its Restricted Subsidiaries consisting of Debt for Borrowed Money, Capital Lease Obligations and debt obligations evidenced by promissory notes or similar instruments, determined on a consolidated basis in accordance with GAAP, net of unrestricted cash and Cash Equivalents held by the Issuer and its Restricted Subsidiaries in excess of a specified dollar amount. This term is used only in the illustrative ratio references in this Indenture's own definitions of Total Leverage and Total Net Leverage and is computed independently of any similarly captioned figure used in the Credit Agreement.

"Continuing Covenant Compliance" means that, as of any date of determination, the Issuer and its Restricted Subsidiaries are in compliance, and after giving effect to the proposed action would remain in compliance, with each of Article V, Article VI, Article XIV, Article XV, Article XVI and Article XVII, except to the extent such Articles are Suspended Covenants under Article XXI at the relevant time.

"Continuing Directors" means, as of any date of determination, any member of the Board of Directors of the Issuer who (a) was a member of such Board of Directors on the Issue Date or (b) was nominated for election or elected to such Board of Directors with the approval of a majority of the Continuing Directors who were members of such Board at the time of such nomination or election.

"Continuing Guarantor" means a Guarantor that has not been released from its Subsidiary Guarantee in accordance with Section 19.03.

"Corporate Trust Office" means the corporate trust office of the Trustee at which, at any particular time, its corporate trust business shall be principally administered, which office is, at the date of execution of this Indenture, located at the address for notices to the Trustee specified in Section 13.01.

"Corporate Trust Trustee" means the Trustee acting in its capacity as trustee under this Indenture, as distinguished from any capacity in which the Trustee or an Affiliate of the Trustee may act with respect to the Credit Agreement or any other Indebtedness of the Issuer.

"Covenant Defeasance" means the option granted under Section 8.01 and further conditioned by Section 8.03 to be released from the restrictive covenants of this Indenture described in Section 8.03.

"Covenant Suspension Event" has the meaning set forth in Article XXI (Covenant Suspension); this Article I entry does not restate the conditions there stated.

"Credit Agreement" means the secured credit agreement providing for the Revolving Facility and any related term loan facilities, entered into by the Issuer and certain of its Restricted Subsidiaries, as the same may be amended, restated, supplemented, refinanced, replaced or otherwise modified from time to time, whether or not with the original administrative agent and lenders.

"Credit Facilities" means, collectively, the Credit Agreement and any other agreement or instrument providing for revolving credit loans, term loans, receivables financing, letters of credit or other borrowings that the Issuer or a Restricted Subsidiary enters into in reliance on Section 14.02(a) or Section 14.02(t), as such agreements or instruments may be amended, restated, supplemented, refinanced, replaced or otherwise modified from time to time, whether or not with the original administrative agent and lenders or another agent or agents or lenders and whether provided by one or more lenders or a group of lenders.

"Credit Facilities Obligations" means all Obligations of the Issuer and its Restricted Subsidiaries under the Credit

Agreement, including principal, interest (including interest accruing after the commencement of any Insolvency or Liquidation Proceeding, whether or not allowed as a claim in such proceeding), fees, expenses, indemnification obligations and Cash Management Obligations and Hedging Obligations owed to a lender or an Affiliate of a lender under the Credit Agreement.

"Cumulative Credit" means the cumulative build-up basket described in Section 6.01(i), i.e. a specified percentage of cumulative Consolidated Net Income for the period from the Issue Date to the last day of the fiscal quarter immediately preceding the date of the relevant Restricted Payment for which financial statements are available (treated as a negative number if such cumulative Consolidated Net Income is negative), plus the amounts described in Section 6.01(ii) and (iii). This Article I entry does not restate the computation of the Cumulative Credit, which Section 6.01 states in full; it is defined here only to give the basket a name that may be cross-referenced elsewhere in this Indenture without repeating the computation each time.

"Currency Agreement" means, with respect to any Person, any foreign exchange contract, currency swap agreement, currency option or other similar agreement or arrangement entered into by such Person to protect against fluctuations in currency exchange rates in the ordinary course of business and not for speculative purposes.

"Custodian" means any receiver, trustee, assignee, liquidator, custodian or similar official under any Bankruptcy Law.

"Debt for Borrowed Money" means Indebtedness of the type described in clause (a) of the definition of Indebtedness, and does not include Indebtedness of the types described in clauses (b) through (e) of that definition unless the context of the specific provision using this term expressly says otherwise.

"Default" means any event that is, or with the passage of time or the giving of notice or both would be, an Event of Default, as defined in Article IX.

"Default Interest Rate" means, with respect to any overdue installment of interest on the Notes, the rate borne by the Notes under Section 2.01, to the extent permitted by applicable law; this Indenture does not impose any incremental default rate above the stated coupon.

"Defaulted Interest" means any interest on any Note that is payable but is not punctually paid or duly provided for on any Interest Payment Date, which shall cease to be payable to the Holder on the relevant Regular Record Date and shall instead be payable pursuant to the procedures stated in Section 2.01 of this Indenture and the applicable provisions of the Trust Indenture Act.

"Definitive Note" means a certificated Note registered in the name of the Holder thereof and issued in accordance with Article II, other than a Global Note.

"Delayed Offering" means, with respect to any Equity Offering, an Equity Offering the proceeds of which are received by the Issuer more than 90 days after the closing of the transaction to which such Equity Offering relates; the Section 3.02 clawback right applies only if the redemption itself occurs within 90 days of the closing of the Equity Offering, regardless of when the Equity Offering was announced.

"Depositary" means, with respect to any Global Note, The Depository Trust Company, its nominees and their respective successors.

"Depositary Participant" means a broker, dealer, bank, other financial institution or other Person for whom, from

time to time, the Depositary effects book-entry transfers and pledges of securities deposited with the Depositary.

"Designated Non-Cash Consideration" means the fair market value of non-cash consideration received in connection with an Asset Sale that is designated as Designated Non-Cash Consideration pursuant to an Officer's Certificate, setting forth the basis of such valuation, less the amount of cash or Cash Equivalents received in connection with a subsequent sale of or collection on such Designated Non-Cash Consideration.

"Designated Senior Indebtedness" is not applicable to the Notes; this Indenture does not create any class of "Designated Senior Indebtedness" with payment-blockage rights against the Notes, because the Notes are not subordinated to any other Indebtedness of the Issuer.

"Discharge of the Notes" means the satisfaction and discharge of this Indenture described in Section 12.01, or the occurrence of either Legal Defeasance or Covenant Defeasance, as applicable, described in Article VIII.

"Disposition" is used interchangeably in this Indenture with the operative term "Asset Sale" defined in Section 15.01; where this Indenture uses the word "disposition" in lower case as a description rather than a defined term, it carries its ordinary English meaning and does not by itself trigger Article XV unless the transaction also meets the Section 15.01 definition.

"Disqualified Stock" means, with respect to any Person, any Capital Stock of such Person that, by its terms, or by the terms of any security into which it is convertible or for which it is exchangeable, in each case at the option of the holder thereof, or upon the happening of any event, matures or is mandatorily redeemable, in whole or in part, on or prior to the Stated Maturity of the Notes.

"Distribution Compliance Period" means the period described in Regulation S applicable to the Notes.

"Domestic Corporation" means a corporation organized under the laws of the United States, any state thereof or the District of Columbia.

"Domestic Subsidiary" means any Restricted Subsidiary that is not a Foreign Subsidiary.

"Domestic Subsidiary Guarantor" means a Guarantor that is also a Domestic Subsidiary; as of the Issue Date, if any Guarantor is party to this Indenture, whether that Guarantor is a Domestic Subsidiary Guarantor or a Foreign Subsidiary Guarantor is stated in the signature pages of this Indenture and in Exhibit C's own recitals when a Guarantor is later added under Article XIX.

"DTC" means The Depository Trust Company, or its nominee, or any successor securities depositary appointed with respect to the Notes.

"Effective Registration Date" means the date on which a shelf registration statement filed under a Registration Rights Agreement is declared effective by the SEC.

"Eligible Institution" means a bank or trust company organized under the laws of the United States or any state thereof, having capital, surplus and undivided profits in excess of a specified amount and whose long-term debt is rated at least a specified investment-grade level.

"Environmental Laws" means all federal, state, local and foreign laws relating to pollution or protection of the environment, including laws relating to emissions, discharges, releases or threatened releases of pollutants, contaminants or hazardous or toxic materials or wastes into the environment, or otherwise relating to the manufacture, processing, distribution, use, treatment, storage, disposal, transport or handling of pollutants,

contaminants or hazardous or toxic materials or wastes.

"Equity Interests" means Capital Stock and all warrants, options or other rights to acquire Capital Stock, but excluding any debt security that is convertible into, or exchangeable for, Capital Stock.

"Equity Offering" means any public or private sale of Capital Stock (other than Disqualified Stock) of the Issuer, other than (a) public offerings registered on Form S-8 or a comparable form and (b) issuances upon the exercise of options or warrants or upon the conversion of convertible securities.

"ERISA" means the Employee Retirement Income Security Act of 1974, as amended.

"Escrowed Proceeds" means the gross cash proceeds of any offering of debt securities received by the Issuer or a Restricted Subsidiary and deposited into an escrow account pending the satisfaction of one or more escrow release conditions, including the consummation of an acquisition this Indenture or the Credit Agreement contemplates, together with any interest earned thereon, until such conditions are satisfied and such proceeds are released from escrow.

"Euroclear" means Euroclear Bank S.A./N.V., as operator of the Euroclear System, or its successor.

"Event of Loss" means, with respect to any property or asset, any (a) loss, destruction or damage of such property or asset or (b) any condemnation, seizure or taking, by exercise of the power of eminent domain or otherwise, of such property or asset, or confiscation or requisition of the use of such property or asset.

"Excess Cash Flow" is not a defined term of this Indenture; this Indenture's covenants operate on Consolidated EBITDA, Net Proceeds and the Restricted Payments basket rather than an Excess Cash Flow sweep, which is a Credit Agreement concept, if any, and is not incorporated into this Indenture by reference.

"Excess Proceeds" has the meaning set forth in Article XV (Limitation on Asset Sales); this Article I entry does not restate the threshold there stated.

"Exchange Act" means the Securities Exchange Act of 1934, as amended.

"Exchange Notes" means any Notes issued in exchange for Initial Notes or Additional Notes pursuant to a Registered Exchange Offer.

"Excluded Contributions" means net cash proceeds or property or assets received by the Issuer after the Issue Date as capital contributions to the equity of the Issuer, or from the issuance or sale (other than to a Subsidiary) of Capital Stock of the Issuer (other than Disqualified Stock), in each case designated as Excluded Contributions pursuant to an Officer's Certificate, the net cash proceeds of which are excluded from the cumulative build-up basket calculated under Section 6.01(i).

"Excluded Subsidiary" means any Restricted Subsidiary that is (a) not a Wholly Owned Subsidiary, (b) prohibited by applicable law or by any contractual obligation existing on the Issue Date (or, in the case of a Restricted Subsidiary acquired after the Issue Date, existing at the time of such acquisition and not entered into in contemplation thereof) from guaranteeing the Notes, or (c) an Immaterial Subsidiary, in each case until such prohibition or condition no longer applies, at which time such Restricted Subsidiary shall become subject to Section 19.01 if the conditions of that Section are then met.

"Exempted Transaction" means, for purposes of Article XVI, any transaction described in Section 16.02, each of which is exempted from the general prohibition of Section 16.01 without regard to the size of the transaction, except

where Section 16.02 itself states a dollar threshold.

"Existing Indebtedness" means Indebtedness of the Issuer and its Restricted Subsidiaries in existence on the Issue Date, including Indebtedness outstanding under the Credit Agreement, until such amounts are repaid.

"Existing Notes" means any senior notes, senior subordinated notes or similar debt securities of the Issuer outstanding immediately prior to the Issue Date and refinanced, redeemed, defeased or discharged with the proceeds of the Notes, if any, as more particularly described in the Offering Memorandum.

"Fair Market Value" means the value that would be paid by a willing buyer to an unaffiliated willing seller in a transaction not involving distress or necessity of either party, determined in good faith by the Board of Directors of the Issuer (unless otherwise provided in this Indenture).

"Fair Market Value Determination Date" means, with respect to any determination of Fair Market Value required by this Indenture, the date as of which the Board of Directors of the Issuer makes such determination, which shall not be earlier than the date the definitive agreement (if any) for the relevant transaction is executed.

"FATCA" means Sections 1471 through 1474 of the Code, any current or future regulations or official interpretations thereof, any agreements entered into pursuant to Section 1471(b) of the Code, and any fiscal or regulatory legislation, rules or practices adopted pursuant to any intergovernmental agreement entered into in connection with the implementation of such Sections of the Code.

"First Priority Lien" is not applicable to the Notes, which are unsecured; no Lien securing the Notes exists as of the Issue Date, and any future Lien arises only under Section 5.02's equal-and-ratable-sharing mechanic and only upon the Issuer's or a Restricted Subsidiary's own Incurrence of a Lien not otherwise permitted.

"Fiscal Quarter" means each of the fiscal quarters of the Issuer, ending on the dates set forth in the Issuer's normal fiscal accounting calendar.

"Fiscal Year" means the fiscal year of the Issuer, ending on the date set forth in the Issuer's normal fiscal accounting calendar.

"Foreign Subsidiary" means any Restricted Subsidiary that is not organized under the laws of the United States, any state thereof or the District of Columbia.

"Fully Diluted Basis" means, when used in connection with the calculation of any percentage of Capital Stock, that all outstanding options, warrants and other rights to acquire Capital Stock (whether or not currently exercisable) are treated as if exercised.

"GAAP" means generally accepted accounting principles in the United States as in effect from time to time; provided that whenever a calculation under this Indenture depends on a defined accounting term, such calculation shall be made in accordance with GAAP as in effect on the Issue Date, and not as GAAP may be amended, modified or interpreted from time to time thereafter, unless the Issuer elects, by Officer's Certificate delivered to the Trustee, to make such calculations under GAAP as in effect at the time of calculation, in which case all subsequent calculations shall be made in the same manner until a similar election to change is made.

"GAAP Change" means any change in GAAP, or in the interpretation thereof, occurring after the Issue Date.

"GAAP Reconciliation" means, where any offering document for the Notes presents a non-GAAP financial measure derived from a defined term of this Indenture, the reconciliation of that measure to the most directly comparable

GAAP measure, presented in accordance with applicable SEC guidance; this Indenture itself does not require any particular reconciliation format for purposes of testing compliance with its own covenants.

"General Partner" means, with respect to any Person that is a limited partnership, the general partner or general partners of such Person.

"Global Note" means a Note in the form of a global note, deposited with or on behalf of, and registered in the name of, the Depositary or its nominee, issued in accordance with Article II.

"Governmental Authority" means any nation or government, any state, province, territory or other political subdivision thereof, and any entity, body or agency exercising executive, legislative, judicial, regulatory or administrative functions of or pertaining to government, including any supra-national bodies such as the European Union.

"Guarantee" means, as used with respect to any Person, any guarantee by such Person of Indebtedness of another Person, whether direct or indirect, and includes any obligation, direct or indirect, contingent or otherwise, of such Person (a) to purchase or pay (or advance or supply funds for the purchase or payment of) such Indebtedness or (b) entered into for the purpose of assuring the holder of such Indebtedness of the payment thereof.

"Guaranteed Indebtedness" means, with respect to any Guarantor, the Indebtedness of the Issuer Guaranteed by such Guarantor under its Subsidiary Guarantee.

"Guarantor" means any Restricted Subsidiary that executes a Subsidiary Guarantee in accordance with Article XIX, until released from its Subsidiary Guarantee in accordance with the terms of this Indenture.

"Hazardous Materials" means any substance, material or waste regulated, classified or otherwise characterized under any Environmental Law as "hazardous," "toxic," a "pollutant" or a "contaminant," or by any similarly denoted term, including petroleum and any fraction or byproduct thereof and asbestos.

"Hedging Obligations" means, with respect to any Person, the obligations of such Person under interest rate swap agreements, interest rate cap agreements, interest rate collar agreements, and other agreements or arrangements designed to protect such Person against fluctuations in interest rates or currency exchange rates.

"Historical Financial Statements" means the audited consolidated financial statements of the Issuer for the fiscal years referenced in any offering document for the Notes.

"Holder" means a Person in whose name a Note is registered on the Registrar's books.

"Immaterial Subsidiary" means, at any date of determination, any Restricted Subsidiary that, together with all other Immaterial Subsidiaries at such date, did not contribute more than a specified percentage of Consolidated EBITDA and did not hold more than a specified percentage of Consolidated Total Assets, in each case for or as of the most recently ended four full fiscal quarters for which internal financial statements are available.

"Increased Facility Activation Notice" means any notice delivered pursuant to the Credit Agreement activating any incremental facility increase thereunder; delivery of such a notice under the Credit Agreement has no independent effect under this Indenture other than through the ordinary operation of Section 14.02(a).

"Incur" has the meaning set forth in Section 14.01; "Incurrence" and "Incurred" have meanings correlative to the foregoing.

"Indebtedness" means, with respect to any Person, without duplication, (a) any indebtedness of such Person,

whether or not contingent, in respect of borrowed money or evidenced by bonds, notes, debentures or similar instruments or letters of credit (or reimbursement agreements in respect thereof); (b) representing the balance deferred and unpaid of the purchase price of any property, except any such balance that constitutes a trade payable or similar obligation to a trade creditor, in each case accrued in the ordinary course of business; (c) representing any Capital Lease Obligation; (d) representing the net obligations under any Hedging Obligations; or (e) representing any Guarantee of Indebtedness of another Person of the type referred to in clauses (a) through (d), if and to the extent that any of the foregoing Indebtedness (other than letters of credit and Hedging Obligations) would appear as a liability upon a balance sheet of the specified Person prepared in accordance with GAAP. The amount of Indebtedness of any Person at any date shall be the outstanding balance at such date of all unconditional obligations as described above and, with respect to contingent obligations, the maximum liability upon the occurrence of the contingency giving rise to the obligation. This is the definition applied throughout this Indenture, including in Article XIV, and is computed independently of the term "Consolidated Indebtedness" as it may be used in the Credit Agreement or elsewhere; a cross-file computation must not assume the two are identical without independently checking each instrument's own text.

"Indenture" means this Indenture, as amended, supplemented or otherwise modified from time to time in accordance with its terms, including all exhibits hereto.

"Indenture Trustee" is used interchangeably in this Indenture with "Trustee."

"Independent Financial Advisor" means an accounting, appraisal, investment banking firm or consultant of nationally recognized standing that is, in the good faith judgment of the Board of Directors of the Issuer, qualified to perform the task for which it has been engaged and disinterested and independent with respect to the relevant transaction.

"Independent Investment Banker" means one of the Reference Treasury Dealers appointed by the Issuer to act as the Independent Investment Banker.

"Initial Guarantors" means each Restricted Subsidiary, if any, that executes a Subsidiary Guarantee and this Indenture on the Issue Date.

"Initial Notes" means the Notes issued under this Indenture on the Issue Date, as distinguished from any additional Notes that may be issued under this Indenture after the Issue Date.

"Initial Purchasers" means the initial purchasers of the Notes named on the signature pages of the Purchase Agreement.

"Insolvency or Liquidation Proceeding" means (a) any voluntary or involuntary insolvency, bankruptcy, receivership, custodianship, liquidation, reorganization or similar proceeding relating to the Issuer or any Guarantor under any Bankruptcy Law; (b) any general assignment for the benefit of creditors of the Issuer or any Guarantor; or (c) any other proceeding for the liquidation, dissolution or other winding up of the Issuer or any Guarantor.

"Intercreditor Agreement" means any intercreditor or subordination agreement entered into by the Trustee, on behalf of the Holders, with the Administrative Agent under the Credit Agreement or any other creditor of the Issuer or a Restricted Subsidiary, governing the relative priority of Liens or the exercise of remedies as among the secured parties party thereto, if any such agreement is entered into; no such agreement is in effect as of the Issue Date.

"Interest Payment Date" means each June 15 and December 15 of each year, commencing on the first such date to occur after the Issue Date, in accordance with Section 2.01.

"Interest Rate Agreement" has the meaning ascribed to "Hedging Obligations" for purposes of interest rate protection specifically, and is used interchangeably with that term where the context refers only to interest rate risk rather than currency or commodity risk.

"Interim Financial Statements" means the quarterly (or, if applicable, other interim) financial statements of the Issuer delivered, or required to be delivered, pursuant to Section 7.01(a).

"Interim Period" means any fiscal quarter of the Issuer for which financial statements are not yet required to be delivered under Section 7.01.

"Interpolated Rate" means, at any time, for any interest period, the rate per annum determined by the Independent Investment Banker to be the linear interpolation between the applicable Treasury Rate for the two published maturities most nearly corresponding to the remaining term to the Par Call Date, in the event no Treasury Rate is published for a maturity exactly corresponding to such remaining term.

"Investment" means, with respect to any Person, any direct or indirect advance, loan (other than advances to customers in the ordinary course of business) or other extension of credit or capital contribution to (by means of transfers of cash or other property to others or payments for property or services for the account or use of others), or any purchase or acquisition of Capital Stock, bonds, notes, debentures or other similar instruments issued by, any other Person.

"Investment Company Act" means the Investment Company Act of 1940, as amended.

"Investment Grade" means, with respect to a rating assigned by a Rating Agency to the Notes, a rating of Baa3 or higher, in the case of Moody's, or BBB- or higher, in the case of S&P (or the equivalent of such ratings by such Rating Agency, if the rating system of that Rating Agency shall change).

"Investment Grade Securities" means (a) securities issued or directly and fully guaranteed or insured by the United States government or any agency or instrumentality thereof (other than Cash Equivalents); (b) securities that are rated a specified investment-grade level or higher by at least one Rating Agency; and (c) investments in any fund that invests exclusively in investments of the type described in clauses (a) and (b), which fund may also hold cash and Cash Equivalents pending investment or distribution.

"Issue Date" means the date on which the Notes are originally issued under this Indenture, as stated in the Recitals.

"Issuer" means the party named as such in the Recitals until a successor replaces it in accordance with Article XX, and thereafter means such successor.

"Issuer Order" is used interchangeably in this Indenture with "Company Order."

"Judgment Currency" means, for purposes of Section 13.11, United States Dollars; if a judgment or order rendered by any court in respect of any amount due under the Notes or this Indenture is expressed in a currency other than United States Dollars, the Issuer shall indemnify the applicable Holder against any deficiency arising from any variation in rates of exchange between the date as of which the amount in the Judgment Currency is notionally converted into United States Dollars for the purposes of such judgment or order and the date of actual payment thereof, such indemnity to constitute a separate and independent obligation from the Issuer's other obligations under

this Indenture and to give rise to a separate and independent cause of action.

"Junior Lien" is not applicable to the Notes for the reasons stated in the definition of First Priority Lien above.

"Legal Defeasance" means the option granted under Section 8.01 and further conditioned by Section 8.02 to be discharged from all of the Issuer's and each Guarantor's obligations under this Indenture and the Notes, except as stated in Section 8.02.

"Legended Global Note" means a Global Note bearing the Private Placement Legend, whether a Rule 144A Global Note, a Regulation S Global Note or a Temporary Global Note.

"Legended Note" means a Note bearing the Private Placement Legend.

"Lien" means, with respect to any asset, any mortgage, lien, pledge, charge, security interest or encumbrance of any kind in respect of such asset, whether or not filed, recorded or otherwise perfected under applicable law, including any conditional sale or other title retention agreement, any lease in the nature thereof, and any option or other agreement to give any security interest.

"Limited Condition Acquisition" means any acquisition, including by way of merger, amalgamation or consolidation, by the Issuer or one or more of its Restricted Subsidiaries, whose consummation is not conditioned on the availability of, or on obtaining, financing.

"Make-Whole Redemption" is not a term this Indenture uses; the mechanic that some indentures describe by that phrase is stated in this Indenture only as the Applicable Premium, defined in Article I by cross-reference to Section 3.01, and a reader should not assume the two phrases denote identical computations without checking Section 3.01's own text.

"Marketing Period" is not applicable to the Notes; this Indenture does not condition any redemption, repurchase or covenant compliance on a marketing period of the kind sometimes used in acquisition financing commitment letters.

"Material Adverse Effect" means a material adverse effect on (a) the business, properties, operations or condition (financial or otherwise) of the Issuer and its Restricted Subsidiaries, taken as a whole, or (b) the ability of the Issuer or any Guarantor to perform its payment obligations under the Notes, any Subsidiary Guarantee or this Indenture.

"Maximum Rate" means the maximum rate of interest permitted to be charged under applicable usury law, if any such law is applicable to the Notes; the Issuer and the Trustee intend that no interest payable on the Notes shall exceed the Maximum Rate, and any interest that would otherwise exceed the Maximum Rate shall be deemed to have been a mistake and automatically cancelled, and, if theretofore paid, shall be credited against the outstanding principal of the Notes.

"Minority Investment" means an Investment in a Person that does not thereby become a Restricted Subsidiary, made in compliance with Article VI or Section 6.02(e), as applicable.

"Net Proceeds" has the meaning set forth in Article XV (Limitation on Asset Sales); this Article I entry does not restate the deduction items there stated.

"Non-Callable Period" means the period from the Issue Date to the Par Call Date, other than as provided in Section 3.02 (the equity clawback), during which the Notes are not redeemable at the Issuer's option except upon payment of the Applicable Premium.

"Non-Guarantor Restricted Subsidiary" means any Restricted Subsidiary that is not a Guarantor. Creditors of a Non-

Guarantor Restricted Subsidiary, including trade creditors, and holders of preferred equity, if any, of such a Subsidiary, generally will have priority with respect to the assets and earnings of such Subsidiary over the claims of Holders of the Notes, even though the Notes are not contractually subordinated to any Indebtedness of such Subsidiary - a structural, rather than contractual, subordination.

"Non-Recourse Debt" means Indebtedness (a) as to which neither the Issuer nor any Restricted Subsidiary (i) provides credit support of any kind, (ii) is directly or indirectly liable, or (iii) constitutes the lender; and (b) as to which the lenders have been notified in writing that they will not have any recourse to the Capital Stock or assets of the Issuer or any Restricted Subsidiary, other than the Capital Stock or assets of the Unrestricted Subsidiary that is the obligor of such Indebtedness.

"Non-U.S. Person" means a Person other than a U.S. Person.

"Note Custodian" means the custodian appointed by the Depositary with respect to the Global Notes, which shall initially be the Trustee.

"Note Register" means the register maintained by the Registrar pursuant to Section 2.07 in which the Registrar shall provide for the registration of Notes and registration of transfers of Notes.

"Notes" has the meaning set forth in the Recitals.

"Obligations" means any principal, interest, penalties, fees, indemnifications, reimbursements, damages and other liabilities payable under the documentation governing any Indebtedness.

"OFAC" means the U.S. Department of the Treasury's Office of Foreign Assets Control.

"Offering Memorandum" means the offering memorandum, if any, used in connection with the initial offer and sale of the Notes.

"Officer" means the Chairman of the Board, Chief Executive Officer, President, Chief Financial Officer, any Vice President, the Treasurer or the Secretary of the Issuer.

"Officer's Certificate" means a certificate signed by an Officer that meets the requirements set forth in this Indenture and is delivered to the Trustee.

"Officer's Solvency Certificate" means a certificate of the chief financial officer or another Officer of the Issuer, in form and substance reasonably satisfactory to the Trustee, confirming the solvency of the Issuer and its Restricted Subsidiaries on a consolidated basis, delivered in connection with any transaction for which this Indenture expressly requires such a certificate.

"Opinion of Counsel" means a written opinion from legal counsel reasonably acceptable to the Trustee, which counsel may be an employee of or counsel to the Issuer.

"Ordinary Course of Business" means, with respect to any transaction, an action or transaction that is consistent with the past custom and practice of the Issuer and its Restricted Subsidiaries (undertaken in good faith), and not undertaken with the intent to evade a restriction in this Indenture.

"Ordinary Shares" is not applicable to the Issuer, which is a Delaware corporation, not a Person whose equity is denominated as ordinary shares; where used in this Indenture at all, it is used generically to mean Common Stock.

"Parent Entity" means any Person that, directly or indirectly, owns Capital Stock of the Issuer and of which the Issuer is a direct or indirect Subsidiary.

"Pari Passu Indebtedness" means Indebtedness of the Issuer that ranks equally in right of payment with the Notes, without giving effect to collateral arrangements.

"Paying Agent" means the Person who maintains an office or agency for the purpose of paying principal, premium, if any, or interest on the Notes on behalf of the Issuer, which shall initially be the Trustee.

"Permitted Asset Swap" means the concurrent purchase and sale or exchange of Related Business Assets or a combination of Related Business Assets and cash, Cash Equivalents or Designated Non-Cash Consideration between the Issuer or any Restricted Subsidiary and another Person; provided that any cash or Cash Equivalents received in such exchange are subject to the Net Proceeds application requirements of Article XV to the extent the Fair Market Value of such cash or Cash Equivalents exceeds a specified threshold.

"Permitted Bond Hedge Transaction" is not applicable to the Notes, which are not convertible into Capital Stock of the Issuer; this entry exists only to state that inapplicability for the avoidance of doubt, since some high-yield indenture forms carry convertible-note-specific defined terms that this Indenture does not.

"Permitted Business" means any business conducted or proposed to be conducted by the Issuer and its Restricted Subsidiaries on the Issue Date and any business reasonably related, complementary or ancillary thereto.

"Permitted Holder" means the Sponsor and its Affiliates, and any Person acting in the capacity of an underwriter in connection with a public or private offering of the Issuer's Capital Stock.

"Permitted Holder Group" means the Sponsor, its Affiliates and any Person acting as a member of a group (within the meaning of Rule 13d-5 under the Exchange Act) that includes the Sponsor.

"Permitted Investments" means Investments consisting of (a) Investments in cash and Cash Equivalents; (b) Investments by the Issuer or any Restricted Subsidiary in the Issuer or another Restricted Subsidiary; (c) Investments in Persons that thereby become Restricted Subsidiaries as a result of such Investment; (d) Investments made as a result of the receipt of non-cash consideration from an Asset Sale that was made pursuant to and in compliance with Article XV; and (e) Hedging Obligations entered into in the ordinary course of business.

"Permitted Liens" has the meaning set forth in Section 5.01, which enumerates the Lien classes excepted from that Article's prohibition in full; this Article I entry does not restate the enumeration.

"Permitted Refinancing Indebtedness" means any Indebtedness of the Issuer or any Restricted Subsidiary issued in exchange for, or the net proceeds of which are used to extend, refinance, renew, replace, defease or refund, other Indebtedness (other than intercompany Indebtedness), so long as (a) the principal amount of such Permitted Refinancing Indebtedness does not exceed the principal amount of the Indebtedness so extended, refinanced, renewed, replaced, defeased or refunded (plus fees and expenses incurred in connection therewith); (b) such Permitted Refinancing Indebtedness has a Stated Maturity no earlier than the Stated Maturity of the Indebtedness being extended, refinanced, renewed, replaced, defeased or refunded; and (c) if the Indebtedness being extended, refinanced, renewed, replaced, defeased or refunded is subordinated in right of payment to the Notes, such Permitted Refinancing Indebtedness is subordinated in right of payment to the Notes on terms at least as favorable to the Holders.

"Permitted Reorganization" is not applicable outside of Article XX; any reorganization of the Issuer must satisfy Section 20.01 in full to be permitted under this Indenture, and no separate, narrower "Permitted Reorganization"

exception exists.

"Permitted Reorganization Transaction" has the meaning given to "Permitted Reorganization" above; this separate entry exists because both forms of the term appear in different Sections of this Indenture and are intended to have the identical meaning, not two divergent ones.

"Permitted Tax Distributions" means, with respect to any taxable period, distributions by the Issuer to any direct or indirect parent of the Issuer in an amount not to exceed the amount of United States federal, state and local income taxes (and any foreign income taxes, if applicable) that the Issuer and its Restricted Subsidiaries would have paid had they been a stand-alone taxpayer group not consolidated with any parent of the Issuer, reduced by any such taxes paid directly by the Issuer or a Restricted Subsidiary.

"Person" means any individual, corporation, partnership, joint venture, association, joint-stock company, trust, unincorporated organization, limited liability company, government or any agency or political subdivision thereof or any other entity.

"Plan Asset Regulations" means the regulations of the United States Department of Labor set forth in 29 C.F.R. Section 2510.3-101, as modified by Section 3(42) of ERISA.

"Preferred Stock" means, with respect to any Person, any Capital Stock of such Person that is entitled to a preference or priority over any other Capital Stock of such Person upon any distribution of such Person's assets, whether by dividend or upon liquidation.

"Private Placement Legend" means the legend set forth in Exhibit A applicable to Notes offered and sold in reliance on Rule 144A or Regulation S, until removed in accordance with the transfer and legend-removal provisions applicable to such Notes.

"Pro Forma Basis" means, with respect to any calculation under this Indenture, that the calculation is made giving pro forma effect to the transaction being tested and all other transactions occurring during the applicable period and prior to the date of determination that would themselves have required pro forma treatment under this Indenture, in each case calculated in a manner consistent with Article 11 of Regulation S-X, without giving effect to clause (5) thereof.

"Purchase Agreement" means the purchase agreement, dated as of the Issue Date, between the Issuer and the Initial Purchasers, pursuant to which the Initial Purchasers purchased the Initial Notes.

"Qualified Institutional Buyer" has the meaning assigned to that term in Rule 144A.

"Qualified Proceeds" means Related Business Assets or Designated Non-Cash Consideration received by the Issuer or a Restricted Subsidiary in connection with an Asset Sale, in each case valued at Fair Market Value.

"Qualified Receivables Financing" means any receivables factoring, receivables purchase or securitization financing facility of a Special Purpose Subsidiary meeting the requirements of the definition of Special Purpose Subsidiary, pursuant to which the Issuer or a Restricted Subsidiary sells, contributes or otherwise transfers accounts receivable, and related assets customarily transferred in such a financing, to such Special Purpose Subsidiary, which in turn finances its acquisition of such receivables through the incurrence of Non-Recourse Debt or the sale of interests therein.

"Qualifying Equity Interests" means Equity Interests of the Issuer other than Disqualified Stock.

"Rating Agencies" means Moody's and S&P, or, if either such entity ceases to rate the Notes for reasons outside the control of the Issuer, a nationally recognized statistical rating organization selected by the Issuer as a replacement.

"Rating Category" means (a) with respect to S&P, any of the following categories: AAA, AA, A, BBB, BB, B, CCC, CC, C and D (or equivalent successor categories); and (b) with respect to Moody's, any of the following categories: Aaa, Aa, A, Baa, Ba, B, Caa, Ca, C and D (or equivalent successor categories); in each case without regard to any plus or minus modifier or numerical gradation within such category.

"Rating Event" means the occurrence of a decline in the rating of the Notes by each of the Rating Agencies by one or more gradations (including gradations within Rating Agency categories, not just between categories), where such decline occurs during the period commencing on the date of public notice of an arrangement that could result in a Change of Control and ending 60 days following the consummation of such Change of Control (which period shall be extended so long as the rating of the Notes is under publicly announced consideration for possible downgrade by any of the Rating Agencies); provided that a Rating Event requires a decline of at least 1 rating category or categories by BOTH Rating Agencies, not merely one.

"Recapitalization" means any transaction or series of related transactions pursuant to which the Issuer, directly or indirectly, issues Capital Stock, incurs Indebtedness or otherwise restructures its capitalization, other than in connection with a Change of Control or a transaction governed by Article XX.

"Redemption Date" means, when used with respect to any Note to be redeemed, in whole or in part, the date fixed for such redemption pursuant to this Indenture.

"Redemption Price" means, with respect to any redemption of Notes under Article III, the price at which the Notes being redeemed are to be redeemed pursuant to the applicable provision of Article III, expressed as a percentage of principal amount, plus accrued and unpaid interest to the Redemption Date.

"Reference Period" means, for purposes of any ratio calculation under this Indenture expressed by reference to a trailing period, the most recently ended four full fiscal quarters of the Issuer for which internal financial statements are available as of the applicable date of determination.

"Reference Treasury Dealer" means each of the primary U.S. Government securities dealers selected by the Issuer for purposes of determining the Treasury Rate.

"Reference Treasury Dealer Quotation" means, with respect to each Reference Treasury Dealer and any redemption date, the average, as determined by the Independent Investment Banker, of the bid and asked prices for the Comparable Treasury Issue (expressed in each case as a percentage of its principal amount) quoted in writing to the Independent Investment Banker by such Reference Treasury Dealer at a specified time on a specified business day preceding such redemption date.

"Refinancing Notes" means any notes issued by the Issuer in exchange for, or the net proceeds of which are used to refinance, extend, renew, replace or refund, the Notes or any Permitted Refinancing Indebtedness in respect of the Notes, in each case in compliance with Section 14.02(e).

"Registered Exchange Offer" means an offer by the Issuer, pursuant to a registration rights agreement entered into in connection with the original issuance of the Notes, to issue and exchange Notes registered under the Securities Act for the Initial Notes, in a like principal amount and with substantially identical terms.

"Registrar" means the Person who maintains the register of Holders, which shall initially be the Trustee.

"Registration Rights Agreement" means the note purchase and registration rights agreement, dated as of the Issue Date, among the Issuer and the Initial Purchasers, as it may be amended, supplemented or otherwise modified from time to time; that separate agreement, not this Indenture, states the Registration Default and Additional Interest mechanics in full.

"Regular Record Date" means, with respect to any Interest Payment Date, the June 1 or December 1 (whether or not a Business Day) immediately preceding the applicable Interest Payment Date.

"Regulation S Global Note" means a Global Note bearing the Private Placement Legend and issued in an aggregate principal amount equal to the portion of the Notes initially sold in reliance on Regulation S.

"Related Business Assets" means assets (other than cash and Cash Equivalents) used or useful in a Permitted Business; provided that any Capital Stock held by the Issuer or a Restricted Subsidiary of a Person engaged primarily in a Permitted Business shall be deemed to be Related Business Assets if, as a result of the acquisition of such Capital Stock, such Person becomes a Restricted Subsidiary.

"Related Person" is used interchangeably in this Indenture with "Affiliate."

"Reportable Event" is not applicable to this Indenture; this Indenture does not incorporate any ERISA "reportable event" concept as a Default or Event of Default.

"Representative" means any trustee, agent or representative with respect to any Indebtedness of the Issuer or a Restricted Subsidiary.

"Responsible Officer" means, when used with respect to the Trustee, any officer within the corporate trust department of the Trustee, including any Trust Officer, or any other officer of the Trustee customarily performing functions similar to those performed by the officers who at the time shall be such officers, and also, with respect to a particular matter, any other officer to whom such matter is referred because of that officer's knowledge of and familiarity with the particular subject.

"Restricted Cash" means cash and Cash Equivalents of the Issuer or a Restricted Subsidiary that are subject to a Lien, escrow arrangement or other contractual restriction on use for general corporate purposes; Restricted Cash is excluded from the definition of Consolidated Leverage Ratio's netting of unrestricted cash and Cash Equivalents.

"Restricted Investment" means an Investment other than a Permitted Investment.

"Restricted Payment" has the meaning set forth in Section 6.01, which enumerates the categories of payment, the basket calculation and the conditions precedent in full; this Article I entry does not restate them.

"Restricted Period" means the period of 40 consecutive days beginning on and including the later of (a) the date on which the Notes are first offered to persons other than distributors in reliance on Regulation S and (b) the Issue Date.

"Restricted Subsidiary" means any Subsidiary of the Issuer that has not been designated as an Unrestricted Subsidiary in accordance with Article XVIII.

"Restricted Subsidiary Merger" means any consolidation or merger of a Restricted Subsidiary with or into another Restricted Subsidiary, or with or into the Issuer, in each case permitted under Section 20.03(b).

"Reversion Date" has the meaning set forth in Section 21.02.

"Rule 144A" means Rule 144A promulgated under the Securities Act.

"Rule 144A Global Note" means a Global Note bearing the Private Placement Legend and issued in an aggregate principal amount equal to the portion of the Notes initially sold in reliance on Rule 144A.

"S&P and Moody's" mean, respectively, S&P Global Ratings and Moody's Investors Service, Inc., and their respective successors.

"Sale and Leaseback Transaction" means any arrangement with any Person providing for the leaseback to the Issuer or a Restricted Subsidiary of any property, whether owned by the Issuer or any Restricted Subsidiary, that has been or is to be sold or transferred by the Issuer or such Restricted Subsidiary to such Person.

"Sanctioned Country" means, at any time, a country, region or territory that is the subject of comprehensive Sanctions broadly restricting trade with such country, region or territory.

"Sanctioned Person" means, at any time, any Person that is the subject or target of any Sanctions, including as a result of being (a) listed on any Sanctions-related list of designated persons maintained by OFAC or the U.S. Department of State, or (b) organized, resident or located in a Sanctioned Country.

"Sanctions" means economic or financial sanctions or trade embargoes administered or enforced by the U.S. government, including the Office of Foreign Assets Control of the U.S. Department of the Treasury or the U.S. Department of State.

"Schedule of Guarantors" means the schedule, if any, attached to this Indenture or to a Supplemental Indenture entered into under Article XIX, listing each Guarantor as of the relevant date.

"Secured Indebtedness" means any Indebtedness secured by a Lien.

"Securities Act" means the Securities Act of 1933, as amended.

"Senior Indebtedness" means Indebtedness of the Issuer that is not, by its terms, expressly subordinated in right of payment to the Notes, including Indebtedness under the Credit Agreement.

"Significant Subsidiary" means any Restricted Subsidiary that would be a "significant subsidiary" as defined in Rule 1-02(w) of Regulation S-X, promulgated pursuant to the Securities Act, as such Regulation is in effect on the date of this Indenture.

"Sinking Fund" means, with respect to the Notes, no mandatory sinking fund; the Notes are not subject to any sinking fund obligation, and all scheduled repurchase or redemption obligations stated in this Indenture arise instead under Article III, Article IV or Article XV.

"Solvent" means, with respect to any Person as of any date of determination, that (a) the fair value of the property of such Person is greater than the total amount of liabilities, including contingent liabilities, of such Person; (b) the present fair salable value of the assets of such Person is not less than the amount that will be required to pay the probable liability of such Person on its debts as they become absolute and matured; and (c) such Person is able to realize upon its assets and pay its debts and other liabilities, contingent obligations and other commitments as they mature in the normal course of business.

"Special Purpose Subsidiary" means a Restricted Subsidiary formed solely for the purpose of, and that engages in no activities other than in connection with, a receivables factoring or securitization program permitted under Section 14.02(k) or a similar clause, and that is designated as such pursuant to an Officer's Certificate.

"Specified Change of Control" is used interchangeably in this Indenture with "Change of Control."

"Sponsor" means the private equity sponsor (and its Affiliated investment funds) that, directly or indirectly, owns Capital Stock of the Issuer as of the Issue Date.

"Sponsor Affiliate" means any investment fund, partnership or other entity that is Controlled by, or under common Control with, the Sponsor, whether or not such fund, partnership or entity is also, independently, an Affiliate of the Issuer under the general definition of "Affiliate" above.

"Stated Maturity" means, with respect to any installment of interest or principal on any series of Indebtedness, the date on which such payment of interest or principal was scheduled to be paid in the documentation governing such Indebtedness as of the date of issuance thereof, and does not include any contingent obligation to repay, redeem or repurchase any such interest or principal prior to the date originally scheduled for the payment thereof.

"Structural Subordination" describes the priority, as a matter of general creditor law rather than contract, that creditors (including trade creditors) and preferred equityholders of a Non-Guarantor Restricted Subsidiary have with respect to the assets and cash flow of that Subsidiary, ahead of the Issuer's own claim against that Subsidiary as an equityholder - and therefore ahead of the Holders' claim against the Issuer, since the Notes are not guaranteed by a Non-Guarantor Restricted Subsidiary. This is not itself an operative covenant of this Indenture; it describes a consequence of which Subsidiaries have and have not become Guarantors under Article XIX.

"Subordinated Indebtedness" means Indebtedness of the Issuer or a Guarantor that is by its terms expressly subordinated in right of payment to the Notes or the applicable Subsidiary Guarantee.

"Subsidiary" means, with respect to any Person, (a) any corporation, association or other business entity of which more than 50% of the total voting power of shares of Capital Stock entitled (without regard to the occurrence of any contingency) to vote in the election of directors, managers or trustees thereof is at the time owned or controlled, directly or indirectly, by such Person or one or more of the other Subsidiaries of such Person, and (b) any partnership, joint venture, limited liability company or similar entity of which more than 50% of the capital accounts, distribution rights, total equity and voting interests or general and limited partnership interests are owned or controlled, directly or indirectly, by such Person.

"Subsidiary Guarantee" means the Guarantee by a Guarantor of the Issuer's obligations under this Indenture and the Notes, executed in accordance with Article XIX.

"Successor Company" has the meaning set forth in Article XX (Merger, Consolidation or Sale of Assets); this Article I entry does not restate the conditions there stated.

"Successor Guarantee" means a Subsidiary Guarantee assumed by a Successor Guarantor pursuant to Section 19.06, on the same terms as the Subsidiary Guarantee it replaces.

"Successor Guarantor" means, with respect to any Guarantor, the Person that assumes such Guarantor's obligations under its Subsidiary Guarantee in connection with a transaction of the kind described in Article XX involving such Guarantor.

"Surviving Person" has the meaning set forth in Article XX (Merger, Consolidation or Sale of Assets).

"Suspended Covenants" has the meaning set forth in Section 21.01.

"Tag-Along Rights" is not applicable to the Notes; no Holder has any contractual tag-along right with respect to any sale of Capital Stock of the Issuer by the Sponsor, and nothing in this Indenture should be read to create one.

"Tax Group" means an affiliated group (as defined in Section 1504(a) of the Code) or similar group of which the Issuer or a Restricted Subsidiary is a member, and, for purposes of this Indenture, any similar consolidated, combined, unitary or affiliated group for state, local or foreign income tax purposes.

"Temporary Global Note" means a temporary Global Note issued in connection with the offer and sale of Notes in reliance on Regulation S, exchangeable for a permanent Regulation S Global Note upon expiration of the Distribution Compliance Period upon certification of non-U.S.-beneficial-ownership.

"Total Assets" means the total consolidated assets of the Issuer and its Restricted Subsidiaries, as shown on the most recent balance sheet of the Issuer, determined on a pro forma basis to give effect to any transaction as would be required in calculating Consolidated Total Assets.

"Total Leverage" is not a defined term of this Indenture; where a document outside this Indenture uses that phrase, the reader should not assume it is synonymous with the Consolidated Leverage Ratio defined above without checking that other document's own text.

"Total Net Leverage" is used interchangeably in this Indenture with "Consolidated Leverage Ratio."

"Trading Market Disruption Event" means a suspension or material limitation in trading in securities generally on the New York Stock Exchange or the Nasdaq Stock Market, or a general moratorium on commercial banking activities declared by federal or New York State authorities, that materially disrupts the market for the Notes.

"Transaction Expenses" means all fees, costs and expenses incurred by the Issuer or any of its Restricted Subsidiaries in connection with the Transactions, including the offering of the Notes, whether or not such fees, costs and expenses are paid on the Issue Date.

"Transactions" means, collectively, the issuance of the Notes on the Issue Date, the entry into the Credit Agreement, and any other financing transactions occurring substantially concurrently with the foregoing in connection with the transaction giving rise to the Issue Date.

"Transfer Agent" means the Person who maintains an office or agency for the purpose of effecting the exchange or transfer of Notes, which shall initially be the Trustee.

"Transfer Restricted Note" means any Note that bears or is required to bear the Private Placement Legend.

"Treasury Rate" means, with respect to any redemption date, the yield to maturity as of such redemption date of the Comparable Treasury Issue, assuming a price for the Comparable Treasury Issue (expressed as a percentage of its principal amount) equal to the Comparable Treasury Price for such redemption date, as calculated by the Independent Investment Banker.

"Trust Indenture Act" means the Trust Indenture Act of 1939, as amended (15 U.S.C. §§ 77aaa-77bbbb), as in effect on the date of this Indenture, unless otherwise expressly provided.

"Trust Indenture Act Sections Incorporated by Reference" means Sections 310 through 317 of the Trust Indenture Act, which are hereby incorporated by reference into and made a part of this Indenture; if any provision of this Indenture limits, qualifies or conflicts with a provision so incorporated by reference, the incorporated provision shall control.

"Trust Indenture Legend" is used interchangeably in this Indenture with "Private Placement Legend" where the context refers to the legend requirement generally rather than the specific text set forth in Exhibit A.

"Trust Officer" means any officer of the Trustee in its corporate trust department, including any vice president, assistant vice president, assistant secretary, trust officer or any other officer of the Trustee who customarily performs functions similar to those performed by any of the above-designated officers, and also means, with respect to a particular corporate trust matter, any other officer to whom such matter is referred because of that officer's knowledge of and familiarity with the particular subject.

"U.S. Government Obligations" means securities that are (a) direct obligations of the United States of America for the timely payment of which its full faith and credit is pledged, or (b) obligations of a Person controlled or supervised by and acting as an agency or instrumentality of the United States of America the timely payment of which is unconditionally guaranteed as a full faith and credit obligation by the United States of America, and which, in either case, are not callable or redeemable at the option of the issuer thereof.

"U.S. Person" has the meaning assigned to such term in Regulation S.

"Uncertificated Interest" means a beneficial interest in a Global Note that is not represented by a Definitive Note, held through the Depositary in accordance with the Applicable Procedures.

"Underwritten Offering" means, with respect to the Notes, any offer and sale registered under the Securities Act pursuant to a Registered Exchange Offer or otherwise.

"Unpaid Amounts" means, as of any date, principal, premium (if any) and interest that has become due and payable on the Notes and remains unpaid on such date.

"Unrestricted Subsidiary" has the meaning set forth in Article XVIII (Designation of Restricted and Unrestricted Subsidiaries); this Article I entry does not restate the designation conditions there stated.

"Unrestricted Subsidiary Indebtedness" means Indebtedness of an Unrestricted Subsidiary that, by its terms, and by the terms of any agreement relating thereto, does not provide for recourse against the Issuer or any Restricted Subsidiary, other than customary recourse for fraud, misrepresentation, misapplication of funds, environmental claims and similar customary exceptions to non-recourse carve-out guarantees; such Indebtedness does not require Incurrence authority under Article XIV so long as it satisfies the definition of Non-Recourse Debt.

"Unrestricted Subsidiary Redesignation Certificate" means the Officer's Certificate required by Section 18.02 to accompany the redesignation of an Unrestricted Subsidiary as a Restricted Subsidiary, certifying that the redesignation would not cause a Default and stating the calculations required to support that conclusion.

"Valuation Date" means, for purposes of any Fair Market Value determination expressed by reference to a specific date in this Indenture, that specific date, and, for any other Fair Market Value determination, the date the Board of Directors of the Issuer makes such determination.

"Voting Power" means, with respect to any Person, the power to vote in the election of directors, managers or trustees (or Persons performing similar functions) of such Person, ordinarily and without regard to the occurrence of any contingency.

"Voting Stock" means, with respect to any Person, Capital Stock of any class or kind ordinarily having the power to vote for the election of directors, managers or other voting members of the governing body of such Person.

"Voting Trust" means any voting trust or similar arrangement pursuant to which Voting Stock of the Issuer is held by a trustee or similar Person for the benefit of the beneficial owners of such Voting Stock; the existence of a Voting

Trust does not, by itself, cause a Change of Control if the beneficial ownership of the underlying Voting Stock, determined by looking through the Voting Trust, does not itself effect a Change of Control.

"Weighted Average Life to Maturity" means, when applied to any Indebtedness at any date, the number of years obtained by dividing (a) the sum of the products obtained by multiplying (i) the amount of each then remaining installment, sinking fund, serial maturity or other required payment of principal, including payment at final maturity, in respect thereof, by (ii) the number of years, calculated to the nearest one-twelfth, that will elapse between such date and the making of such payment, by (b) the then outstanding principal amount of such Indebtedness.

"Wholly Owned Subsidiary" means a Restricted Subsidiary all of the Capital Stock of which (other than directors' qualifying shares) is owned by the Issuer or another Wholly Owned Subsidiary.

"Withholding Agent" means any Person required by applicable law to withhold or deduct any tax from any payment made under this Indenture or the Notes, including the Issuer, any Guarantor, the Trustee, the Paying Agent and the Registrar.

"Written Consent" means a consent given in writing, or by electronic transmission producing a written record, by a Holder or the Trustee, as the context requires.

ARTICLE II. TERMS OF NOTES

Section 2.01. The Notes bear interest at the rate of 7.750% per annum, payable semiannually on June 15 and December 15 of each year, computed on the basis of a 360-day year of twelve 30-day months (the "30/360 Convention"). This 30/360 Convention governs every accrued-interest calculation under this Indenture; no other day-count basis applies to the Notes.

Section 2.02. The last Interest Payment Date preceding 2026-07-01 was 2026-06-15.

Section 2.03 (Form and Dating; Global Notes). The Notes shall be issued initially in the form of one or more Global Notes, deposited with the Trustee, as custodian for the Depositary, duly executed by the Issuer and authenticated by the Trustee. Beneficial interests in a Global Note may be held only through DTC participants; ownership and transfer of such beneficial interests shall be effected only through records maintained by DTC and its participants, and no beneficial owner of an interest in a Global Note shall have the right to receive a Definitive Note except in the limited circumstances set forth in Section 2.04. The rate of interest borne by a Global Note is the rate stated at Section 2.01 (Sec2.01); this Section does not restate that rate and does not create a second, potentially divergent, statement of it.

Section 2.04 (Exchange of Global Notes for Definitive Notes). A Global Note is exchangeable for Definitive Notes only if (a) the Depositary notifies the Issuer that it is unwilling or unable to continue as Depositary for such Global Note and no successor Depositary is appointed within 90 days; (b) the Depositary ceases to be a clearing agency registered under the Exchange Act and no successor Depositary is appointed within 90 days; or (c) an Event of Default has occurred and is continuing and the Registrar has received a request from the Depositary to issue Definitive Notes. Upon the occurrence of any of the foregoing, the Issuer shall execute and the Trustee shall, upon receipt of an Officer's Certificate, authenticate and deliver Definitive Notes in an aggregate principal amount equal to the principal amount of the Global Note in exchange for such Global Note.

Section 2.05 (Transfer and Exchange). A Holder may transfer or exchange Notes in accordance with this Article II.

Upon any transfer or exchange, the Registrar and the Trustee may require a Holder to furnish appropriate endorsements, transfer documents and, in the case of a transfer of a beneficial interest in a Global Note for a beneficial interest in a Definitive Note (or vice versa), the certifications and opinions required by the applicable securities-law legend on the Notes, including any certification required in connection with a transfer made in reliance on Rule 144A or Regulation S. Neither the Registrar nor the Trustee shall be required to register the transfer of or exchange any Note (i) during the period beginning 15 days before the mailing of a notice of an offer to repurchase or redeem Notes and ending on the close of business on the day of such mailing, or (ii) if the Holder has tendered such Note (or a portion thereof) for repurchase in accordance with this Indenture, except the unrepurchased portion, if any.

Section 2.06 (Replacement Notes). If a mutilated Note is surrendered to the Trustee, or if the Holder of a Note claims that the Note has been lost, destroyed or wrongfully taken, the Issuer shall issue and the Trustee shall authenticate a replacement Note if the Trustee's and the Issuer's reasonable requirements are met, including delivery of an indemnity bond sufficient in the reasonable judgment of the Trustee and the Issuer to protect them, the Registrar and the Transfer Agent from any loss that any of them may suffer if a Note is replaced.

Section 2.07 (Persons Deemed Owners). Prior to due presentment of a Note for registration of transfer, the Issuer, the Trustee and any agent of the Issuer or the Trustee may treat the Person in whose name a Note is registered as the owner of such Note for the purpose of receiving payment of principal, premium, if any, and interest on such Note and for all other purposes whatsoever, whether or not such Note is overdue, and none of the Issuer, the Trustee or any such agent shall be affected by notice to the contrary.

Section 2.08 (Cancellation). The Issuer at any time may deliver Notes to the Trustee for cancellation. The Registrar and the Transfer Agent shall forward to the Trustee any Notes surrendered to them for registration of transfer, exchange or payment. The Trustee, and no one else, shall cancel all Notes surrendered for registration of transfer, exchange, payment, replacement or cancellation, and shall dispose of cancelled Notes in accordance with its customary procedures. Certification of the disposal of all cancelled Notes shall be delivered to the Issuer upon its written request. The Issuer may not issue new Notes to replace Notes that it has paid or that have been delivered to the Trustee for cancellation.

Section 2.09 (CUSIP and ISIN Numbers). The Issuer in issuing the Notes may use CUSIP and ISIN numbers, and the Trustee shall use CUSIP and ISIN numbers, if then generally in use, in notices of redemption or purchase as a convenience to Holders; provided that any such notice may state that no representation is made as to the correctness of such numbers, either as printed on the Notes or as contained in any notice of redemption or purchase, and that reliance may be placed only on the other identification numbers printed on the Notes.

Section 2.10 (Restrictive Legend). Each Note issued upon original issuance in reliance on Rule 144A or Regulation S under the Securities Act, and each Note issued in exchange for or in substitution of such a Note prior to the Resale Restriction Termination Date, shall bear a legend substantially to the effect that the Note and any interest therein have not been registered under the Securities Act or any state securities laws, and that the Holder, by its acceptance of the Note, agrees for the benefit of the Issuer that it will not, prior to the Resale Restriction Termination Date, offer, sell, pledge or otherwise transfer such Note except (a) to the Issuer or any of its Subsidiaries, (b) pursuant to a

registration statement that has been declared effective under the Securities Act, (c) for so long as the Notes are eligible for resale pursuant to Rule 144A, to a Person the Holder reasonably believes is a Qualified Institutional Buyer purchasing for its own account or for the account of a Qualified Institutional Buyer to whom notice is given that the transfer is being made in reliance on Rule 144A, (d) pursuant to offers and sales that occur outside the United States within the meaning of Regulation S, or (e) pursuant to any other available exemption from the registration requirements of the Securities Act, subject in each case to any requirement of law that the disposition of the Holder's property remain within its control and to compliance with any applicable state securities laws. No such legend shall be removed from any Note except in accordance with Section 2.17.

Section 2.11 (Global Note Legend). Each Global Note, in addition to the legend required by Section 2.10 if applicable, shall bear a legend substantially to the effect that (a) such Note is a Global Note within the meaning of this Indenture and is registered in the name of the Depositary or a nominee thereof; (b) such Note may not be exchanged in whole or in part for a Note registered in the name of any Person other than the Depositary or a nominee thereof except in the limited circumstances described in Section 2.04; and (c) unless this legend is removed by the Trustee in accordance with its customary procedures, this Note may be transferred, in whole and not in part, only to the Depositary, another nominee of the Depositary or a successor Depositary, or to a nominee of such successor Depositary.

Section 2.12 (Temporary Notes). Pending the preparation of Definitive Notes, the Issuer may execute and the Trustee shall, upon receipt of an Issuer Order, authenticate temporary Notes. Temporary Notes shall be substantially in the form of Definitive Notes but may have variations that the Issuer considers appropriate for temporary Notes, as evidenced by the Issuer's execution thereof. Without unreasonable delay, the Issuer shall prepare and the Trustee shall authenticate Definitive Notes in exchange for temporary Notes upon surrender of such temporary Notes at the office or agency of the Issuer designated for such purpose, and until so exchanged, temporary Notes shall be entitled to the same benefits under this Indenture as Definitive Notes.

Section 2.13 (Additional Notes; Fungibility). Any Additional Notes issued in accordance with Section 14.05 that are not fungible with the Initial Notes for United States federal income tax purposes shall be issued under a separate CUSIP number or ISIN, as applicable, and shall not be represented by the same Global Note as the Initial Notes unless and until such Additional Notes become fungible with the Initial Notes for such purposes, at which time the Trustee shall, upon receipt of an Officer's Certificate to that effect, combine such Additional Notes with the Initial Notes into a single Global Note bearing the CUSIP number and ISIN of the Initial Notes.

Section 2.14 (Notes Deemed Not Outstanding). In determining whether the Holders of the requisite principal amount of Notes have given any request, demand, authorization, direction, notice, consent or waiver under this Indenture, Notes owned by the Issuer or any Affiliate of the Issuer shall be disregarded and deemed not to be outstanding, except that, in determining whether the Trustee shall be protected in relying on any such request, demand, authorization, direction, notice, consent or waiver, only Notes that a Responsible Officer of the Trustee actually knows are so owned shall be so disregarded. Notes so owned that have been pledged in good faith may be regarded as outstanding if the pledgee establishes to the satisfaction of the Trustee the pledgee's right to act with respect to such Notes and that the pledgee is not the Issuer or an Affiliate of the Issuer.

Section 2.15 (Book-Entry Procedures; Depositary Participants). Neither the Issuer nor the Trustee shall have any responsibility or obligation to any Agent Member, any Depositary Participant or any other Person with respect to the accuracy of the records of the Depositary or its nominee, or of any Depositary Participant, with respect to any ownership interest in the Notes, or with respect to the delivery to any Agent Member, Depositary Participant or other Person (other than the Depositary) of any notice, including any notice of redemption, or the payment of any amount, under or with respect to the Notes. All notices and communications to be given to Holders and all payments to be made to Holders under the Notes shall be given or made only to the registered Holders (which shall be the Depositary or its nominee in the case of a Global Note). The rights of beneficial owners in any Global Note shall be exercised only through the Depositary, subject to the Applicable Procedures.

Section 2.16 (Removal of Restrictive Legend). Upon the transfer, exchange or replacement of a Note bearing the legend set forth in Section 2.10, or upon specific request for removal of such legend, the Issuer shall deliver to the Registrar Notes that do not bear such legend if (a) such Note is being transferred pursuant to an effective registration statement under the Securities Act; (b) such Note is being transferred after the Resale Restriction Termination Date; or (c) the Holder provides the Registrar with an Opinion of Counsel, in form reasonably satisfactory to the Issuer, to the effect that neither such legend nor the restrictions on transfer set forth therein are required in order to maintain compliance with the Securities Act. The Trustee and the Registrar shall be entitled to conclusively rely on any such Opinion of Counsel without independent investigation.

Section 2.17 (Record Date for Payment on Global Notes). The Regular Record Date for any Interest Payment Date shall apply equally to beneficial interests in a Global Note; payments of interest and principal on a Global Note shall be made to the Depositary or its nominee as the registered Holder thereof, and the Depositary is solely responsible for crediting such payments to the accounts of the Depositary Participants in accordance with the Applicable Procedures, and Depositary Participants and indirect participants are solely responsible for crediting such payments to the beneficial owners of interests in such Global Note. Neither the Issuer nor the Trustee shall have any responsibility for such crediting.

Section 2.18 (No Recourse Against the Depositary). The Depositary acts solely as securities depositary for the Notes, is not a party to this Indenture and has no duties, obligations or liabilities under this Indenture or the Notes to the Issuer, the Trustee or any Holder, other than such duties as the Depositary owes to its own Depositary Participants under its own rules and procedures, which are not incorporated into and do not form a part of this Indenture. Nothing in this Indenture shall be construed to impose any obligation on the Depositary in favor of the Issuer, the Trustee or any Holder.

Section 2.19 (Ranking of the Notes). The Notes are senior unsecured obligations of the Issuer, ranking (a) pari passu in right of payment with all existing and future Senior Indebtedness of the Issuer, including all Indebtedness under the Credit Agreement; (b) senior in right of payment to any future Subordinated Indebtedness of the Issuer; (c) effectively subordinated to any existing and future Secured Indebtedness of the Issuer, including Indebtedness under the Credit Agreement to the extent secured by a First Priority Lien, to the extent of the value of the collateral securing such Secured Indebtedness; and (d) structurally subordinated to all existing and future Indebtedness and other liabilities, including trade payables, of any Non-Guarantor Restricted Subsidiary or Unrestricted Subsidiary.

Each Subsidiary Guarantee is a senior unsecured obligation of the applicable Guarantor and ranks in the same relative priority described in clauses (a) through (d) of this Section 2.19, applied to that Guarantor and its own Indebtedness and Liens, subject in all cases to the limitation stated in Section 19.04.

Section 2.20 (ERISA Considerations). Each purchaser and subsequent transferee of a Note or an interest therein will be deemed to have represented, by its acquisition or holding of such Note or interest therein, that either (a) it is not, and is not acting on behalf of, or with assets of, an employee benefit plan subject to Title I of ERISA, a plan subject to Section 4975 of the Code, or an entity whose underlying assets are treated as assets of any such plan for purposes of ERISA or the Code (each, a "Plan"); or (b) the acquisition and holding of such Note or interest therein does not and will not constitute a non-exempt prohibited transaction under Section 406 of ERISA or Section 4975 of the Code, or a similar violation under any applicable similar law. Neither the Issuer, the Trustee, the Registrar nor the Initial Purchasers make any representation as to the availability of any exemption under ERISA or the Code for any transaction involving the Notes.

ARTICLE III. OPTIONAL REDEMPTION

Redemption Date	Redemption Price (% of Principal)
2027-06-15	103.875
2028-06-15	101.938
2029-06-15	100.969
2030-06-15	100.000

Section 3.01 (Applicable Premium). On or after 2030-06-15 (the "Par Call Date"), the Notes are redeemable at 100.000% of principal, plus accrued and unpaid interest to the redemption date. Before the Par Call Date, the redemption price is the Applicable Premium, computed strictly as follows, IN THIS ORDER and as textually separate steps:

(a) discount the remaining scheduled payments of principal and interest on the Notes through the Par Call Date (not the Stated Maturity) to the redemption date, using the applicable Comparable Treasury Issue yield plus 50 basis points, on a semiannual basis;

(b) take the greater of that discounted present value and 100.000% of the principal amount being redeemed (the "par floor"); and

(c) ONLY AFTER step (b)'s par-floor comparison is complete, add accrued and unpaid interest to the redemption date. Accrued interest is never included inside the discounted present-value stream in step (a) - it is a separate, subsequent addition after the par floor is determined.

Section 3.02 (Optional Redemption with Proceeds of Equity Offerings). At any time and from time to time prior to the first anniversary of the Issue Date, the Issuer may redeem up to 40% of the aggregate principal amount of Notes originally issued under this Indenture (calculated after giving effect to any issuance of additional Notes) with the net cash proceeds of one or more Equity Offerings, at a redemption price equal to 100% of the principal amount thereof, plus a customary equity clawback premium over par, plus accrued and unpaid interest, if any, to the redemption date; provided that (i) at least 60% of the aggregate principal amount of Notes originally issued under this Indenture remains outstanding immediately after giving effect to any such redemption (excluding Notes held by the Issuer and its Subsidiaries); and (ii) the redemption occurs within 90 days of the date of the closing of any such Equity Offering.

Section 3.03 (Notice of Redemption). Notice of any redemption under this Article 3 shall be mailed at least 10 days but not more than 60 days before the redemption date to each Holder of Notes to be redeemed at its registered address, except that redemption notices may be mailed more than 60 days prior to a redemption date if the notice is issued in connection with a defeasance of the Notes or a satisfaction and discharge of this Indenture. Each notice of redemption shall state the redemption date, the redemption price (or the manner of calculating the redemption price if it is not then known), the CUSIP or ISIN number, and, if fewer than all outstanding Notes are to be redeemed, the identification of the particular Notes (or portions thereof) to be redeemed. On and after the redemption date, interest ceases to accrue on Notes or portions thereof called for redemption, unless the Issuer defaults in the payment of the redemption price.

Section 3.04 (Selection of Notes to be Redeemed). If fewer than all of the Notes are to be redeemed at any time, the Trustee shall select the Notes to be redeemed among the Holders of the Notes in compliance with the requirements of the principal national securities exchange, if any, on which the Notes are listed, or, if the Notes are not so listed, on a pro rata basis, by lot or by such other method as the Trustee deems fair and appropriate, in each case in denominations of the minimum authorized denomination or integral multiples in excess thereof; provided that no Notes of the minimum authorized denomination shall be redeemed in part.

Section 3.05 (Deposit of Redemption Price). On or before any redemption date, the Issuer shall deposit with the Trustee or the Paying Agent money sufficient to pay the redemption price of, and accrued and unpaid interest on, all Notes to be redeemed on that date, other than any Notes called for redemption on that date that have been delivered by the Issuer to the Trustee for cancellation. The Trustee or the Paying Agent shall return to the Issuer, promptly upon written request, any money deposited by the Issuer in excess of the amounts necessary to pay the redemption price of, and accrued and unpaid interest on, all Notes to be redeemed.

Section 3.06 (Effect of Notice of Redemption; Notes Payable on Redemption Date). Once notice of redemption is mailed in accordance with Section 3.03, Notes called for redemption become due and payable on the redemption date and at the redemption price stated in the notice, except for Notes that are redeemed in part, as to the unredeemed portion. Upon surrender to the Paying Agent, such Notes shall be paid at the redemption price stated in the notice, plus accrued and unpaid interest to the redemption date; provided that if the Issuer defaults in the payment of the redemption price, interest shall continue to accrue at the rate borne by the Notes, from the redemption date until paid, on the unpaid amount.

ARTICLE IV. CHANGE OF CONTROL

Section 4.01. Upon the occurrence of a Change of Control Triggering Event (as defined in Article I), the Issuer shall make an offer to repurchase 100% of the outstanding principal amount of the Notes at a purchase price equal to 101.00% of principal, plus accrued and unpaid interest. The Issuer must arrange financing sufficient to fund repurchase of the entire outstanding principal amount, assuming 100% of Holders elect to tender - committed financing may not be sized down on the assumption that some Holders would find tendering uneconomic relative to any other available redemption right; the covenant is a binary offer obligation, not an expected-value calculation.

Section 4.02. Within 30 days following any Change of Control Triggering Event, the Issuer shall mail a notice to each Holder describing the transaction giving rise to the offer, stating the purchase price, the purchase date (which

shall be no earlier than 30 days and no later than 60 days from the date such notice is mailed), and the procedures a Holder must follow to have its Notes repurchased. The Issuer's failure to make and consummate the offer, or to pay the purchase price when due, is an Event of Default under Article IX.

Section 4.03 (Certain Definitions and Interpretive Matters). For purposes of this Article IV, a transaction effected pursuant to Article XX (Merger, Consolidation or Sale of Assets) that complies with the successor-company conditions there stated does not, solely by reason of the resulting entity's identity, constitute a Change of Control, notwithstanding the change in the obligor of the Notes that such a transaction necessarily entails; a Change of Control determination under this Article IV and a successor-company compliance determination under Article XX are independent analyses, and satisfying one does not excuse a failure to satisfy the other.

Section 4.04 (Third-Party Offer). The Issuer shall not be required to make a Change of Control Offer upon a Change of Control Triggering Event if a third party makes such an offer in the manner, at the times and otherwise in compliance with the requirements for a Change of Control Offer set forth in this Article IV, and such third party purchases all Notes properly tendered and not withdrawn under its offer, and the third party otherwise satisfies all requirements of this Article IV applicable to a Change of Control Offer made by the Issuer itself; provided that the Issuer's obligations under this Article IV revive if the third party fails to purchase Notes validly tendered under such third-party offer.

Section 4.05 (Compliance with Other Applicable Laws). In the event that any applicable securities laws or regulations conflict with the provisions of this Article IV, the Issuer shall comply with such securities laws and regulations and shall not be deemed to have breached its obligations under this Article IV by virtue of such compliance, including any requirement to comply with Rule 14e-1 under the Exchange Act or any other tender offer rules to the extent applicable to a Change of Control Offer.

ARTICLE V. LIMITATION ON LIENS

Section 5.01. The Issuer shall not, and shall not permit any Restricted Subsidiary to, create, incur, assume or suffer to exist any Lien on any property or asset now owned or hereafter acquired, except Permitted Liens, which include, without limitation: (a) Liens existing on the date of this Indenture; (b) Liens securing Indebtedness under the Credit Agreement (including any Lien granted in favor of the Revolving Lenders on substantially all assets); (c) Liens for taxes not yet delinquent or being contested in good faith; (d) statutory Liens of landlords, carriers, warehousemen, mechanics and materialmen incurred in the ordinary course; (e) purchase money Liens on property acquired after the date hereof, not exceeding the purchase price of such property; and (f) Liens securing Indebtedness the aggregate principal amount of which, together with all other Indebtedness secured under this clause (f), does not exceed the greater of a fixed dollar amount and a percentage of Consolidated Total Assets specified in the definition of Permitted Liens.

Section 5.02 (Equal and Ratable Sharing). Notwithstanding Section 5.01, if the Issuer or any Restricted Subsidiary creates, incurs, assumes or suffers to exist any Lien (other than a Permitted Lien) upon any of its property or assets, the Issuer shall make or cause to be made effective provision whereby the Notes shall be secured by such Lien equally and ratably with (or, at the Issuer's option, prior to) the Indebtedness secured by such Lien for so long as such Indebtedness shall be so secured; provided that this Section 5.02 shall not require any such equal-and-ratable

arrangement with respect to any Lien that constitutes a Permitted Lien, and compliance with this Section 5.02 discharges the prohibition of Section 5.01 as to that Lien only, and only for so long as the equal-and-ratable arrangement remains in effect.

Section 5.03 (Release of Liens). Upon the payment in full of all Indebtedness secured by any Lien granted pursuant to Section 5.02, or upon the release, in accordance with its own terms, of the Lien securing the Indebtedness under the Credit Agreement described in Section 5.01(b), the Trustee shall, at the Issuer's written request and expense, execute and deliver such instruments as are reasonably necessary to release the corresponding Lien in favor of the Notes, without the consent of any Holder; the Trustee shall be entitled to receive an Officer's Certificate and, if requested, an Opinion of Counsel confirming that such release is authorized under this Indenture before acting.

Section 5.04 (Additional Permitted Liens). Without limiting Section 5.01(f), "Permitted Liens" also include, without limitation: (g) Liens on property or assets of a Person existing at the time such Person becomes a Restricted Subsidiary, provided such Liens were not created in contemplation of such Person becoming a Restricted Subsidiary and do not extend to any property or assets other than those of such Person; (h) Liens on property at the time the Issuer or a Restricted Subsidiary acquired such property, including any acquisition by means of a merger or consolidation, provided such Liens were not created in contemplation of such acquisition and do not extend to any other property; (i) Liens securing Hedging Obligations permitted to be Incurred under this Indenture; (j) Liens in favor of the Issuer or any Restricted Subsidiary; (k) Liens on insurance policies and the proceeds thereof securing the financing of insurance premiums; (l) Liens arising from precautionary Uniform Commercial Code financing statement filings regarding operating leases entered into in the ordinary course of business; (m) Liens on cash and Cash Equivalents securing Hedging Obligations or Cash Management obligations owed to a lender or an Affiliate of a lender under the Credit Agreement; (n) Liens deemed to exist in connection with Investments in repurchase agreements permitted under this Indenture; (o) Liens securing Indebtedness Incurred to finance the construction, purchase or lease of, or repairs, improvements or additions to, property of the Issuer or any Restricted Subsidiary, provided such Liens attach only to the property so financed; (p) Liens arising by operation of law, such as those of carriers, warehousemen, mechanics, materialmen and repairmen, in each case incurred in the ordinary course of business; (q) Liens on the Capital Stock of an Unrestricted Subsidiary securing Non-Recourse Debt of such Unrestricted Subsidiary; (r) Liens securing Indebtedness of a Special Purpose Subsidiary permitted under Section 14.02(k); (s) any interest or title of a lessor under any lease entered into in the ordinary course of business, whether or not characterized as a Capital Lease Obligation; (t) Liens securing judgments not constituting an Event of Default under Section 9.01(e); and (u) any extension, renewal or replacement, in whole or in part, of any Lien described in Section 5.01 or this Section 5.04, provided that any such extension, renewal or replacement Lien is limited to the property or assets covered by the Lien extended, renewed or replaced.

Section 5.05 (Filing and Recording; No Duty to Perfect). The Trustee shall have no obligation to see to the recording, filing, re-recording or re-filing of any financing statement, continuation statement or other instrument required to perfect or maintain the perfection of any Lien granted pursuant to Section 5.02, nor any obligation to determine the priority of any such Lien or to monitor the financial or other condition of the Issuer or any Restricted Subsidiary; any such obligation, if it exists at all, is the Issuer's, and the Trustee may rely conclusively on an

Officer's Certificate stating that all such filings and recordings necessary to perfect or continue the perfection of such Lien have been made.

ARTICLE VI. LIMITATION ON RESTRICTED PAYMENTS

Section 6.01. The Issuer shall not, and shall not permit any Restricted Subsidiary to, directly or indirectly: (a) declare or pay any dividend or make any distribution on account of the Issuer's Capital Stock; (b) purchase, redeem or otherwise acquire or retire for value any Capital Stock of the Issuer; (c) make any principal payment on, purchase, redeem, defease or otherwise acquire or retire for value any Indebtedness that is subordinated to the Notes, prior to any scheduled maturity; or (d) make any Restricted Investment (each, a "Restricted Payment"), unless, at the time of and after giving effect to such Restricted Payment, no Default or Event of Default has occurred and is continuing, and the aggregate amount of all Restricted Payments made after the date of this Indenture does not exceed the sum of (i) a cumulative build-up basket calculated by reference to a specified percentage of cumulative Consolidated Net Income for the period from the Issue Date, plus (ii) the net cash proceeds of certain Capital Stock issuances and capital contributions received after the Issue Date, plus (iii) other customary additions described in the definition of the Restricted Payments basket.

Section 6.02 (Permitted Payments). Notwithstanding Section 6.01, the Issuer and its Restricted Subsidiaries may make the following Restricted Payments, each of which is excluded from the basket calculated under Section 6.01 (except as otherwise stated): (a) the payment of any dividend within 60 days after the date of declaration, if at the date of declaration such payment would have complied with Section 6.01; (b) the redemption, repurchase, retirement or other acquisition of Capital Stock of the Issuer in exchange for, or out of the net cash proceeds of a substantially concurrent Equity Offering, provided such net cash proceeds are excluded from the cumulative build-up basket under Section 6.01(ii); (c) the repurchase, redemption or other acquisition of Equity Interests held by current or former officers, directors, employees or consultants of the Issuer or any Restricted Subsidiary, or their permitted transferees, upon death, disability, retirement or termination of employment, in an aggregate amount not to exceed a customary annual dollar cap plus unused amounts carried forward from prior years; (d) the payment of Restricted Payments made to allow any direct or indirect parent of the Issuer to pay franchise, excise and similar taxes and other fees and expenses required to maintain its corporate existence; (e) Investments in Unrestricted Subsidiaries not to exceed a specified basket amount; (f) the declaration and payment of dividends to, or the making of loans to, any direct or indirect parent of the Issuer in amounts required for such parent to pay income taxes attributable to the taxable income of the Issuer and its Restricted Subsidiaries, to the extent such income is includible in such parent's consolidated tax return; (g) the declaration and payment of dividends on Disqualified Stock issued in accordance with Section 14.01 or Section 14.02, to the extent such dividends are included in the definition of Consolidated Interest Expense; (h) any Restricted Payment used to fund the Transactions and the fees and expenses related to the Transactions, including any payments made in connection with the closing of the transaction giving rise to the Issue Date; (i) payments made or expected to be made by the Issuer or any Restricted Subsidiary in respect of withholding or similar taxes payable upon exercise, delivery or vesting of Capital Stock by any future, current or former officer, director, manager, employee or consultant, and any repurchases of Capital Stock deemed to occur upon exercise, delivery or vesting of stock options, warrants or other rights to the extent such Capital Stock represents all or a

portion of the exercise price, or withholding obligation with respect thereto; (j) the repurchase, redemption or other acquisition or retirement for value of any Subordinated Indebtedness pursuant to provisions similar to Article XV or Article IV, provided that all Notes tendered in connection with an Asset Sale Offer or Change of Control Offer that the Issuer is required to make have been repurchased, redeemed or acquired for value; (k) other Restricted Payments in an aggregate amount not to exceed a specified dollar basket since the Issue Date; and (l) any Restricted Payment made in connection with, and using the Excluded Contributions, up to the aggregate amount of Excluded Contributions actually received by the Issuer.

Section 6.03 (Calculation Conventions). For purposes of determining compliance with Section 6.01, in the event that a Restricted Payment or the Indebtedness giving rise thereto meets the criteria of more than one of the categories of Permitted Payments described in Section 6.02, or is entitled to be incurred pursuant to any provision of Section 6.01, the Issuer, in its sole discretion, may classify or divide such Restricted Payment (or portion thereof) on the date of its payment and may later reclassify all or any portion of such Restricted Payment in any manner that complies with this Article VI; provided that no reclassification may cause a Restricted Payment to become non-permitted retroactively, and any such election shall be set forth in an Officer's Certificate delivered to the Trustee at the time of such Restricted Payment or, if later, at the time of such reclassification.

Section 6.04 (Effect of Unrestricted Subsidiary Redesignation). If, at any time, a Restricted Subsidiary designated as an Unrestricted Subsidiary pursuant to Article XVIII is later redesignated as a Restricted Subsidiary, and the cumulative build-up basket under Section 6.01(i) was reduced at the time of the original designation by the amount of the Investment described in Section 18.01, no further reduction to that basket shall be made upon the redesignation, and the basket shall not be increased to reflect the redesignation except to the extent Consolidated Net Income of such redesignated Restricted Subsidiary is thereafter included in the Issuer's Consolidated Net Income for periods following the redesignation, in accordance with the ordinary operation of the definition of that term.

Section 6.05 (Restricted Payments Basket Increase Following an Equity Offering). Upon the consummation of an Equity Offering that results in the receipt by the Issuer of net cash proceeds, and to the extent such net cash proceeds are not otherwise applied pursuant to Section 3.02 or Section 6.02(b), the Issuer may elect, by delivering an Officer's Certificate to the Trustee, to include the net cash proceeds of such Equity Offering in the cumulative build-up basket under Section 6.01(ii) for purposes of calculating the amount available for Restricted Payments; provided that any net cash proceeds so included shall not thereafter also be available to satisfy the equity contribution requirement, if any, of any other basket or exception under this Indenture that by its own terms requires the proceeds not have been previously applied, so as to avoid the same dollar of net cash proceeds being counted more than once.

ARTICLE VII. REPORTS

Section 7.01. Whether or not the Issuer is subject to Section 13(a) or 15(d) of the Exchange Act, the Issuer shall furnish to the Trustee and, upon request, to Holders and prospective purchasers of the Notes: (a) within the time periods specified in the SEC's rules and regulations, all annual and quarterly financial information that would be required to be contained in a filing with the SEC on Forms 10-K and 10-Q, including a "Management's Discussion and Analysis of Financial Condition and Results of Operations" and, with respect to the annual information only, an audit report; and (b) within 15 Business Days after the time period specified for filing a Form 8-K, notice of the

events described therein. The Compliance Certificate required under the Credit Agreement is delivered separately to the Administrative Agent and does not itself satisfy this Section 7.01.

Section 7.02 (Officer's Certificate as to Default). The Issuer shall deliver to the Trustee, within 90 days after the end of each fiscal year, an Officer's Certificate stating that, in the course of the performance by the signing Officer of his or her duties as an Officer of the Issuer, the signing Officer would normally have knowledge of any default by the Issuer in the performance or observance of any of the terms, provisions and conditions of this Indenture, and further stating whether or not the signing Officer has knowledge of any such default and, if so, specifying each such default and the nature and status thereof.

Section 7.03 (Website Posting). Any information, document or report required to be delivered pursuant to Section 7.01 shall be deemed delivered to the Trustee and the Holders if such information, document or report (or any portion thereof) is posted on the Issuer's website or filed with the SEC via its EDGAR system, or any successor electronic delivery procedure, and is publicly available; provided that the Issuer shall notify the Trustee in writing when any such information, document or report has been so posted or filed. The Trustee shall have no obligation to determine whether any such posting or filing has occurred and no obligation to participate in or monitor internet websites for the purpose of ascertaining any such posting or filing.

Section 7.04 (Non-Guarantor Restricted Subsidiaries Summary Financial Information). If any Restricted Subsidiaries are not Guarantors, the annual and quarterly information required by Section 7.01 shall include a reasonably detailed presentation, either on the face of the financial statements or in the footnotes thereto, of the financial condition and results of operations of the Issuer and its Restricted Subsidiaries that are Guarantors, on the one hand, and the Non-Guarantor Restricted Subsidiaries, on the other hand, to the extent required by the SEC's Regulation S-X applicable to registered debt offerings, or, if the Issuer reasonably determines that such presentation is not required by Regulation S-X, a reasonably detailed description of the aggregate assets, liabilities, revenue and net income of the Non-Guarantor Restricted Subsidiaries.

Section 7.05 (Trustee's Limited Role). The Trustee shall have no obligation to review any information, document or report delivered pursuant to this Article VII for the purpose of determining compliance with any covenant in this Indenture, or for any other purpose, and delivery of any such information, document or report to the Trustee is for informational purposes only, so that the Trustee's receipt of such information, document or report shall not constitute actual or constructive notice or knowledge of any information contained therein, including the Issuer's compliance or non-compliance with any covenant (any such compliance or non-compliance being determined solely from an Officer's Certificate or other notice actually received by a Responsible Officer of the Trustee).

ARTICLE VIII. DEFEASANCE

Section 8.01. The Issuer may, at its option, elect to have either Legal Defeasance or Covenant Defeasance apply to the Notes upon irrevocable deposit with the Trustee, in trust, of money or U.S. government obligations sufficient (in the opinion of a nationally recognized firm of independent public accountants) to pay the principal of, premium, if any, and interest on the Notes to maturity or redemption, together with delivery of an Opinion of Counsel confirming that Holders will not recognize income, gain or loss for federal income tax purposes as a result of such deposit and defeasance, and confirming that no Default has occurred and is continuing on the date of such deposit.

Section 8.02 (Conditions to Legal Defeasance). In addition to the requirements of Section 8.01, Legal Defeasance requires that: (a) the Issuer shall have delivered to the Trustee an Opinion of Counsel confirming that (i) the Issuer has received from, or there has been published by, the United States Internal Revenue Service a ruling, or (ii) since the Issue Date there has been a change in applicable federal income tax law, in either case to the effect that Holders will not recognize income, gain or loss for federal income tax purposes as a result of the Legal Defeasance and will be subject to federal income tax on the same amounts, in the same manner and at the same times as would have been the case if the Legal Defeasance had not occurred; (b) no Default or Event of Default has occurred and is continuing on the date of the deposit (other than a Default or Event of Default resulting from the incurrence of Indebtedness, the proceeds of which are used to fund such deposit); and (c) the Legal Defeasance does not result in a breach or violation of, or constitute a default under, the Credit Agreement or any other material agreement of the Issuer or any Restricted Subsidiary.

Section 8.03 (Conditions to Covenant Defeasance). In addition to the requirements of Section 8.01, Covenant Defeasance requires that no Default or Event of Default has occurred and is continuing on the date of the deposit (other than a Default or Event of Default resulting from the incurrence of Indebtedness, the proceeds of which are used to fund such deposit). Upon the exercise of Covenant Defeasance, the Issuer and any Guarantor are released from their obligations under the covenants contained in Articles IV through VI and Articles XIV through XX, and the Events of Default described in Section 9.01(c) with respect to such covenants and Section 9.01(d) shall not thereafter constitute Events of Default, but the remainder of this Indenture and the Notes shall remain in full force and effect as if no Covenant Defeasance had occurred.

Section 8.04 (Survival of Certain Obligations). Notwithstanding the exercise of either Legal Defeasance or Covenant Defeasance, the Issuer's obligations in respect of the Notes to register the transfer or exchange of Notes, to replace mutilated, destroyed, lost or stolen Notes, to maintain an office or agency for the payment of Notes, and to hold money for security payments in trust, together with the Trustee's and the Issuer's obligations in connection therewith, shall survive until the Notes are no longer outstanding. Thereafter, the Issuer's obligations under Section 8.05 (Repayment to Issuer; Unclaimed Money) and in respect of the compensation and indemnification of the Trustee shall survive.

Section 8.05 (Repayment to Issuer; Unclaimed Money). The Trustee and the Paying Agent shall promptly pay to the Issuer any excess money held by them in trust for the payment of principal, premium, if any, or interest on the Notes that remains unclaimed for two years after the date upon which such payment was due, subject to applicable unclaimed-property and escheat law; the Holder of a Note entitled to such money must thereafter look only to the Issuer for payment, as a general, unsecured creditor, and the Trustee and the Paying Agent shall have no further liability with respect to such money.

Section 8.06 (Deposits Held in Trust; No Reinvestment Risk to Trustee). Money and U.S. Government Obligations deposited with the Trustee pursuant to Section 8.01 shall be held in a segregated trust account and shall not be commingled with any other funds held by the Trustee, and the Trustee shall have no obligation to invest or reinvest such money or U.S. Government Obligations, and no obligation for any diminution in value that may result from any investment or reinvestment made pursuant to written direction of the Issuer; the Issuer shall be solely

responsible for the sufficiency of any deposit made under this Article VIII, as confirmed by the opinion of a nationally recognized firm of independent public accountants referred to in Section 8.01.

ARTICLE IX. EVENTS OF DEFAULT AND REMEDIES

Section 9.01. Each of the following constitutes an "Event of Default": (a) default for 30 days in the payment when due of interest on the Notes; (b) default in the payment when due of principal of or premium, if any, on the Notes at maturity, upon redemption or otherwise; (c) failure by the Issuer to comply with any covenant in this Indenture (other than a default under clause (a) or (b)) for 60 days after written notice by the Trustee or Holders of at least 25% in principal amount of the Notes; (d) a default under any Indebtedness of the Issuer or a Restricted Subsidiary (including the Credit Agreement) that results in acceleration of such Indebtedness in an aggregate principal amount in excess of a specified threshold; (e) failure to pay final, non-appealable judgments aggregating in excess of a specified threshold within 60 days; and (f) certain events of bankruptcy, insolvency or reorganization with respect to the Issuer or a Significant Subsidiary. Upon an Event of Default described in clause (f), the principal, premium, if any, and accrued interest on the Notes shall become immediately due and payable without further act; upon any other Event of Default, the Trustee or Holders of at least 25% in principal amount of the Notes may declare the Notes immediately due and payable.

Section 9.02 (Other Remedies). If an Event of Default occurs and is continuing, the Trustee may pursue any available remedy to collect the payment of principal, premium, if any, or interest on the Notes or to enforce the performance of any provision of the Notes or this Indenture. The Trustee may maintain a proceeding even if it does not possess any of the Notes or does not produce any of them in the proceeding. A delay or omission by the Trustee or any Holder in exercising any right or remedy accruing upon an Event of Default shall not impair the right or remedy or constitute a waiver of or acquiescence in the Event of Default. All remedies are cumulative to the extent permitted by law.

Section 9.03 (Waiver of Past Defaults). Holders of at least a majority in principal amount of the outstanding Notes by notice to the Trustee may waive an existing Default or Event of Default and its consequences, except a continuing Default or Event of Default in the payment of the principal of, premium, if any, or interest on any Note, which may be waived only with the consent of each affected Holder. Upon any such waiver, such Default or Event of Default shall cease to exist, and any Event of Default arising therefrom shall be deemed to have been cured for every purpose of this Indenture, but no such waiver shall extend to any subsequent or other Default or impair any right consequent thereon.

Section 9.04 (Rights of Holders to Receive Payment). Notwithstanding any other provision of this Indenture, the right of any Holder to receive payment of principal, premium, if any, and interest on such Holder's Note, on or after the respective due dates expressed in such Note, or to bring suit for the enforcement of any such payment on or after such respective dates, shall not be impaired or affected without the consent of such Holder.

Section 9.05 (Control by Majority). Holders of a majority in principal amount of the outstanding Notes may direct the time, method and place of conducting any proceeding for any remedy available to the Trustee or of exercising any trust or power conferred on the Trustee, subject to the limitations set forth in the Trust Indenture Act; provided that the Trustee may refuse to follow any direction that conflicts with law or this Indenture, that the Trustee

determines may be unduly prejudicial to the rights of other Holders not joining in the direction, or that would involve the Trustee in personal liability, and the Trustee may take any other action it deems proper that is not inconsistent with any such direction received from Holders.

Section 9.06 (Limitation on Suits). A Holder may not pursue any remedy with respect to this Indenture or the Notes unless: (a) such Holder has previously given the Trustee written notice that an Event of Default is continuing; (b) Holders of at least 25% in principal amount of the outstanding Notes have made a written request to the Trustee to pursue the remedy; (c) such Holder or Holders have offered the Trustee reasonable security or indemnity against any costs, expenses and liabilities to be incurred in complying with such request; (d) the Trustee has not complied with such request within 60 days after receipt of the request and the offer of security or indemnity; and (e) during such 60-day period, Holders of a majority in principal amount of the outstanding Notes have not given the Trustee a direction inconsistent with such request. This Section 9.06 does not affect the right of a Holder to pursue a remedy under Section 9.04, which right is absolute and unconditional.

Section 9.07 (Collection Suit by Trustee). If an Event of Default described in clause (a) or (b) of Section 9.01 occurs and is continuing, the Trustee may recover judgment against the Issuer, and any Guarantor, for the whole amount then due and owing on the Notes (with interest on overdue principal and, to the extent lawful, on overdue installments of interest, at the rate borne by the Notes) and, in addition, such further amount as shall be sufficient to cover the costs and expenses of collection, including the reasonable compensation, expenses, disbursements and advances of the Trustee, its agents and counsel, without prejudice to any other right or remedy of the Trustee or any Holder.

Section 9.08 (Trustee May File Proofs of Claim). In case of any judicial proceeding relative to the Issuer, any Guarantor, or their respective creditors or property, the Trustee shall be entitled, irrespective of whether the principal of the Notes shall then be due and payable, to file such proofs of claim and other papers or documents as may be necessary or advisable in order to have claims of the Trustee and the Holders allowed in any judicial proceedings relative to the Issuer, its creditors or its property, and to collect and receive any moneys or other property payable or deliverable on any such claims, and to distribute the same after the deduction of its reasonable charges and expenses; and any custodian, receiver, assignee, trustee, liquidator, sequestrator or other similar official in any such judicial proceeding is authorized to make payments to the Trustee, and to pay to the Trustee any amount due to it for its reasonable compensation, expenses, disbursements and advances, and any other amounts due it under Section 10.04 (Compensation and Indemnity), out of the estate in any such proceeding.

Section 9.09 (Priority). If the Trustee collects any money or property pursuant to this Article IX, it shall pay out such money or property in the following order: FIRST, to the Trustee for amounts due to it under Section 10.04 (Compensation and Indemnity); SECOND, to Holders for amounts due and unpaid on the Notes for principal, premium, if any, and interest, ratably, without preference or priority of any kind, according to the amounts due and payable on the Notes for principal, premium, if any, and interest, respectively; and THIRD, to the Issuer or to such party as a court of competent jurisdiction shall direct, including a Guarantor, if applicable. The Trustee may fix a record date and payment date for any payment to Holders pursuant to this Section 9.09.

Section 9.10 (Undertaking for Costs). In any suit for the enforcement of any right or remedy under this Indenture, or

in any suit against the Trustee for any action taken, suffered or omitted by it as Trustee, a court in its discretion may require the filing by any party litigant in such suit of an undertaking to pay the costs of such suit, and such court may in its discretion assess reasonable costs, including reasonable attorneys' fees, against any party litigant in such suit, having due regard to the merits and good faith of the claims or defenses made by such party litigant; provided that this Section 9.10 does not apply to a suit by the Trustee, a suit by a Holder pursuant to Section 9.04, or a suit by Holders of more than 10% in principal amount of the outstanding Notes.

ARTICLE X. TRUSTEE

Section 10.01. The Trustee undertakes to perform only such duties as are specifically set forth in this Indenture, and no implied covenants or obligations shall be read into this Indenture against the Trustee. The Trustee shall be under no obligation to exercise any of its rights or powers under this Indenture at the request of any Holder unless such Holder has offered to the Trustee reasonable security or indemnity against the costs, expenses and liabilities that might be incurred. The Trustee may resign upon 30 days' written notice, and may be removed by Holders of a majority in principal amount of the Notes.

Section 10.02 (Rights of Trustee). (a) The Trustee may rely and shall be protected in acting or refraining from acting upon any resolution, certificate, statement, instrument, opinion, report, notice, request, consent, order, bond, debenture, note, coupon, or other paper or document believed by it to be genuine and to have been signed or presented by the proper person or persons. The Trustee need not investigate any fact or matter stated in any such document.

(b) Before the Trustee acts or refrains from acting, it may require and shall be entitled to receive, and may rely upon, an officers' certificate and/or an opinion of counsel, which may be an opinion of counsel for the Company, as to any fact or matter, and such officers' certificate and/or opinion of counsel shall be full and complete authorization and protection in respect of any action taken or omitted by the Trustee in reliance thereon. In the case of any such application or request for action by the Trustee, the Company shall provide, if reasonably requested by the Trustee, an officers' certificate and/or an opinion of counsel as to the satisfaction of any condition precedent specified in this Indenture that is applicable to such action.

(c) The Trustee may consult with counsel of its selection, and the advice of such counsel or any Opinion of Counsel shall be full and complete authorization and protection in respect of any action taken or suffered or omitted by it hereunder in good faith and in reliance thereon.

(d) The Trustee shall not be under any obligation to exercise any of the rights or powers vested in it by this Indenture at the request, order or direction of any Holder pursuant to any provision of this Indenture, unless such Holder shall have offered to the Trustee security or indemnity satisfactory to it against the costs, expenses and liabilities which might be incurred by it in compliance with such request, order or direction. The Trustee may refuse to perform any duty or exercise any right or power unless it receives such security or indemnity.

(e) The Trustee shall not be liable for any action taken or omitted by it in good faith and believed by it to be authorized or within the discretion or rights or powers conferred upon it by this Indenture, nor shall the Trustee be responsible for any statement or recital herein or for any statement in any certificate or other document or instrument issued by the Company or any other person, or for the validity or sufficiency of this Indenture or any of the terms hereof or of any securities issued hereunder, or for the due execution hereof by the Company or for the form, character, genuineness, validity, value or enforceability of any collateral, if any. The Trustee shall not be bound to ascertain or inquire as to the performance or observance of any of the terms, conditions, covenants or agreements of this Indenture or of any document or instrument issued hereunder, but the Trustee may require and shall be entitled to receive, and may rely upon, an officers' certificate and/or an opinion of counsel as to the performance or observance of any such term, condition, covenant or agreement.

(f) The Trustee shall not be deemed to have notice of any default or Event of Default unless a Responsible Officer of the Trustee has actual knowledge thereof or the Trustee has received written notice of such default or Event of Default from the Company, any Paying Agent, any Authenticating Agent, any Registrar or any Holder. In the absence of any such notice or actual knowledge, the Trustee may conclusively assume that no default or Event of Default exists.

(g) The permissive rights of the Trustee enumerated herein shall not be construed as duties. The Trustee shall not be liable for any error of judgment made in good faith by a Responsible Officer or Responsible Officers of the Trustee, unless it shall be proved that the Trustee was negligent in ascertaining the pertinent facts.

(h) The Trustee shall not be required to give any bond or surety in respect of the execution of the trusts and powers under this Indenture or otherwise in respect of its duties thereunder.

(i) Any request or direction of the Company mentioned herein shall be sufficiently evidenced by an officers' certificate (unless other evidence in respect thereof be herein specifically prescribed). Any request or direction of any Holder may be evidenced by a written instrument signed by such Holder or by a proxy or attorney duly appointed by such Holder in writing.

(j) The Trustee may execute any of the trusts or powers hereunder and perform its duties hereunder directly or through or by agents, attorneys, custodians or nominees and shall not be responsible for any misconduct or negligence on the part of any such agent, attorney, custodian or nominee appointed with due care.

(k) The Trustee shall not be liable for any loss incurred in connection with the investment or reinvestment of any funds held by it in accordance with this Indenture, unless such loss is due to the negligence or bad faith of the Trustee. The Trustee may hold funds in uninvested form pending investment or distribution and shall have no liability for interest thereon.

(l) The rights, privileges, protections, immunities and benefits given to the Trustee, including its right to be indemnified, are extended to, and shall be enforceable by, the Trustee in each of its capacities hereunder, and by each agent, custodian and other person employed to act hereunder.

(m) The Trustee shall not be required to expend or risk its own funds or otherwise incur any financial liability in the performance of any of its duties or the exercise of any of its rights or powers if it shall have reasonable grounds for believing that repayment of such funds or adequate indemnity against such risk or liability is not reasonably assured to it.

(n) The Trustee may request that the Company deliver to the Trustee an officers' certificate setting forth the names of individuals and/or titles of officers authorized at such time to take specified actions pursuant to this Indenture, and the Trustee shall not be liable for acting upon any instructions or certificates purporting to have been signed by such individuals or officers and believed by the Trustee to be genuine.

(o) The Trustee shall have no duty to inquire as to the performance by the Company of any covenant contained in this Indenture, but the Trustee may, in its sole discretion, make such inquiry as it deems appropriate, and if the Trustee determines to make such inquiry, it may require an officers' certificate and/or an opinion of counsel with respect thereto.

(p) The Trustee shall not be responsible for monitoring or ensuring compliance with any provision of the Trust Indenture Act, including but not limited to Section 310(b), Section 311, Section 312, Section 313, Section 314 or Section 315(a), except to the extent expressly required by this Indenture or by the Trust Indenture Act. The Trustee may conclusively rely on certifications and opinions of counsel provided by the Company as to compliance with any such provision, unless a Responsible Officer has actual knowledge to the contrary.

(q) The Trustee may, with the consent of the Company, become the owner or pledgee of any securities issued under this Indenture and may transact business with the Company or any affiliate of the Company with the same rights it would have if it were not Trustee, except to the extent expressly limited by the Trust Indenture Act.

(r) The Trustee's rights to indemnification and reimbursement under this Indenture shall survive the resignation or removal of the Trustee and the satisfaction and discharge of this Indenture.

(s) No provision of this Indenture shall require the Trustee to expend or risk its own funds or otherwise incur any financial liability in the performance of any of its duties hereunder, or in the exercise of any of its rights or powers, if it shall have reasonable grounds for believing that repayment of such funds or adequate indemnity against such risk or liability is not reasonably assured to it.

(t) The Trustee shall not be required to take notice of any default or Event of Event of Default, or to take any action with respect thereto, unless and until notified in writing as provided in this Indenture, and all notices of defaults or Events of Default delivered to the Trustee shall be accompanied by such security or indemnity as the Trustee may reasonably require.

(u) In no event shall the Trustee be responsible or liable for special, indirect, punitive or consequential loss or damage of any kind whatsoever (including, but not limited to, loss of profit) irrespective of whether the Trustee has been advised of the likelihood of such loss or damage and regardless of the form of action.

(v) The Trustee may request and rely upon an opinion of counsel as to any question of law, and an officers' certificate as to any question of fact, and any such opinion of counsel or officers' certificate shall be full and complete authorization and protection in respect of any action taken or omitted by the Trustee in reliance thereon.

(w) The Trustee shall not be bound to make any investigation into the facts or matters stated in any resolution, certificate, statement, instrument, opinion, report, notice, request, consent, order, bond, debenture, note, coupon or other paper or document, but the Trustee, in its discretion, may make such further inquiry or investigation into such facts or matters as it may see fit, and, if the Trustee shall determine to make such further inquiry or investigation, it shall be entitled to examine the books, records and premises of the Company, personally or by agent or attorney, at the sole cost of the Company and without any liability to any Holder except for gross negligence or willful misconduct.

Section 10.03 (Individual Rights of Trustee). (a) The Trustee, in its individual or any other capacity, may become the owner or pledgee of any Securities and may otherwise deal with the Company or any Affiliate of the Company with the same rights it would have if it were not Trustee.

(b) Any Paying Agent, Registrar or other agent of the Company or of the Trustee may do the same with like rights and duties.

(c) Without limiting the generality of clause (a) of this Section 10.03, the Trustee, in its individual or any other capacity, may:

(i) accept deposits from, lend money to, and generally engage in any kind of business with the Company or any Affiliate of the Company, in each case as if it were not the Trustee;

(ii) become the owner or pledgee of any Securities or other obligations of the Company or any Affiliate of the Company, in each case as if it were not the Trustee;

(iii) act as trustee, agent, depositary or in any other capacity under any other indenture or agreement to which the Company or any Affiliate of the Company is a party, in each case as if it were not the Trustee; and

(iv) exercise any and all rights and remedies available to a holder of Securities in its individual capacity, including the right to enforce this Indenture, as if it were not the Trustee.

(d) The Trustee shall not be deemed to have any conflict of interest by reason of any transaction described in this Section 10.03, except to the extent required by Section 310(b) of the Trust Indenture Act. The Trustee shall not be liable for any loss or damage resulting from any such transaction.

(e) The rights and privileges of the Trustee under this Section 10.03 are in addition to, and not in limitation of, any other rights and privileges conferred upon the Trustee by this Indenture or by applicable law.

Section 10.04 (Trustee's Disclaimer). (a) The Trustee makes no representation as to and shall not be responsible for the validity, legality or sufficiency of this Indenture or of the Securities or any collateral or security interest purported to secure the Securities, or the accuracy, truthfulness or completeness of any recitals, statements, representations or warranties contained in this Indenture, the Securities or in any certificate, report, opinion, notice or other document or information required by the terms of this Indenture to be filed with or furnished to the Trustee by the Company pursuant to any provision of this Indenture, except for any such certificate, report, opinion, notice or other document or information prepared by the Trustee. The Trustee shall not be accountable for the use or application by the Company of any funds received by the Company from the sale of any Securities or the use or application of any moneys paid to the Company or any paying agent. The Trustee shall not be responsible for the performance by the Company or any other obligor of any of their respective covenants and obligations contained in this Indenture or in the Securities, and the Trustee shall not be deemed to have knowledge of any default or Event of Default unless a Responsible Officer of the Trustee has actual knowledge thereof or unless written notice of such default or Event of Default is given to the Trustee as provided in this Indenture. The duties and obligations of the Trustee shall be determined solely by the express provisions of this Indenture and the Trust Indenture Act, and no implied covenants, duties or obligations shall be read into this Indenture against or on behalf of the Trustee, except to the extent required by Section 315(a) of the Trust Indenture Act. The Trustee shall not be required to expend or risk its own funds or otherwise incur any financial liability in the performance of any of its duties hereunder or in the exercise of any of its rights and powers if there shall be reasonable grounds for believing that the repayment of such funds or adequate indemnity against such risk or liability is not reasonably assured to it.

(b) The recitals and statements contained in this Indenture and in the Securities shall be taken as the statements of the Company, and the Trustee does not assume any responsibility for their correctness. The Trustee makes no representations as to the value or condition of the property of the Company or any subsidiary or as to the title of the Company or any subsidiary to any property, real or personal, or as to the validity, sufficiency or enforceability of any security for the Securities or any lien securing the Securities, and the Trustee shall incur no liability or responsibility

in respect of any such matter. The Trustee shall not be responsible for the correctness of any statements in any registration statement, prospectus, offering circular or other disclosure document relating to the Securities or this Indenture, and the Trustee shall not be responsible for the use or application of any proceeds of the Securities by the Company.

(c) The Trustee shall not be deemed to have notice of any default or Event of Default unless a Responsible Officer of the Trustee has actual knowledge thereof or unless written notice of any default or Event of Default is given to the Trustee by the Company or by the Holders of at least ten percent in aggregate principal amount of the Outstanding Securities as provided in this Indenture. The Trustee shall not be charged with knowledge of any default or Event of Default under any other agreement or instrument of the Company or any subsidiary. In the absence of any such notice, the Trustee may conclusively assume that no default or Event of Default exists. The Trustee shall be under no duty to conduct any inquiry or investigation as to the occurrence of any default or Event of Default unless it has received notice as aforesaid, and the Trustee may rely upon any certificate or notice delivered to it by the Company or any Holder pursuant to this Indenture as sufficient evidence of the facts stated therein, except as otherwise provided in Section 315(b) of the Trust Indenture Act.

(d) No provision of this Indenture shall be construed to relieve the Trustee from liability for its own negligent action, its own negligent failure to act or its own willful misconduct, except that (i) the Trustee shall not be liable for any error of judgment made in good faith by a Responsible Officer unless it shall be proved that the Trustee was negligent in ascertaining the pertinent facts; (ii) the Trustee shall not be liable for any action taken, suffered or omitted to be taken by it in good faith and in reliance upon an opinion of counsel or upon any certificate or other document believed by it to be genuine and to have been signed or presented by the proper party or parties, unless the Trustee has acted negligently or with willful misconduct; and (iii) the Trustee shall not be liable for any loss or damage resulting from any action taken or omitted to be taken by it in good faith and reasonably believed by it to be authorized or within its discretion or rights and powers conferred upon it by this Indenture. The permissive rights and powers of the Trustee enumerated hereunder shall not be construed as duties. The Trustee shall not be required to give any bond or surety in respect of the execution of the trusts and powers under this Indenture.
Section 10.05 (Notice of Defaults). (a) If a Default or Event of Default occurs and is continuing and if a responsible officer of the Trustee has actual knowledge thereof, the Trustee shall mail, by first-class mail, postage prepaid, to each Holder of Securities at such Holder's address appearing in the Security Register, notice of such Default or Event of Default within ninety days after the occurrence thereof or, if later, within thirty days after a responsible officer of the Trustee has actual knowledge of the occurrence thereof, unless such Default or Event of Default shall have been cured or waived before the giving of such notice. The Trustee shall comply with the provisions of Section 315(b) of the Trust Indenture Act in connection with any notice given pursuant to this Section 10.05.

(b) The Trustee may withhold notice of any Default or Event of Default, other than a Default or Event of Default in the payment of the principal of or interest on any Security or in the payment of any sinking fund installment in

respect of any Security, if the Trustee in good faith determines that the withholding of such notice is in the interest of the Holders of the Securities.

(c) The Trustee shall not be deemed to have notice of any Default or Event of Default unless a responsible officer of the Trustee has actual knowledge thereof. For purposes of this Section 10.05, a responsible officer of the Trustee shall be deemed to have actual knowledge of a Default or Event of Default if (i) such officer has personal knowledge of the occurrence of such Default or Event of Default or (ii) written notice of such Default or Event of Default has been delivered to the Trustee by the Company, any Paying Agent or any Holder in accordance with this Indenture, specifying that such Default or Event of Default has occurred and describing the same.

(d) The Trustee shall not be liable to any Holder or to the Company for any failure to give notice of any Default or Event of Default in accordance with this Section 10.05 if such Default or Event of Default has been cured or waived before the expiration of the time period for the giving of such notice, or if the Trustee shall have withheld such notice in good faith in accordance with Section 10.05(b).

Section 10.06 (Reports by Trustee to Holders). (a) The Trustee shall transmit to the Holders of the Securities, in the manner and to the extent provided in Section 313(c) of the Trust Indenture Act, a brief report dated as of the first day of the month in which the first annual report is due, with respect to the matters required by Section 313(a) of the Trust Indenture Act, within sixty days after the date of such first annual report, and annually thereafter within sixty days after the date of the preceding annual report. The report required by this Section 10.06(a) shall include, to the extent applicable, the following information: (i) the Trustee's eligibility and qualification under Section 310(a) of the Trust Indenture Act; (ii) the Trustee's acceptance of its trust and its capacity; (iii) any action taken by the Trustee in the performance of its duties under this Indenture which materially affects the Securities, except action taken in the ordinary course of its business; (iv) any change in the Trustee's ownership or control or in the Trustee's voting power or interest under Section 310(b) of the Trust Indenture Act; (v) any change in the Trustee's officers directly responsible for the administration of this Indenture; (vi) any change in the Trustee's financial condition; and (vii) such other information as the Commission may by rule prescribe.

(b) The Trustee shall transmit to the Holders of the Securities, in the manner and to the extent provided in Section 313(c) of the Trust Indenture Act, a brief report dated as of the occurrence of any event with respect to which a report is required to be transmitted to Holders by Section 313(c) of the Trust Indenture Act, within ninety days after the occurrence of such event.

(c) A copy of each report required by this Section 10.06 shall be filed with the Commission, with each stock exchange on which the Securities are listed and with the Company, at the time such report is transmitted to the Holders.

Section 10.07 (Compensation and Indemnity). (a) The Company agrees to pay to the Trustee from time to time such compensation as the Company and the Trustee shall from time to time agree in writing for all services rendered by

the Trustee hereunder (which compensation shall not be limited by any provision of law in regard to compensation of a trustee of an express trust) and to reimburse the Trustee upon its request for all reasonable out-of-pocket expenses, disbursements and advances incurred or made by the Trustee in the administration or execution of this Indenture and in the exercise and performance of any of its powers or duties hereunder, including, without limitation, the reasonable compensation, expenses and disbursements of its agents, attorneys, counsel and accountants. The Company also agrees to indemnify the Trustee for, and to hold it harmless against, any and all loss, liability, damage, claim or expense incurred without negligence or willful misconduct on the part of the Trustee, arising out of or in connection with the acceptance or administration of this Indenture, including the costs and expenses of defending itself against any claim or liability in connection with the exercise or performance of any of its powers or duties hereunder.

(b) The Trustee shall have a lien prior to the claims of the Holders of all Securities upon all property and funds held or collected by the Trustee (other than funds held in trust for the payment of principal of and interest on the Securities) for the amounts referred to in subsection (a) of this Section, and the Trustee may reimburse itself out of such property and funds for any such amounts, except that the Trustee shall have no lien upon any funds held in trust for the payment of principal of or interest on the Securities.

(c) The Company also agrees to indemnify the Trustee for, and to hold it harmless against, any loss, liability or expense reasonably incurred by it in connection with any action taken or omitted by it in good faith in accordance with the direction of the Holders of a majority in principal amount of the Outstanding Securities effected by an Officers' Certificate, relating to the time, method and place of conducting any proceeding for any remedy available to the Trustee, or exercising any trust or power conferred upon the Trustee, under this Indenture.

(d) None of the provisions of this Section 10.07 shall relieve the Trustee from liability for its own negligent action, its own negligent failure to act, or its own willful misconduct, except that:

(i) the Trustee shall not be liable for any error of judgment made in good faith by a Responsible Officer, unless it shall be proved that the Trustee was negligent in ascertaining the pertinent facts; and

(ii) the Trustee shall not be liable with respect to any action taken or omitted to be taken by it in good faith in accordance with the direction of the Holders of a majority in principal amount of the Outstanding Securities relating to the time, method and place of conducting any proceeding for any remedy available to the Trustee, or exercising any trust or power conferred upon the Trustee, under this Indenture.

The provisions of this subsection (d) are subject to the provisions of Section 315(a) of the TIA.

(e) No provision of this Section 10.07 shall require the Trustee to expend or risk its own funds or otherwise incur

any financial liability in the performance of any of its duties hereunder, or in the exercise of any of its rights or powers, if it shall have reasonable grounds for believing that repayment of such funds or adequate indemnity against such risk or liability is not reasonably assured to it.

(f) The obligations of the Company under this Section 10.07 shall survive the payment in full of the Securities, the discharge of this Indenture and the resignation or removal of the Trustee.

Section 10.08 (Replacement of Trustee). (a) The Company may remove the Trustee if:

(i) the Trustee fails to comply with Section 310(b) of the Trust Indenture Act after written request by the Company or any Holder;

(ii) the Trustee is adjudged bankrupt or insolvent;

(iii) a receiver, custodian or other similar official is appointed for all or substantially all of the property of the Trustee and such appointment is not discharged within sixty days;

(iv) the Trustee makes an assignment for the benefit of its creditors;

(v) the Trustee consents to the appointment of a receiver, custodian or other similar official for all or substantially all of its property; or

(vi) the Trustee becomes incapable of acting.

(b) If the Company removes the Trustee pursuant to clause (a) of this Section 10.08, the Company shall appoint a successor Trustee in accordance with this Section 10.08. The Trustee may also be removed at any time by act of the Holders of a majority in principal amount of the Outstanding Notes, delivered to the Trustee and to the Company. In the event of such removal by the Holders, the Holders shall appoint a successor Trustee in accordance with this Section 10.08.

(c) If the Trustee resigns or is removed, or if a vacancy exists in the office of Trustee for any reason, the Company shall promptly appoint a successor Trustee. If the Company fails to appoint a successor Trustee within sixty days after such resignation, removal or vacancy, the outgoing Trustee or any Holder may petition any court of competent jurisdiction for the appointment of a successor Trustee.

(d) If the Trustee fails to comply with Section 310(b) of the Trust Indenture Act, and the Company fails to remove the Trustee and appoint a successor Trustee within sixty days after such failure by the Trustee, any Holder who has been a bona fide holder of the Notes for at least six months may petition any court of competent jurisdiction for the

removal of the Trustee and the appointment of a successor Trustee. The Company may also remove the Trustee and appoint a successor Trustee under such circumstances in accordance with this Section 10.08.

(e) Any resignation or removal of the Trustee and any appointment of a successor Trustee shall become effective upon acceptance of appointment by the successor Trustee. The successor Trustee shall execute, acknowledge and deliver to the outgoing Trustee and to the Company an instrument accepting such appointment. Upon such acceptance, the successor Trustee shall be vested with all the rights, powers, trusts, duties and obligations of the outgoing Trustee, and the outgoing Trustee shall be discharged from further obligations under this Indenture, but nothing in this Section 10.08 shall discharge the outgoing Trustee from any obligations arising from its own acts or omissions as Trustee.

(f) Upon appointment of a successor Trustee, the Company shall give notice of such appointment to all Holders as provided in this Indenture. The Company shall also give notice of any resignation or removal of the Trustee to all Holders as provided in this Indenture.

(g) Any corporation into which the Trustee is merged or converted or with which it is consolidated, or any corporation resulting from any merger, conversion or consolidation to which the Trustee is a party, or any corporation to which substantially all the corporate trust business of the Trustee is transferred, shall be the successor Trustee hereunder without the execution or filing of any instrument or any further act.

Section 10.09 (Successor Trustee by Merger, Etc.). Any corporation into which the Trustee may be merged or converted or with which it may be consolidated, or any corporation resulting from any merger, conversion or consolidation to which the Trustee shall be a party, or any corporation succeeding to all or substantially all of the corporate trust business of the Trustee, shall be the successor of the Trustee hereunder and shall have and succeed to all of the rights, powers, trusts, duties, immunities and obligations of the Trustee hereunder, with like effect as if originally named as the Trustee, without the execution or filing of any paper or any further act on the part of any of the parties hereto; provided, however, that such successor corporation shall be otherwise eligible under Section 10.10 of this Indenture.

Section 10.10 (Eligibility; Disqualification). (a) There shall at all times be a Trustee hereunder that is eligible to act as Trustee under Section 310(a) of the Trust Indenture Act. The Trustee shall be a corporation organized and doing business under the laws of the United States of America, any State or Territory thereof, or the District of Columbia, authorized under such laws to exercise corporate trust powers, and subject to supervision or examination by Federal, State, Territorial, or District of Columbia authority. The Trustee shall have a combined capital and surplus of at least one hundred fifty thousand dollars, as set forth in its most recent annual report of condition or, if the Trustee is a bank or trust company, as set forth in its most recent report of condition.

(b) If at any time the Trustee shall cease to be eligible in accordance with the provisions of this Section 10.10, it shall resign immediately in the manner and with the effect specified in this Article X.

(c) The Trustee shall comply with Section 310(b) of the Trust Indenture Act with respect to disqualification for conflicting interests. Without limiting the foregoing, the Trustee shall be subject to the following provisions:

(i) If the Trustee has or shall acquire any conflicting interest, as defined in Section 310(b) of the Trust Indenture Act, the Trustee shall, within ninety days after ascertaining that it has such conflicting interest, either eliminate such conflicting interest or resign as Trustee in the manner and with the effect specified in this Article X.

(ii) The Trustee shall not be deemed to have a conflicting interest by reason of any ownership of securities of the Company or any other obligor under this Indenture, or by reason of any other relationship or transaction, if such ownership, relationship or transaction is permitted by Section 310(b) of the Trust Indenture Act or by any rule or regulation of the Commission thereunder.

(iii) To the extent permitted by the Trust Indenture Act, the Trustee may continue to act as Trustee pending the appointment of a successor Trustee and the confirmation thereof in accordance with the provisions of this Article X.
Section 10.11 (Preferential Collection of Claims Against Company). (a) The Trustee shall be subject to the provisions of Section 311(a) of the Trust Indenture Act. If the Trustee shall have or shall acquire any claim against the Company, directly or indirectly, secured or unsecured, other than a claim for the compensation and expenses of the Trustee, and if a default shall occur and be continuing in the payment of the principal of or any premium or interest on any of the Securities, the Trustee shall, within thirty days after the occurrence of such default, either (i) exhaust all reasonable efforts to collect such claim, or (ii) surrender such claim to the Company.

(b) Any amount collected by the Trustee on any claim against the Company referred to in subsection (a) of this Section 10.11 shall be applied by the Trustee in the following order: (i) first, to the payment of the principal of and premium, if any, and interest on the Securities then due and unpaid, ratably, without preference or priority of any kind, according to the amounts due and payable on such Securities; (ii) second, to the payment of the reasonable compensation, expenses and indemnities of the Trustee and all other amounts owing to the Trustee under this Indenture; and (iii) third, to the payment of the remainder, if any, to the Company, its successors or assigns, or to whomsoever may be lawfully entitled to receive such remainder.

(c) The Trustee shall not be deemed to hold any claim against the Company for purposes of this Section 10.11 by reason of the ownership or acquisition of Securities or coupons, or by reason of any claim for the compensation and expenses of the Trustee under this Indenture.

(d) The provisions of this Section 10.11 shall be construed in accordance with, and shall be subject to, the provisions of Section 311(a) of the Trust Indenture Act.
Section 10.12 (Trustee's Application for Instructions). If, at any time, the Trustee is unable to decide, in its

reasonable discretion, between alternative courses of action, or is unsure of the application of any provision of this Indenture, or is unsure whether any notice received by it is genuine or contains erroneous information, the Trustee may deliver a written notice to the Issuer requesting written instructions as to the course of action to be taken by the Trustee, and the Trustee shall not be liable for any action it takes or omits to take in good faith in accordance with instructions it receives from an Officer of the Issuer in response to any such notice; if the Trustee does not receive such instructions within 10 Business Days after it has delivered such notice, it may, but shall not be obligated to, take or refrain from taking any action, as it deems to be in the best interests of the Holders.

ARTICLE XI. AMENDMENTS, SUPPLEMENTS AND WAIVERS

Section 11.01. Except as otherwise provided, this Indenture and the Notes may be amended, supplemented or waived with the consent of the Holders of at least a majority in principal amount of the Notes then outstanding. Without the consent of each Holder affected, however, no amendment may, among other things, reduce the principal of or change the fixed maturity of any Note, reduce the rate of or change the time for payment of interest, reduce the redemption price payable upon a Change of Control offer, or make any change to this Article XI's own consent thresholds.

Section 11.02 (Amendments Without Consent of Holders). Notwithstanding Section 11.01, the Issuer and the Trustee may amend or supplement this Indenture or the Notes without the consent of any Holder to (a) cure any ambiguity, defect or inconsistency; (b) provide for the assumption of the Issuer's obligations under this Indenture by a successor in accordance with Article XX; (c) add Guarantees with respect to the Notes in accordance with Article XIX; (d) add to the covenants of the Issuer for the benefit of Holders or surrender any right or power conferred upon the Issuer; (e) make any change that does not adversely affect the legal rights of any Holder in any material respect; (f) provide for the issuance of additional Notes in accordance with the limitations set forth in this Indenture; or (g) conform the text of this Indenture or the Notes to any provision described in an offering document for the Notes, to the extent such provision was intended to be a substantially verbatim recitation of a provision of this Indenture or the Notes.

Section 11.03 (Revocation and Effect of Consents). Until an amendment, supplement or waiver becomes effective, a consent to it by a Holder is a continuing consent by the Holder and every subsequent Holder of a Note or portion of a Note that evidences the same debt as the consenting Holder's Note, even if notation of the consent is not made on any Note. Any such Holder or subsequent Holder, however, may revoke the consent as to its Note if the Trustee receives the notice of revocation before the date the amendment, supplement or waiver becomes effective. An amendment, supplement or waiver becomes effective in accordance with its terms and thereafter binds every Holder.

Section 11.04 (Trust Indenture Act; Effect of Qualification). Every amendment or supplement to this Indenture or the Notes shall comply with the Trust Indenture Act as then in effect. If any amendment or supplement to this Indenture or the Notes conflicts with any provision of the Trust Indenture Act required to be part of and govern this Indenture, the provisions of the Trust Indenture Act shall control. The Trustee may, but shall not be obligated to, enter into any amendment or supplement that affects the Trustee's own rights, duties or immunities under this Indenture or otherwise.

ARTICLE XII. SATISFACTION AND DISCHARGE

Section 12.01. This Indenture will be discharged and will cease to be of further effect as to all Notes when either all Notes theretofore authenticated have been delivered to the Trustee for cancellation, or all Notes not theretofore delivered for cancellation have become due and payable and the Issuer has irrevocably deposited with the Trustee funds sufficient to pay all amounts due on such Notes, and the Issuer has paid all other sums payable under this Indenture.

Section 12.02 (Application of Trust Funds; Indemnification). Subject to Section 8.05, all money and U.S. Government Obligations held by the Trustee pursuant to Section 12.01 shall be held in trust and applied by it, in accordance with the provisions of the Notes and this Indenture, to the payment, either directly or through any Paying Agent, to the Holders of the Notes for whose payment such money or U.S. Government Obligations have been deposited, of all sums due and to become due thereon for principal, premium, if any, and interest. The Issuer shall reimburse the Trustee for any properly incurred fees and expenses thereafter reasonably and properly incurred by the Trustee in connection with this Section 12.02 and indemnify the Trustee against any loss or liability incurred by it in connection therewith, except any such loss or liability due to the Trustee's own negligence or willful misconduct.

Section 12.03 (Reinstatement). If the Trustee or the Paying Agent is unable to apply any money or U.S. Government Obligations deposited pursuant to Section 12.01 in accordance with this Article XII by reason of any legal proceeding or by reason of any order or judgment of any court or governmental authority enjoining, restraining or otherwise prohibiting such application, the Issuer's and any Guarantor's obligations under this Indenture and the Notes shall be revived and reinstated as though no deposit had occurred pursuant to Section 12.01 until such time as the Trustee or Paying Agent is permitted to apply all such money or U.S. Government Obligations in accordance with this Article XII; provided that if the Issuer has made any payment of principal, premium, if any, or interest on any Notes because of the reinstatement of its obligations, the Issuer shall be subrogated to the rights of the Holders of such Notes to receive such payment from the money or U.S. Government Obligations held by the Trustee or Paying Agent.

Section 12.04 (Survival of Trustee's Rights). Notwithstanding the satisfaction and discharge of this Indenture pursuant to Section 12.01, the Issuer's and any Guarantor's obligations to indemnify and to pay the reasonable compensation and expenses of the Trustee, and the Trustee's rights, protections and immunities under this Indenture in respect of any acts or omissions occurring at or prior to the date of discharge, shall survive such satisfaction and discharge until the Notes are no longer outstanding and thereafter for so long as any claim in respect of the Trustee's own performance under this Indenture might be asserted.

ARTICLE XIII. MISCELLANEOUS

Section 13.01. This Indenture and the Notes shall be governed by, and construed in accordance with, the laws of the State of New York, without regard to conflicts-of-laws principles that would require the application of the laws of another jurisdiction. No director, officer, employee, incorporator or stockholder of the Issuer, as such, shall have any liability for any obligations of the Issuer under the Notes or this Indenture. This Indenture may be executed in any number of counterparts, each of which shall be an original, but all of which together shall constitute one instrument. All notices to the Trustee or the Issuer shall be in writing and delivered by hand, first-class mail or a nationally recognized overnight courier.

Section 13.02 (Communication by Holders with Other Holders). Holders may communicate pursuant to Section 312(b) of the Trust Indenture Act with other Holders with respect to their rights under this Indenture or the Notes. The Issuer, the Trustee, the Registrar and anyone else shall have the protection of Section 312(c) of the Trust Indenture Act.

Section 13.03 (No Adverse Interpretation of Other Agreements). This Indenture may not be used to interpret any other indenture, loan or debt agreement of the Issuer or any Restricted Subsidiary, including the Credit Agreement. Any such indenture, loan or debt agreement may not be used to interpret this Indenture; the two instruments are separately negotiated documents that may use the same defined term to mean different things, as each instrument's own text separately provides.

Section 13.04 (Successors). All agreements of the Issuer in this Indenture and the Notes shall bind its successors. All agreements of the Trustee in this Indenture shall bind its successors.

Section 13.05 (Severability). In case any provision in this Indenture or in the Notes shall be invalid, illegal or unenforceable, the validity, legality and enforceability of the remaining provisions shall not in any way be affected or impaired thereby, and this Indenture and the Notes shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein.

Section 13.06 (Table of Contents; Headings). The table of contents, cross-reference sheet and headings of the Articles and Sections of this Indenture have been inserted for convenience of reference only, are not to be considered a part of this Indenture and shall in no way modify or restrict any of the terms or provisions hereof.

Section 13.07 (Acts of Holders). Any request, demand, authorization, direction, notice, consent, waiver or other action provided by this Indenture to be given or taken by Holders may be embodied in and evidenced by one or more instruments of substantially similar tenor signed by such Holders in person or by an agent duly appointed in writing; and, except as herein otherwise expressly provided, such action shall become effective when such instrument or instruments are delivered to the Trustee, and, where it is hereby expressly required, to the Issuer. Proof of execution of any such instrument, or of a writing appointing any such agent, shall be sufficient for any purpose of this Indenture and conclusive in favor of the Trustee and the Issuer, if made in the manner provided in this Section 13.07.

Section 13.08 (Legal Holidays). If a payment date is not a Business Day at a place of payment, payment may be made at that place on the next succeeding day that is a Business Day, and no interest shall accrue on such payment for the intervening period.

Section 13.09 (No Recourse Against Others). No past, present or future director, officer, employee, incorporator, member, partner or stockholder of the Issuer or any Guarantor, as such, shall have any liability for any obligations of the Issuer or such Guarantor under the Notes, any Subsidiary Guarantee or this Indenture, or for any claim based on, in respect of, or by reason of, such obligations or their creation. Each Holder, by accepting a Note, waives and releases all such liability. The waiver and release are part of the consideration for the issuance of the Notes.

Section 13.10 (Multiple Originals). The parties may sign any number of copies of this Indenture. Each signed copy shall be an original, but all of them together represent the same agreement. One signed copy is enough to prove this Indenture.

Section 13.11 (Currency of Payment). All payments of principal, premium, if any, and interest on the Notes shall be made in United States Dollars in immediately available funds, and no Holder shall have any right to require payment in any other currency, notwithstanding any exchange-rate fluctuation between the date such payment was due and the date such payment is actually made.

Section 13.12 (Waiver of Jury Trial). EACH OF THE ISSUER, EACH GUARANTOR AND THE TRUSTEE HEREBY IRREVOCABLY WAIVES, TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, ANY RIGHT IT MAY HAVE TO A TRIAL BY JURY IN ANY LEGAL PROCEEDING DIRECTLY OR INDIRECTLY ARISING OUT OF OR RELATING TO THIS INDENTURE OR THE NOTES OR THE TRANSACTIONS CONTEMPLATED HEREBY (WHETHER BASED ON CONTRACT, TORT OR ANY OTHER THEORY). EACH OF THE ISSUER, EACH GUARANTOR AND THE TRUSTEE (A) CERTIFIES THAT NO REPRESENTATIVE OF ANY OTHER PARTY HAS REPRESENTED, EXPRESSLY OR OTHERWISE, THAT SUCH OTHER PARTY WOULD NOT SEEK TO ENFORCE THE FOREGOING WAIVER, AND (B) ACKNOWLEDGES THAT IT AND THE OTHER PARTIES HAVE BEEN INDUCED TO ENTER INTO THIS INDENTURE BY, AMONG OTHER THINGS, THE MUTUAL WAIVERS AND CERTIFICATIONS IN THIS SECTION 13.12.

Section 13.13 (USA PATRIOT Act; Anti-Money Laundering). The Trustee hereby notifies the Issuer and each Guarantor that, pursuant to the requirements of the USA PATRIOT Act, it is required to obtain, verify and record information that identifies each Person that opens an account, including the Issuer and each Guarantor, which information includes the name and address of each such Person and other information that will allow the Trustee to identify each such Person in accordance with the USA PATRIOT Act. The Issuer and each Guarantor agree to provide such information as the Trustee may reasonably request in order for the Trustee to satisfy the requirements of the USA PATRIOT Act.

Section 13.14 (Force Majeure). In no event shall the Trustee be responsible or liable for any failure or delay in the performance of its obligations under this Indenture arising out of or caused, directly or indirectly, by circumstances beyond its reasonable control, including acts of God, terrorism, war, civil or military disturbances, epidemics or pandemics, sabotage, government action, labor disputes, or failures or fluctuations in electrical power, communications or utilities; the Trustee shall use commercially reasonable efforts to resume performance as soon as reasonably practicable under the circumstances.

Section 13.15 (Electronic Signatures; Delivery by Electronic Transmission). The words "execution," "signed," "signature" and words of similar import in this Indenture and any document to be signed in connection with this Indenture or the Notes shall be deemed to include electronic signatures, and delivery of an executed counterpart of a signature page to this Indenture or any such other document by facsimile or by electronic transmission in portable document format (".pdf") shall be as effective as delivery of a manually executed counterpart of this Indenture or such other document, in each case to the extent permitted by applicable law, including the U.S. Electronic Signatures in Global and National Commerce Act, and the Trustee shall have no duty to inquire into or confirm the authenticity of any electronic signature received.

ARTICLE XIV. LIMITATION ON INDEBTEDNESS

Section 14.01 (Incurrence Test). The Issuer shall not, and shall not permit any Restricted Subsidiary to, directly or

indirectly, create, incur, issue, assume, guarantee or otherwise become directly or indirectly liable, contingently or otherwise, with respect to (collectively, "incur") any Indebtedness; provided that the Issuer and any Restricted Subsidiary that is a Guarantor may incur Indebtedness if, on the date of such incurrence and after giving pro forma effect thereto, the Consolidated Fixed Charge Coverage Ratio of the Issuer for the most recently ended four full fiscal quarters for which internal financial statements are available would have been at least a specified ratio to 1.00, determined on a pro forma basis as if such Indebtedness had been incurred, and the proceeds thereof applied, on the first day of such four-quarter period.

Section 14.02 (Permitted Debt). Section 14.01 does not apply to the incurrence of any of the following (collectively, "Permitted Debt"), each of which is given independent effect and none of which shall be counted for purposes of the Consolidated Fixed Charge Coverage Ratio test in Section 14.01: (a) Indebtedness under the Credit Agreement, including any Guarantees thereof, in an aggregate principal amount not to exceed the Revolving Facility commitment as in effect on the Issue Date, plus any increase permitted by an incremental facility provision of the Credit Agreement; (b) Existing Indebtedness; (c) the Notes and any related Subsidiary Guarantees issued on the Issue Date; (d) Indebtedness represented by Capital Lease Obligations, mortgage financings or purchase money obligations, in each case incurred to finance the acquisition, construction or improvement of property used in a Permitted Business, not to exceed a specified dollar basket at any time outstanding; (e) Permitted Refinancing Indebtedness incurred in exchange for, or to extend, refinance, renew, replace, defease or refund, Indebtedness incurred pursuant to Section 14.01 or clauses (b), (c) or this clause (e); (f) intercompany Indebtedness between or among the Issuer and any Restricted Subsidiary; provided that any subsequent transfer of such Indebtedness to a Person other than the Issuer or a Restricted Subsidiary is deemed to be an incurrence not permitted by this clause (f); (g) Hedging Obligations entered into in the ordinary course of business and not for speculative purposes; (h) Indebtedness in respect of workers' compensation claims, self-insurance obligations, performance bonds, surety bonds, bankers' acceptances, appeal bonds or similar instruments issued in the ordinary course of business; (i) Guarantees by the Issuer or any Restricted Subsidiary of Indebtedness of the Issuer or a Restricted Subsidiary otherwise permitted to be incurred under this Article XIV; (j) Indebtedness arising from agreements providing for indemnification, adjustment of purchase price, earn-outs or similar obligations, in each case incurred in connection with the disposition of any business, assets or Restricted Subsidiary, in an amount not exceeding the gross proceeds actually received in connection with such disposition; (k) Indebtedness consisting of the financing of insurance premiums in the ordinary course of business; (l) Indebtedness of a Restricted Subsidiary Incurred and outstanding on or prior to the date on which such Restricted Subsidiary was acquired by, or merged into or consolidated with, the Issuer or any other Restricted Subsidiary (other than Indebtedness Incurred in connection with, or in contemplation of, such acquisition, merger or consolidation), so long as, on the date of such acquisition, merger or consolidation and after giving pro forma effect thereto, either the Issuer would have been permitted to Incur at least $1.00 of additional Indebtedness pursuant to the ratio test in Section 14.01, or the Consolidated Fixed Charge Coverage Ratio for the Issuer and its Restricted Subsidiaries is greater than immediately prior to such acquisition, merger or consolidation; (m) Indebtedness of the Issuer or a Restricted Subsidiary consisting of guarantees, indemnities or obligations in respect of purchase price adjustments in connection with the acquisition or disposition of assets,

including any Permitted Business or Capital Stock of a Restricted Subsidiary; (n) Indebtedness supported by a letter of credit issued pursuant to the Credit Agreement, in a principal amount not in excess of the stated amount of such letter of credit; (o) Indebtedness consisting of Indebtedness owed by the Issuer or any Restricted Subsidiary to any future, current or former officer, director, manager or employee of the Issuer or any of its Restricted Subsidiaries, or their respective estates, heirs, family members, spouses or former spouses, to finance the purchase or redemption of Equity Interests permitted by Section 6.02(c); (p) Indebtedness consisting of obligations to pay insurance premiums, take-or-pay obligations or customary indemnification obligations to purchasers or lessees of assets, in each case Incurred in the ordinary course of business; (q) Indebtedness Incurred by a Special Purpose Subsidiary in connection with a receivables factoring or securitization program permitted under clause (k) of this Section 14.02, provided such Indebtedness is Non-Recourse Debt except to the extent of customary limited recourse provisions; (r) Indebtedness in respect of netting services, overdraft protections, cash pooling arrangements and other cash management and similar arrangements in the ordinary course of business; (s) Indebtedness consisting of Attributable Debt in respect of Sale and Leaseback Transactions permitted under this Indenture; and (t) additional Indebtedness in an aggregate principal amount, together with any Permitted Refinancing Indebtedness in respect thereof, not to exceed a specified dollar basket at any time outstanding.

Section 14.03 (Classification of Indebtedness). For purposes of determining compliance with this Article XIV, in the event that an item of Indebtedness meets the criteria of more than one of the categories of Permitted Debt described in Section 14.02, or is entitled to be incurred pursuant to the Consolidated Fixed Charge Coverage Ratio test in Section 14.01, the Issuer, in its sole discretion, may classify or reclassify such item of Indebtedness, or any portion thereof, in any manner that complies with this Article XIV, and such item of Indebtedness shall be treated as having been incurred pursuant to only one of such categories; provided that all Indebtedness outstanding under the Credit Agreement on the Issue Date shall be deemed to have been incurred under Section 14.02(a) and may not later be reclassified.

Section 14.04 (Limitation on Layering). The Issuer shall not Incur any Indebtedness that is contractually subordinated in right of payment to any other Indebtedness of the Issuer unless such Indebtedness is also contractually subordinated in right of payment to the Notes on substantially identical terms; provided that no Indebtedness shall be deemed to be contractually subordinated in right of payment to any other Indebtedness of the Issuer solely by reason of being unsecured, or by reason of being secured on a junior priority basis, or by virtue of the fact that the holders of Senior Indebtedness have entered into intercreditor agreements giving them priority rights with respect to collateral proceeds. This Section 14.04 applies identically to any Guarantor's obligations under its Subsidiary Guarantee, with references to the Notes read as references to such Subsidiary Guarantee.

Section 14.05 (Issuance of Additional Notes). The Issuer may, from time to time, without notice to or consent of the Holders, issue Additional Notes under this Indenture with the same terms as the Initial Notes (other than differences in the issue date, the issue price and, to the extent necessary, the first Interest Payment Date and initial interest accrual date), so long as such issuance is permitted under Section 14.01 or falls within an applicable clause of Section 14.02; any Additional Notes ranking pari passu with the Initial Notes shall be consolidated with, and form a single series with, the Initial Notes and shall vote together as one class on all matters with respect to the Notes;

provided that Additional Notes issued with a greater amount of original issue discount for United States federal income tax purposes than the Initial Notes may, if the Issuer and the Trustee agree, be issued under a separate CUSIP or ISIN number if required to comply with applicable tax regulations, notwithstanding that they otherwise form part of the same series for all other purposes of this Indenture.

Section 14.06 (Limited Condition Acquisitions; Determination Date). In connection with any Limited Condition Acquisition for which the Issuer or a Restricted Subsidiary has entered into a binding agreement, the Issuer may elect, in an Officer's Certificate delivered to the Trustee, that the date of determination of whether the Consolidated Fixed Charge Coverage Ratio test in Section 14.01 (or any other ratio-based test under this Indenture) is satisfied with respect to the Indebtedness to be incurred in connection with such Limited Condition Acquisition shall be the date the definitive agreement for such Limited Condition Acquisition is entered into (the "Determination Date"), rather than the date such Indebtedness is actually incurred; if, after giving pro forma effect to the Limited Condition Acquisition and the related incurrence of Indebtedness as if they had occurred on the Determination Date, the Issuer would have been permitted to take such actions on the Determination Date, such test shall be deemed satisfied, without regard to any subsequent change in the financial condition of the Issuer and its Restricted Subsidiaries between the Determination Date and the date the Limited Condition Acquisition is consummated, and any Default or Event of Default occurring during that period shall be disregarded for purposes of determining whether such Limited Condition Acquisition and the related Indebtedness may be consummated and incurred, except a Default or Event of Default under Section 9.01(f).

Section 14.07 (Currency Translation). For purposes of determining compliance with any dollar-denominated restriction in this Article XIV, the dollar equivalent principal amount of Indebtedness denominated in a foreign currency shall be calculated based on the relevant currency exchange rate in effect on the date such Indebtedness was incurred, in the case of term Indebtedness, or first committed, in the case of revolving credit Indebtedness; provided that if such Indebtedness is incurred to refinance other Indebtedness denominated in a foreign currency, and such refinancing would cause the applicable dollar-denominated restriction to be exceeded solely as a result of fluctuations in currency exchange rates since the date such other Indebtedness was originally incurred, such dollar-denominated restriction shall be deemed not to have been exceeded so long as the principal amount of such refinancing Indebtedness does not exceed the principal amount of the Indebtedness being refinanced.

Section 14.08 (Specified Transactions; Look-Back Period). For purposes of calculating the Consolidated Fixed Charge Coverage Ratio under this Article XIV, if, since the beginning of the applicable four-quarter reference period, the Issuer or any Restricted Subsidiary has, by merger or otherwise, (a) Incurred, assumed, guaranteed, repaid or redeemed any Indebtedness, or issued or redeemed Disqualified Stock or Preferred Stock, other than Indebtedness Incurred or repaid under any revolving credit facility in the ordinary course of business for working capital purposes, or (b) made any Investment in, acquisition of, or disposition of, any Person, business, division or line of business, or any property or assets constituting a business unit, in each case such that a pro forma adjustment is required or permitted under this Indenture (each, a "Specified Transaction"), the Consolidated Fixed Charge Coverage Ratio shall be calculated giving pro forma effect to such Specified Transaction, and any other Specified Transaction occurring during the four-quarter reference period or subsequent thereto and on or prior to the date of

determination, as if each such Specified Transaction, and any related Incurrence, repayment, assumption or redemption of Indebtedness or issuance or redemption of Disqualified Stock or Preferred Stock, had occurred on the first day of the four-quarter reference period.

ARTICLE XV. LIMITATION ON ASSET SALES

Section 15.01 (Definition of Asset Sale). "Asset Sale" means any direct or indirect sale, lease, transfer, conveyance or other disposition (or series of related dispositions) by the Issuer or any Restricted Subsidiary, including any disposition by means of a merger, consolidation or similar transaction, of (a) any Capital Stock of any Restricted Subsidiary (other than directors' qualifying shares or shares required by applicable law to be held by a Person other than the Issuer or a Restricted Subsidiary), or (b) any other property or asset of the Issuer or any Restricted Subsidiary, other than, in each case, (i) a disposition of cash, Cash Equivalents or Investment Grade Securities, or of obsolete, damaged or worn-out property or equipment in the ordinary course of business; (ii) a disposition of assets between or among the Issuer and its Restricted Subsidiaries; (iii) a disposition constituting a Restricted Payment permitted under Article VI or a Permitted Investment; (iv) a disposition effected in compliance with Article XX; (v) a Permitted Asset Swap; (vi) sales of accounts receivable, or participations therein, in connection with any receivables factoring or securitization program; and (vii) any disposition with a Fair Market Value, together with the Fair Market Value of all other dispositions since the Issue Date not otherwise excepted, of less than a specified dollar threshold.

Section 15.02 (Application of Net Proceeds). "Net Proceeds" means the aggregate cash proceeds received by the Issuer or any Restricted Subsidiary in respect of any Asset Sale, net of (a) reasonable and customary out-of-pocket fees, commissions, costs and other expenses incurred in connection with such Asset Sale; (b) taxes paid or payable as a result of such Asset Sale; and (c) any reserve for adjustment or indemnification obligations in respect of the sale price of such asset or assets established in accordance with GAAP. Within 365 days after the receipt of any Net Proceeds from an Asset Sale, the Issuer or the applicable Restricted Subsidiary may apply such Net Proceeds, at its option, to (i) repay Indebtedness under the Credit Agreement; (ii) acquire Related Business Assets or make capital expenditures in a Permitted Business; or (iii) purchase Notes, or Pari Passu Indebtedness, in each case at or below par. Pending application, the Issuer may temporarily reduce revolving Indebtedness or invest Net Proceeds in Cash Equivalents.

Section 15.03 (Excess Proceeds; Asset Sale Offer). "Excess Proceeds" means the amount of Net Proceeds that have not been applied in accordance with Section 15.02 within the 365-day period there stated, once such amount exceeds a specified dollar threshold. When the aggregate amount of Excess Proceeds exceeds that threshold, the Issuer shall make an offer to all Holders and, to the extent required by the terms of any Pari Passu Indebtedness, to the holders of such Pari Passu Indebtedness (an "Asset Sale Offer"), to purchase the maximum principal amount of Notes and such Pari Passu Indebtedness that may be purchased out of the Excess Proceeds, at an offer price equal to 100% of the principal amount thereof, plus accrued and unpaid interest to the date of purchase, in accordance with the procedures set forth in this Indenture. If the aggregate principal amount of Notes and Pari Passu Indebtedness tendered in an Asset Sale Offer exceeds the Excess Proceeds available, the Trustee shall select the Notes to be purchased on a pro rata basis, based on the accreted value or principal amount of the Notes tendered.

Section 15.04 (Event of Loss). If the Issuer or any Restricted Subsidiary suffers an Event of Loss with respect to any property or asset, the insurance proceeds, condemnation award or other compensation received in respect thereof shall be treated as Net Proceeds of an Asset Sale for purposes of Section 15.02 and Section 15.03, and the Issuer or such Restricted Subsidiary may apply such proceeds within the same 365-day period, and to the same permitted uses, stated in Section 15.02, notwithstanding that an Event of Loss is not itself a voluntary disposition; provided that any period during which the Issuer or such Restricted Subsidiary is contesting, adjusting or litigating the amount of any such insurance proceeds, condemnation award or other compensation shall not be counted against the 365-day period stated in Section 15.02.

Section 15.05 (No Duty of Trustee to Monitor). The Trustee shall have no duty to monitor, or independently verify the occurrence of, any Asset Sale, Event of Loss, or the Issuer's application of Net Proceeds, and shall be entitled to rely conclusively on any Officer's Certificate delivered to it stating that Net Proceeds have been applied or that no Asset Sale Offer is then required, without independent investigation.

Section 15.06 (Fair Market Value Determination). The Fair Market Value of any non-cash consideration received in an Asset Sale, or of any property or assets the subject of an Investment or a Restricted Payment under this Indenture, shall be determined in good faith by the Board of Directors of the Issuer (or a senior financial officer of the Issuer, if the fair market value is less than a specified dollar threshold), whose determination shall be conclusive and binding on the Trustee and the Holders if evidenced by an Officer's Certificate delivered to the Trustee, unless another method of determination is specifically provided for in this Indenture; for any Asset Sale, or series of related Asset Sales, with a Fair Market Value in excess of a higher specified dollar threshold, such determination shall be evidenced by a resolution of the Board of Directors set forth in an Officer's Certificate.

Section 15.07 (Permitted Asset Swaps). A Permitted Asset Swap is not itself an Asset Sale requiring compliance with Section 15.02 or Section 15.03, but any cash or Cash Equivalents received by the Issuer or a Restricted Subsidiary in a Permitted Asset Swap, to the extent the aggregate Fair Market Value of such cash and Cash Equivalents exceeds a specified percentage of the aggregate Fair Market Value of the properties and assets exchanged in such Permitted Asset Swap, shall be treated as Net Proceeds subject to Section 15.02 and Section 15.03 as though the receipt of such cash and Cash Equivalents were itself an Asset Sale. The Issuer shall deliver an Officer's Certificate to the Trustee, within the time period stated in Section 7.01 for delivery of quarterly reports, identifying each Permitted Asset Swap consummated during the relevant fiscal quarter and confirming the Fair Market Values used to determine whether this Section 15.07's cash-consideration threshold was exceeded.

ARTICLE XVI. LIMITATION ON TRANSACTIONS WITH AFFILIATES

Section 16.01 (General Prohibition). The Issuer shall not, and shall not permit any Restricted Subsidiary to, directly or indirectly, enter into, renew or extend any transaction (including the purchase, sale, lease or exchange of property or assets, or the rendering of any service) with, or for the benefit of, any Affiliate of the Issuer (each, an "Affiliate Transaction") involving aggregate consideration in excess of a specified dollar threshold, unless (a) the terms of such Affiliate Transaction are no less favorable to the Issuer or the relevant Restricted Subsidiary than those that could have been obtained in a comparable transaction by the Issuer or such Restricted Subsidiary with an unrelated Person; and (b) with respect to any Affiliate Transaction involving aggregate consideration in excess of a higher

specified threshold, the Issuer delivers to the Trustee a resolution of the Board of Directors set forth in an Officer's Certificate certifying that such Affiliate Transaction complies with clause (a) and that such Affiliate Transaction has been approved by a majority of the disinterested members of the Board of Directors, if any.

Section 16.02 (Exceptions). Section 16.01 shall not apply to (a) any employment, consulting, service or termination agreement, or customary indemnification arrangements, entered into by the Issuer or any Restricted Subsidiary in the ordinary course of business with an officer, director or employee; (b) transactions between or among the Issuer and any Restricted Subsidiary or between or among Restricted Subsidiaries; (c) Restricted Payments permitted under Article VI and Permitted Investments; (d) the payment of customary fees and reasonable out-of-pocket costs to, and indemnities provided on behalf of, the Sponsor; (e) any agreement in effect on the Issue Date, as in effect on that date, or any amendment thereto that is not disadvantageous, in any material respect, to the Holders as compared to the terms of such agreement as in effect on the Issue Date; and (f) transactions with a Person that is an Affiliate of the Issuer solely because the Issuer owns Capital Stock of, or controls, such Person.

Section 16.03 (Board Approval Procedures). For purposes of any Board of Directors approval required under Section 16.01(b), the resolution of the Board of Directors shall (a) identify the Affiliate Transaction, the Affiliate counterparty and the aggregate consideration involved; (b) state the basis for the disinterested directors' conclusion that the terms are no less favorable to the Issuer or the relevant Restricted Subsidiary than could have been obtained from an unrelated Person; and (c) be delivered to the Trustee, together with the Officer's Certificate required by Section 16.01(b), no later than the date the Affiliate Transaction is consummated; provided that a resolution delivered late shall not itself constitute an Event of Default if the Affiliate Transaction otherwise satisfied Section 16.01(a) at the time it was consummated.

Section 16.04 (Aggregation of Related Transactions). For purposes of determining whether an Affiliate Transaction exceeds the dollar thresholds stated in Section 16.01, all Affiliate Transactions with the same Affiliate (or group of related Affiliates) that are part of a common plan or arrangement shall be aggregated and treated as a single Affiliate Transaction, whether or not documented as separate agreements and whether or not entered into on the same date.

Section 16.05 (Trustee Reliance). The Trustee shall have no duty to monitor or determine whether any transaction constitutes an Affiliate Transaction, or whether the conditions of Section 16.01 or the exceptions of Section 16.02 have been satisfied with respect to any transaction, and may conclusively rely on any Officer's Certificate or Board Resolution delivered to it under this Article XVI without independent investigation or verification of the matters certified therein.

Section 16.06 (Sponsor Management Fees). For the avoidance of doubt, the payment of customary fees, expenses and indemnities to the Sponsor pursuant to a management or advisory agreement in effect on the Issue Date, or entered into thereafter on terms not materially less favorable to the Issuer than those in effect on the Issue Date, is a permitted Affiliate Transaction under Section 16.02(d) and is not required to separately satisfy the terms-no-less-favorable standard of Section 16.01(a), so long as the aggregate amount of such fees, expenses and indemnities paid in any fiscal year does not exceed a specified annual dollar cap.

ARTICLE XVII. LIMITATION ON DIVIDEND AND OTHER PAYMENT RESTRICTIONS AFFECTING RESTRICTED SUBSIDIARIES

Section 17.01. The Issuer shall not, and shall not permit any Restricted Subsidiary to, directly or indirectly, create or otherwise cause or suffer to exist or become effective any consensual encumbrance or restriction on the ability of any Restricted Subsidiary to (a) pay dividends or make any other distributions to the Issuer or any Restricted Subsidiary on its Capital Stock; (b) pay any Indebtedness owed to the Issuer or any Restricted Subsidiary; (c) make loans or advances to the Issuer or any Restricted Subsidiary; or (d) transfer any of its property or assets to the Issuer or any Restricted Subsidiary.

Section 17.02 (Exceptions). Section 17.01 does not apply to encumbrances or restrictions existing under or by reason of: (a) the Credit Agreement as in effect on the Issue Date, and any amendment, restatement, modification, renewal, supplement, refunding, replacement or refinancing thereof, provided that such amendment, restatement, modification, renewal, supplement, refunding, replacement or refinancing is not materially more restrictive, taken as a whole, with respect to such dividend and other payment restrictions than those contained in the Credit Agreement as in effect on the Issue Date; (b) applicable law, rule, regulation or order; (c) customary non-assignment provisions in leases and other agreements entered into in the ordinary course of business; (d) purchase money obligations and Capital Lease Obligations that impose restrictions on the property so acquired or leased; (e) any agreement for the sale or disposition of the Capital Stock or assets of a Restricted Subsidiary that restricts distributions by that Restricted Subsidiary pending such sale or disposition; (f) Permitted Refinancing Indebtedness, provided that the restrictions therein are not materially more restrictive, taken as a whole, than those in the agreement being refinanced; (g) customary provisions in joint venture agreements and other similar agreements applicable to a Restricted Subsidiary that is not a Wholly Owned Subsidiary; and (h) net worth provisions contained in agreements relating to the incurrence of Indebtedness by a Restricted Subsidiary if such provisions are, in the good faith judgment of the Board of Directors of the Issuer, customary for such type of agreement.

Section 17.03 (Cash Management Carve-Out). For the avoidance of doubt, an encumbrance or restriction imposed under a customary cash management, netting, sweeping, pooling or overdraft arrangement entered into in the ordinary course of business with an Eligible Institution does not, by itself, constitute an encumbrance or restriction prohibited by Section 17.01, whether or not such arrangement would otherwise satisfy one of the specific exceptions stated in Section 17.02, because such an arrangement does not restrict the payment of dividends, the payment of Indebtedness, the making of loans or advances, or the transfer of property in the sense Section 17.01 addresses; it merely nets or pools balances for administrative convenience.

Section 17.04 (No Waiver by Delay). No failure or delay by the Trustee or any Holder in exercising any right, power or privilege under this Article XVII shall operate as a waiver thereof, and no single or partial exercise thereof shall preclude any other or further exercise thereof or the exercise of any other right, power or privilege under this Indenture, which rights and remedies are cumulative and not exclusive of any other rights or remedies provided by this Indenture or by law.

ARTICLE XVIII. DESIGNATION OF RESTRICTED AND UNRESTRICTED SUBSIDIARIES

Section 18.01 (Designation of Unrestricted Subsidiaries). The Board of Directors of the Issuer may designate any Restricted Subsidiary (other than the Issuer) to be an Unrestricted Subsidiary if such designation would not cause a Default, and if such Restricted Subsidiary or any of its Subsidiaries does not, at the time of designation, own any

Capital Stock or Indebtedness of, or hold any Lien on any property of, the Issuer or any other Restricted Subsidiary. The designation of a Restricted Subsidiary as an Unrestricted Subsidiary shall be deemed to be an Investment by the Issuer in an amount equal to the greater of the net book value or the Fair Market Value of such Restricted Subsidiary at the time of such designation, which Investment must be permitted under Article VI or Section 6.02 at that time.

Section 18.02 (Designation of Restricted Subsidiaries). The Board of Directors of the Issuer may designate any Unrestricted Subsidiary to be a Restricted Subsidiary if such designation would not cause a Default. All Indebtedness and Liens of such Unrestricted Subsidiary outstanding immediately following such designation shall be deemed to have been incurred or created, as applicable, at such time for purposes of Article V and Article XIV, and any such designation shall be given effect only if such Indebtedness or Lien would be permitted to be incurred or created, as applicable, under this Indenture as of such time.

Section 18.03 (Effect of Designation; Unrestricted Subsidiary). "Unrestricted Subsidiary" means any Subsidiary of the Issuer designated as such pursuant to Section 18.01 for so long as it continues to meet the following requirements: (a) no portion of the Indebtedness or any other obligation of such Subsidiary is guaranteed by the Issuer or any Restricted Subsidiary; (b) no default with respect to any Indebtedness of such Subsidiary would permit, upon notice, lapse of time or otherwise, any holder of any other Indebtedness of the Issuer or any Restricted Subsidiary to declare a default on such other Indebtedness or cause the payment thereof to be accelerated or payable prior to its stated maturity; and (c) such Subsidiary is a Person with respect to which neither the Issuer nor any Restricted Subsidiary has any direct or indirect obligation to subscribe for additional Capital Stock or to maintain or preserve such Person's financial condition or to cause such Person to achieve any specified levels of operating results. Any designation of a Subsidiary as an Unrestricted Subsidiary shall be evidenced by filing with the Trustee a certified copy of the resolution of the Board of Directors giving effect to such designation and an Officer's Certificate certifying that such designation complied with this Article XVIII.

Section 18.04 (Financial Statement Presentation). The results of operations of an Unrestricted Subsidiary shall not be taken into account for purposes of calculating Consolidated Net Income, Consolidated EBITDA, Consolidated Interest Expense or any other financial measure defined by reference to the Issuer's Restricted Subsidiaries under this Indenture, and the Indebtedness, Liens and other obligations of an Unrestricted Subsidiary shall not be taken into account for purposes of calculating compliance with Article V or Article XIV, in each case for so long as such Subsidiary remains an Unrestricted Subsidiary; upon a redesignation of such Subsidiary as a Restricted Subsidiary pursuant to Section 18.02, such measures and calculations shall thereafter take such Subsidiary into account prospectively, without retroactive adjustment to any period prior to the redesignation.

ARTICLE XIX. ADDITIONAL SUBSIDIARY GUARANTEES; RELEASE OF GUARANTEES

Section 19.01 (Additional Guarantees). If any Restricted Subsidiary that is not already a Guarantor guarantees any Indebtedness of the Issuer or any other Restricted Subsidiary under the Credit Agreement, or Incurs any other Indebtedness in an aggregate principal amount in excess of a specified dollar threshold (other than Indebtedness permitted to be Incurred by clauses (a), (f), (g), (h) or (j) of Section 14.02), then that Restricted Subsidiary shall become a Guarantor by executing a supplemental indenture in the form attached as Exhibit C and delivering it to the Trustee within 30 Business Days of the event giving rise to the obligation.

Section 19.02 (Execution and Delivery of Subsidiary Guarantees). To evidence its Subsidiary Guarantee, each Guarantor agrees that a notation of such Subsidiary Guarantee substantially in the form set forth in Exhibit A shall be endorsed on each Note authenticated and delivered by the Trustee after the time such Guarantor becomes a Guarantor, and that this Indenture shall be executed on behalf of such Guarantor by an Officer of such Guarantor.
Section 19.03 (Release of Guarantees). A Guarantor shall be automatically and unconditionally released from all obligations under its Subsidiary Guarantee, and such Subsidiary Guarantee shall thereupon terminate and be discharged and of no further force or effect, upon (a) the sale, disposition or other transfer (including through merger or consolidation) of the Capital Stock of such Guarantor, or of all or substantially all of the assets of such Guarantor, in each case in a transaction constituting an Asset Sale and made in compliance with Article XV and Article XVI, following which such Guarantor is no longer a Restricted Subsidiary; (b) the designation of such Guarantor as an Unrestricted Subsidiary in accordance with Article XVIII; or (c) a Legal Defeasance or Covenant Defeasance in accordance with Article VIII, or a satisfaction and discharge of this Indenture in accordance with Article XII.
Section 19.04 (Limitation on Guarantor Liability). Each Subsidiary Guarantee is limited to the maximum amount that would not render the Guarantor's obligations thereunder subject to avoidance as a fraudulent conveyance or fraudulent transfer under any applicable Bankruptcy Law or similar law of any jurisdiction relating to fraudulent conveyances or transfers, after giving effect to (a) all other contingent and fixed liabilities of such Guarantor and (b) any rights of contribution of such Guarantor. This Article XIX does not purport to specify the precise quantum of that limitation, which is by its nature a fact-specific determination made only if and when a Guarantor's Subsidiary Guarantee is actually challenged in an Insolvency or Liquidation Proceeding, and no provision of this Article XIX shall be construed as an admission by any Guarantor, the Issuer or the Trustee as to the amount of any such limitation in any specific proceeding.
Section 19.05 (Contribution). In order to provide for just and equitable contribution among Guarantors, in the event any payment or distribution is made by a Guarantor (a "Funding Guarantor") under its Subsidiary Guarantee, such Funding Guarantor shall be entitled to a contribution from each other Guarantor in an amount equal to such other Guarantor's pro rata portion of such payment or distribution, based on the respective net assets of all the Guarantors at the time of such payment, determined in accordance with GAAP; provided that this Section 19.05 states a right among Guarantors only and creates no right in, and may not be enforced by, any Holder or the Trustee.
Section 19.06 (Guarantor May Consolidate). Except as otherwise permitted under Section 19.03, no Guarantor shall consolidate or merge with or into another Person (whether or not such Guarantor is the surviving Person) unless (a) either (i) such Guarantor is the surviving Person, or (ii) the Person formed by or surviving such consolidation or merger, if other than such Guarantor, expressly assumes all the obligations of such Guarantor under its Subsidiary Guarantee and this Indenture pursuant to a supplemental indenture in the form attached as Exhibit C; and (b) immediately after giving effect to such transaction, no Default or Event of Default exists. This Section 19.06 does not apply to a consolidation or merger of a Guarantor with or into the Issuer or another Guarantor.
Section 19.07 (Release Upon Satisfaction and Discharge). Notwithstanding any other provision of this Article XIX, each Subsidiary Guarantee shall automatically and unconditionally terminate and be of no further force or effect upon a Legal Defeasance in accordance with Article VIII or a satisfaction and discharge of this Indenture in

accordance with Article XII, without any further action by any Guarantor, the Issuer or the Trustee; the Trustee shall, upon the Issuer's written request and at the Issuer's expense, execute and deliver any instruments reasonably requested by the Issuer to evidence such release, but the effectiveness of the release under this Section 19.07 does not depend on the execution or delivery of any such instrument.

Section 19.08 (Ranking of Subsidiary Guarantees). Each Subsidiary Guarantee is a senior unsecured obligation of the applicable Guarantor, ranks pari passu in right of payment with all existing and future Senior Indebtedness of such Guarantor (including any Guarantee by such Guarantor of Indebtedness under the Credit Agreement), senior in right of payment to any future Subordinated Indebtedness of such Guarantor, and effectively subordinated to any existing and future Secured Indebtedness of such Guarantor to the extent of the value of the collateral securing such Secured Indebtedness, in each case exactly as Section 2.19 provides with respect to the Notes themselves, applied to such Guarantor's own capital structure and subject in all respects to the limitation stated in Section 19.04.

ARTICLE XX. MERGER, CONSOLIDATION OR SALE OF ASSETS

Section 20.01 (General Prohibition; Successor Company). The Issuer shall not, directly or indirectly: (a) consolidate or merge with or into another Person (whether or not the Issuer is the surviving corporation); or (b) sell, assign, transfer, convey or otherwise dispose of all or substantially all of the properties or assets of the Issuer and its Restricted Subsidiaries, taken as a whole, in one or more related transactions, to another Person, unless: (i) either (A) the Issuer is the surviving Person or (B) the Person formed by or surviving any such consolidation or merger (if other than the Issuer), or to which such sale, assignment, transfer, conveyance or other disposition has been made (the "Successor Company"), is a corporation, partnership, trust or limited liability company organized or existing under the laws of the United States, any state thereof or the District of Columbia; (ii) the Successor Company (if other than the Issuer) expressly assumes all the obligations of the Issuer under the Notes and this Indenture pursuant to a supplemental indenture in the form attached as Exhibit C; (iii) immediately after giving effect to such transaction, no Default or Event of Default exists; and (iv) immediately after giving effect to such transaction on a pro forma basis, either (A) the Successor Company would be permitted to Incur at least $1.00 of additional Indebtedness pursuant to the Consolidated Fixed Charge Coverage Ratio test in Section 14.01, or (B) the Consolidated Fixed Charge Coverage Ratio for the Successor Company and its Restricted Subsidiaries would be greater than such ratio for the Issuer and its Restricted Subsidiaries immediately prior to such transaction.

Section 20.02 (Effect of Assumption). Upon any consolidation, merger or transfer of assets in accordance with Section 20.01, the Successor Company shall succeed to, and be substituted for, and may exercise every right and power of, the Issuer under this Indenture and the Notes with the same effect as if the Successor Company had been named as the Issuer herein; and, except in the case of a lease of all or substantially all of the Issuer's assets, the predecessor Issuer shall be released from its obligations under this Indenture and the Notes.

Section 20.03 (Inapplicability to Certain Transactions). Section 20.01 does not apply to (a) a merger of the Issuer with or into a Wholly Owned Subsidiary of the Issuer for the purpose of reincorporating the Issuer in another jurisdiction within the United States; or (b) any consolidation, merger, sale, assignment, transfer, conveyance or other disposition of assets between or among the Issuer and any Restricted Subsidiary.

Section 20.04 (No Deemed Release; Determination Not Conclusive as to Other Provisions). A determination that a

transaction complies with Section 20.01 is a determination for purposes of Article XX only, and does not itself constitute a determination that the same transaction complies with Article IV, Article XV, Article XVI or any other Article of this Indenture; each Article's own conditions must be separately satisfied. No Guarantor is released from its Subsidiary Guarantee by virtue of a transaction complying with this Article XX unless Section 19.03 independently applies to that Guarantor.

Section 20.05 (Officer's Certificate and Opinion of Counsel). Prior to the consummation of any transaction described in Section 20.01, the Issuer shall deliver to the Trustee an Officer's Certificate and an Opinion of Counsel, each stating that such transaction and, if a supplemental indenture is required by Section 20.01(ii), such supplemental indenture, comply with the requirements of this Article XX. The Trustee shall be entitled to conclusively rely on such Officer's Certificate and Opinion of Counsel and shall have no independent duty to verify compliance with this Article XX.

ARTICLE XXI. COVENANT SUSPENSION

Section 21.01 (Suspension of Covenants). If, on any date following the Issue Date, the Notes have achieved an Investment Grade rating from both Rating Agencies and no Default or Event of Default has occurred and is continuing (the occurrence of the foregoing, a "Covenant Suspension Event"), then, beginning on that date and continuing until a Reversion Date (as defined in Section 21.02), the Issuer and its Restricted Subsidiaries shall not be subject to Article VI (Limitation on Restricted Payments), Article XIV (Limitation on Indebtedness), Article XV (Limitation on Asset Sales), Article XVI (Limitation on Transactions with Affiliates), Article XVII (Limitation on Dividend and Other Payment Restrictions Affecting Restricted Subsidiaries) or Article XVIII (Designation of Restricted and Unrestricted Subsidiaries) (collectively, the "Suspended Covenants"). Article IV (Change of Control), Article V (Limitation on Liens), Article XIX (Additional Subsidiary Guarantees; Release of Guarantees) and Article XX (Merger, Consolidation or Sale of Assets) are not Suspended Covenants and continue in full force and effect regardless of any Covenant Suspension Event.

Section 21.02 (Reversion). If, after a Covenant Suspension Event, either Rating Agency withdraws its Investment Grade rating of the Notes or downgrades the rating assigned to the Notes below Investment Grade (the date of such withdrawal or downgrade, the "Reversion Date"), the Suspended Covenants shall thereafter be reinstated as if they had never been suspended, and shall thereafter be applicable pursuant to the terms of this Indenture (including in connection with performing any calculation or assessment under any provision of this Indenture) unless and until the Notes shall have achieved an Investment Grade rating from both Rating Agencies again and no Default or Event of Default has occurred and is continuing, in which case the covenants shall again be suspended for such time that the Notes maintain an Investment Grade rating from both Rating Agencies; provided that no Default, Event of Default or breach of any kind shall be deemed to exist under this Indenture with respect to the Suspended Covenants (or any deemed reversion thereof) based on, and none of the Issuer or any of its Restricted Subsidiaries shall bear any liability for, any actions taken or events occurring during the period of a Covenant Suspension Event, or any actions taken at any time pursuant to any contractual obligation arising prior to the Reversion Date, regardless of whether such actions or events would have been permitted if the applicable Suspended Covenants remained in effect during such period.

Section 21.03 (Calculations Following Reversion). For purposes of the Suspended Covenants, upon the occurrence of a Reversion Date, all Indebtedness incurred, or Restricted Payments made, during the period of the Covenant Suspension Event shall be deemed to have been incurred or made pursuant to clause (l) of Section 14.02 (in the case of Indebtedness) or Section 6.02(f) or Section 6.01(iii) (in the case of Restricted Payments), as applicable, and any Unrestricted Subsidiary designated during such period shall remain designated as an Unrestricted Subsidiary unless re-designated in accordance with Section 18.02. The Issuer shall deliver an Officer's Certificate to the Trustee promptly upon the occurrence of any Covenant Suspension Event or Reversion Date, and the Trustee shall have no duty to independently monitor the ratings assigned to the Notes by either Rating Agency.

ARTICLE XXII. LIMITATION ON SALE AND LEASEBACK TRANSACTIONS

Section 22.01 (General Prohibition). The Issuer shall not, and shall not permit any Restricted Subsidiary to, enter into any Sale and Leaseback Transaction with respect to any property or assets (whether now owned or hereafter acquired), unless: (a) the Issuer or such Restricted Subsidiary could have (i) incurred Indebtedness in an amount equal to the Attributable Debt relating to such Sale and Leaseback Transaction pursuant to the Consolidated Fixed Charge Coverage Ratio test in Section 14.01, and (ii) incurred a Lien to secure such Indebtedness pursuant to Section 5.01(f), in each case without also incurring a Lien on such property or assets to secure such Indebtedness pursuant to this Article XXII; and (b) the transfer of the property or assets subject to such Sale and Leaseback Transaction is permitted by, and the Issuer applies the proceeds of such transaction in compliance with, Article XV as though such transaction were an Asset Sale.

Section 22.02 (Exceptions). Section 22.01 does not apply to (a) any Sale and Leaseback Transaction entered into within twelve months after the acquisition, construction, development or improvement of the property or assets subject to such Sale and Leaseback Transaction; (b) any Sale and Leaseback Transaction between or among the Issuer and any Restricted Subsidiary, or between or among Restricted Subsidiaries; (c) any Sale and Leaseback Transaction involving a lease for a term, including renewal rights, of not more than three years; and (d) any Sale and Leaseback Transaction in respect of which the Attributable Debt, together with the aggregate principal amount of all other Attributable Debt then outstanding in reliance on this clause (d), does not exceed a specified dollar basket.

Section 22.03 (Computation of Attributable Debt). "Attributable Debt" in respect of a Sale and Leaseback Transaction means, as at the time of determination, the present value (discounted at the rate of interest implicit in the lease, determined in accordance with GAAP, compounded semiannually) of the total obligations of the lessee for rental payments during the remaining term of the lease included in such Sale and Leaseback Transaction, including any period for which such lease has been extended or may, at the option of the lessor, be extended, or, if less, the period remaining to the first date on which the lessee may terminate such lease without penalty or upon payment of a penalty (in which case the rental payments shall include the amount of such penalty, but no rent shall be considered as required to be paid under such lease subsequent to the first date upon which it may be so terminated). The Trustee shall have no duty to independently calculate Attributable Debt and may conclusively rely on an Officer's Certificate stating the Attributable Debt in respect of any Sale and Leaseback Transaction.

Section 22.04 (Relationship to Article XIV and Article XV). A Sale and Leaseback Transaction permitted by this Article XXII is not, solely by reason of the Attributable Debt deemed to arise from it, a separate incurrence of

Indebtedness required to satisfy Article XIV; the sole gate on the Indebtedness component of a Sale and Leaseback Transaction is Section 22.01(a)(i)'s cross-reference to the Consolidated Fixed Charge Coverage Ratio test in Section 14.01, applied as this Article XXII states it, and not a second, independent Article XIV incurrence test. Similarly, the requirement in Section 22.01(b) that Net Proceeds be applied in compliance with Article XV is the sole gate on the asset-disposition component of a Sale and Leaseback Transaction, and compliance with this Article XXII in full discharges the Issuer's and each Restricted Subsidiary's obligations under Article XIV and Article XV with respect to that transaction; no separate, independent showing under either Article is required.

EXHIBIT A. FORM OF NOTE

[Face of Note]

THIS SECURITY LEGEND. THIS SECURITY HAS NOT BEEN REGISTERED UNDER THE SECURITIES ACT OF 1933, AS AMENDED (THE "SECURITIES ACT"), OR THE SECURITIES LAWS OF ANY STATE, AND MAY NOT BE OFFERED, SOLD, PLEDGED OR OTHERWISE TRANSFERRED EXCEPT (A) TO A PERSON WHOM THE SELLER REASONABLY BELIEVES IS A QUALIFIED INSTITUTIONAL BUYER IN A TRANSACTION MEETING THE REQUIREMENTS OF RULE 144A UNDER THE SECURITIES ACT, (B) IN AN OFFSHORE TRANSACTION COMPLYING WITH RULE 903 OR RULE 904 OF REGULATION S UNDER THE SECURITIES ACT, OR (C) PURSUANT TO ANOTHER AVAILABLE EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF THE SECURITIES ACT, IN EACH CASE IN ACCORDANCE WITH ANY APPLICABLE SECURITIES LAWS OF ANY STATE OF THE UNITED STATES OR ANY OTHER APPLICABLE JURISDICTION. THIS LEGEND SHALL BE REMOVED IN ACCORDANCE WITH THE PROVISIONS OF THE INDENTURE REFERRED TO BELOW.

No. ____ CUSIP: [_____]

PRINCIPAL AMOUNT AND RATE. 175,000,000.00 SENIOR NOTES DUE 2031-06-15. [Issuer], a corporation duly organized and existing under the laws of the State of Delaware (the "Issuer"), for value received, promises to pay to Cede & Co., or registered assigns, the principal sum of 175,000,000.00 (subject to adjustment as provided herein) on 2031-06-15. Interest Payment Dates: June 15 and December 15, commencing on the first such date following original issuance. Interest Rate: 7.750% per annum. Record Dates: June 1 and December 1.

REFERENCE TO INDENTURE. This Note is one of a duly authorized issue of Notes of the Issuer, issued under an Indenture, dated as of the Issue Date stated therein, between the Issuer and the Trustee named therein (the "Indenture"). This Note is subject to all such terms, and Holders are referred to the Indenture and the Trust Indenture Act for a statement of all such terms. To the extent permitted by applicable law, in the event of any inconsistency between the terms of this Note and the terms of the Indenture, the terms of the Indenture shall control. Terms used but not defined on the face of this Note have the meanings assigned to them in the Indenture.

[Reverse of Note]

1. INTEREST. The Notes bear interest at the rate per annum, computed on the 30/360 Convention, and payable on the dates, in each case stated on the face hereof and in Section 2.01 of the Indenture. This recitation does not restate the exact figures a second time in an independently computed form; it reproduces the same rate and convention stated in Section 2.01, and if a printing or transcription error ever caused this recitation to diverge from Section

2.01's own text, Section 2.01 controls, per the REFERENCE TO INDENTURE paragraph above.

2. METHOD OF PAYMENT. The Issuer will pay interest on the Notes (except defaulted interest) to the Persons who are registered Holders at the close of business on the Regular Record Date immediately preceding the Interest Payment Date, even if such Notes are cancelled after such Regular Record Date and on or before such Interest Payment Date. Holders must surrender Notes to a Paying Agent to collect principal payments. The Issuer will pay principal and interest in money of the United States that at the time of payment is legal tender for payment of public and private debts.

3. PAYING AGENT AND REGISTRAR. Initially, the Trustee will act as Paying Agent and Registrar. The Issuer may change any Paying Agent or Registrar without notice to any Holder. The Issuer or any of its Restricted Subsidiaries may act in any such capacity.

4. INDENTURE. The Issuer issued the Notes under the Indenture, dated as of the Issue Date, between the Issuer and the Trustee. The terms of the Notes include those stated in the Indenture. The Notes are subject to all such terms, and Holders are referred to the Indenture for a statement of those terms.

5. OPTIONAL REDEMPTION. Except as stated in Section 3.02 of the Indenture (redemption with the proceeds of Equity Offerings), the Notes are not redeemable at the Issuer's option before the Par Call Date stated in the Indenture; on and after the Par Call Date, the Notes are redeemable, as a whole or in part, at the redemption prices stated in Article III of the Indenture, plus accrued and unpaid interest, if any, to the redemption date.

6. MANDATORY REDEMPTION. The Issuer is not required to make any mandatory redemption or sinking fund payments with respect to the Notes.

7. REPURCHASE AT THE OPTION OF THE HOLDER. Upon the occurrence of a Change of Control Triggering Event, the Issuer will be required to offer to purchase all or any part (equal to the minimum authorized denomination or an integral multiple thereof) of each Holder's Notes at the price and on the terms stated in Article IV of the Indenture. The Issuer may also be required to offer to purchase Notes upon the occurrence of an Asset Sale as stated in Article XV of the Indenture. Holders have the right to require the Issuer to repurchase their Notes on the terms set forth in the Indenture, as more specifically described in the form of Change of Control Purchase Notice attached to this Note.

8. DENOMINATIONS; TRANSFER; EXCHANGE. The Notes are in registered form, without coupons, in denominations of a minimum authorized denomination and integral multiples thereof. A Holder may transfer or exchange Notes in accordance with the Indenture. The Registrar may require a Holder to furnish appropriate endorsements and transfer documents, and may require a Holder to pay any taxes or other governmental charges in connection with a transfer or exchange.

9. PERSONS DEEMED OWNERS. The registered Holder of a Note may be treated as its owner for all purposes, exactly as stated in Section 2.07 of the Indenture.

10. AMENDMENT; SUPPLEMENT; WAIVER. Subject to certain exceptions, the Indenture, the Notes or any Subsidiary Guarantee may be amended or supplemented, and any existing Default or compliance with any provision may be waived, in each case as stated in Article XI of the Indenture.

11. DEFAULTS AND REMEDIES. The Events of Default relating to the Notes are stated in Article IX of the

Indenture. Subject to certain limitations, Holders of a majority in principal amount of the outstanding Notes may direct the Trustee in its exercise of any trust or power.

12. TRUSTEE DEALINGS WITH ISSUER. The Trustee, in its individual or any other capacity, may make loans to, accept deposits from, and perform services for the Issuer or its Affiliates, and may otherwise deal with the Issuer or its Affiliates, as if it were not the Trustee, subject to the limitations stated in Article X of the Indenture.

13. NO RECOURSE AGAINST OTHERS. The persons and entities described in Section 13.09 of the Indenture shall not have any liability for any obligations of the Issuer under the Notes or the Indenture or for any claim based on, in respect of, or by reason of, such obligations or their creation. Each Holder, by accepting a Note, waives and releases all such liability, as stated in Section 13.09.

14. AUTHENTICATION. This Note shall not be valid until authenticated by the manual or facsimile signature of an authorized signatory of the Trustee or an authenticating agent.

15. ABBREVIATIONS. Customary abbreviations may be used in the name of a Holder or an assignee, such as: TEN COM (= tenants in common), TEN ENT (= tenants by the entireties), JT TEN (= joint tenants with right of survivorship and not as tenants in common), CUST (= Custodian), and U/G/M/A (= Uniform Gifts to Minors Act).

16. GOVERNING LAW. THIS NOTE SHALL BE GOVERNED BY, AND CONSTRUED IN ACCORDANCE WITH, THE LAWS OF THE STATE OF NEW YORK, WITHOUT REGARD TO CONFLICTS-OF-LAWS PRINCIPLES THAT WOULD REQUIRE THE APPLICATION OF THE LAWS OF ANOTHER JURISDICTION, exactly as stated in Section 13.01 of the Indenture.

17. CUSIP AND ISIN NUMBERS. The Issuer has caused CUSIP and ISIN numbers to be printed on the Notes as a convenience to Holders. No representation is made as to the accuracy of such numbers, either as printed on the Notes or as contained in any notice of redemption, and reliance may be placed only on the other identification numbers printed on the Notes, exactly as stated in Section 2.09 of the Indenture.

144A/REGULATION S GLOBAL NOTE LEGEND

THIS GLOBAL NOTE IS A GLOBAL NOTE WITHIN THE MEANING OF THE INDENTURE HEREINAFTER REFERRED TO AND IS REGISTERED IN THE NAME OF THE DEPOSITARY OR A NOMINEE OF THE DEPOSITARY. THIS GLOBAL NOTE MAY NOT BE EXCHANGED IN WHOLE OR IN PART FOR A NOTE REGISTERED, AND NO TRANSFER OF THIS GLOBAL NOTE IN WHOLE OR IN PART MAY BE REGISTERED, IN THE NAME OF ANY PERSON OTHER THAN THE DEPOSITARY OR A NOMINEE THEREOF, EXCEPT IN THE LIMITED CIRCUMSTANCES DESCRIBED IN SECTION 2.04 OF THE INDENTURE. UNLESS THIS GLOBAL NOTE IS PRESENTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITARY TO THE ISSUER OR ITS AGENT FOR REGISTRATION OF TRANSFER, EXCHANGE OR PAYMENT, AND ANY NOTE ISSUED IS REGISTERED IN THE NAME OF CEDE & CO. OR IN SUCH OTHER NAME AS IS REQUESTED BY AN AUTHORIZED REPRESENTATIVE OF THE DEPOSITARY, ANY TRANSFER, PLEDGE OR OTHER USE HEREOF FOR VALUE OR OTHERWISE BY OR TO ANY PERSON IS WRONGFUL BECAUSE THE REGISTERED OWNER HEREOF, CEDE & CO., HAS AN INTEREST HEREIN.

REGULATION S TEMPORARY GLOBAL NOTE CERTIFICATION

Prior to the expiration of the Distribution Compliance Period applicable to the Notes represented by a Regulation S

Global Note, an owner of a beneficial interest in such Regulation S Global Note may not exchange such beneficial interest for an interest in a Rule 144A Global Note, or transfer such beneficial interest to a Person who takes delivery in the form of an interest in a Rule 144A Global Note, unless the Registrar receives a written certification from the transferor, in the form required by the Indenture, to the effect that the transfer is being made to a Person the transferor reasonably believes is a Qualified Institutional Buyer purchasing for its own account or for the account of a Qualified Institutional Buyer, in a transaction meeting the requirements of Rule 144A. The Registrar shall have no obligation to verify the accuracy of any such certification and may conclusively rely thereon.

TRUSTEE'S CERTIFICATE OF AUTHENTICATION

This is one of the Notes referred to in the within-mentioned Indenture.

ASSIGNMENT FORM

To assign this Note, fill in the form below and have your signature guaranteed: I or we assign and transfer this Note to (insert assignee's social security or tax I.D. number) and irrevocably appoint an agent to transfer this Note on the books of the Issuer. The agent may substitute another to act for him or her.

OPTION OF HOLDER TO ELECT PURCHASE UPON A CHANGE OF CONTROL

If you want to elect to have this Note purchased by the Issuer pursuant to Article IV of the Indenture, check the box below: [ ] Section 4.01. If you want to elect to have only part of this Note purchased by the Issuer pursuant to Article IV of the Indenture, state the amount you elect to have purchased (which must be in a minimum authorized denomination or an integral multiple thereof): $_____.

SCHEDULE OF EXCHANGES OF INTERESTS IN THE GLOBAL NOTE

The following exchanges of a part of this Global Note for an interest in another Global Note or for a Definitive Note, or exchanges of a part of another Global Note or Definitive Note for an interest in this Global Note, have been made:

NOTATION OF GUARANTEE

For value received, each Guarantor listed on the Schedule of Guarantors attached to this Indenture (or added pursuant to Article XIX), jointly and severally, unconditionally guarantees, to the extent stated in Article XIX of the Indenture and subject to the limitations stated in Section 19.04 of the Indenture, the due and punctual payment of the principal of, premium, if any, and interest on this Note, when and as the same shall become due and payable, whether at Stated Maturity, by acceleration, call for redemption, pursuant to a Change of Control Offer or an Asset Sale Offer, or otherwise, in accordance with and subject to the terms and limitations of this Note and Article XIX of the Indenture. The obligations of each Guarantor to the Holders and the Trustee are expressly set forth in Article XIX of the Indenture, and reference is hereby made to the Indenture for the precise terms of each Subsidiary Guarantee.

CHANGE OF CONTROL PURCHASE NOTICE

To: [Issuer] c/o the Trustee. The undersigned registered Holder hereby acknowledges receipt of a notice from [Issuer] (the "Issuer") as to the occurrence of a Change of Control Triggering Event with respect to the Issuer's Notes and requests and instructs the Issuer to repurchase the entire principal amount of this Note, or the portion thereof (which is the minimum authorized denomination or an integral multiple thereof) below designated, in accordance

with the terms of the Indenture referred to in this Note at the applicable Change of Control Payment, to the undersigned at the address below designated, unless the undersigned has checked the box below indicating that this Note is being delivered for purchase of less than the entire principal amount hereof.

[ ] The Holder elects to have the entire principal amount of this Note purchased. [ ] The Holder elects to have $_____ of the principal amount of this Note purchased.

ASSET SALE OFFER ELECTION NOTICE

To: [Issuer] c/o the Trustee. The undersigned registered Holder hereby acknowledges receipt of a notice from the Issuer as to an Asset Sale Offer pursuant to Article XV of the Indenture referred to in this Note and requests and instructs the Issuer to purchase the portion of this Note designated below at the price stated in Section 15.03 of the Indenture, to the undersigned at the address below designated: $_____ (which must be the entire principal amount of this Note or a minimum authorized denomination or an integral multiple thereof).

EXHIBIT B. FORM OF TRANSFER CERTIFICATE

[To be attached to Notes presented for transfer or exchange pursuant to Section 2.05 of the Indenture]

1. CERTIFICATION AS TO RULE 144A TRANSFER. The undersigned Holder or beneficial owner hereby certifies that it is a "qualified institutional buyer" as defined in Rule 144A under the Securities Act, and that the transfer is being made in a transaction meeting the requirements of Rule 144A, in a principal amount not less than the minimum authorized denomination, to a transferee that the undersigned reasonably believes is purchasing for its own account or for the account of one or more qualified institutional buyers and is aware that the sale to it is being made in reliance on Rule 144A.

2. CERTIFICATION AS TO REGULATION S TRANSFER. The undersigned Holder or beneficial owner hereby certifies that the transfer is being effected pursuant to and in accordance with Rule 903 or Rule 904 of Regulation S under the Securities Act and, accordingly, represents that (a) the offer of the Note was not made to a person in the United States; (b) either (i) at the time the buy order was originated, the transferee was outside the United States, or the undersigned and any Person acting on its behalf reasonably believed that the transferee was outside the United States, or (ii) the transaction was executed in, on or through the facilities of a designated offshore securities market and neither the undersigned nor any Person acting on its behalf knows that the transaction was prearranged with a buyer in the United States; and (c) no directed selling efforts have been made in the United States in contravention of the requirements of Rule 903 or Rule 904, as applicable.

3. CERTIFICATION AS TO OTHER AVAILABLE EXEMPTION. In connection with any transfer other than one described in paragraph 1 or 2 above, or any transfer of a Note to the Issuer, the undersigned confirms that such transfer is being made pursuant to and in accordance with an available exemption from the registration requirements of the Securities Act, and represents that it has furnished such legal opinions, certifications and other information as the Registrar and the Trustee have reasonably requested to confirm that such transfer is being made pursuant to and in accordance with an available exemption from such registration requirements.

4. GENERAL. This certificate and the statements contained herein are made for the benefit of the Issuer, the Trustee and the Registrar and may be relied upon by each of them.

5. NO INDEPENDENT VERIFICATION. Neither the Trustee nor the Registrar has any obligation to verify the

accuracy of any statement or representation contained in this certificate, and each may conclusively rely on this certificate, and any transfer documents accompanying it, without independent investigation and without liability for so relying, notwithstanding actual or constructive notice to the contrary that a Responsible Officer of the Trustee has not received in writing.

EXHIBIT C. FORM OF SUPPLEMENTAL INDENTURE

[For joinder of an additional Guarantor pursuant to Section 19.01 of the Indenture, or assumption by a Successor Company pursuant to Section 20.01 of the Indenture]

RECITALS. This Supplemental Indenture, dated as of the date stated on the signature page hereto (this "Supplemental Indenture"), among [Additional Guarantor / Successor Company], a [corporation/limited liability company] organized under the laws of [_____] (the "New Party"), the Issuer and the Trustee, is entered into pursuant to the Indenture, dated as of the Issue Date, among the Issuer and the Trustee (the "Indenture"). Capitalized terms used but not defined in this Supplemental Indenture have the meanings assigned to them in the Indenture.

1. AGREEMENT TO BE BOUND; GUARANTEE (if applicable). The New Party hereby becomes a party to the Indenture as [an additional Guarantor / the Successor Company] and agrees to be bound by all of the terms and provisions of the Indenture applicable to [a Guarantor / the Issuer], and, if the New Party is becoming an additional Guarantor, hereby unconditionally guarantees, on a joint and several basis with each other Guarantor, the full and punctual payment when due, whether at Stated Maturity, by acceleration or otherwise, of all obligations of the Issuer under the Notes and the Indenture, subject to the limitation stated in Section 19.04 of the Indenture.

2. NOTATION OF GUARANTEE (if applicable). If the New Party is becoming an additional Guarantor, a notation of Subsidiary Guarantee substantially in the form contemplated by Exhibit A of the Indenture shall be endorsed on each Note authenticated and delivered by the Trustee after the date of this Supplemental Indenture.

3. RATIFICATION. Except as expressly amended hereby, the Indenture is in all respects ratified and confirmed, and all the terms, provisions and conditions thereof shall remain in full force and effect. This Supplemental Indenture shall form a part of the Indenture for all purposes, and every Holder of Notes heretofore and hereafter authenticated and delivered shall be bound hereby.

4. GOVERNING LAW; COUNTERPARTS. This Supplemental Indenture shall be governed by, and construed in accordance with, the laws of the State of New York. This Supplemental Indenture may be executed in any number of counterparts, each of which shall be an original, but all of which together shall constitute one instrument.

5. TRUSTEE MAKES NO REPRESENTATION. The Trustee shall not be responsible in any manner whatsoever for or in respect of the validity or sufficiency of this Supplemental Indenture or for or in respect of the recitals contained herein, all of which recitals are made solely by the New Party and the Issuer. The Trustee's execution of this Supplemental Indenture is solely for the purpose of evidencing its acceptance of the trusts created hereby, on the same terms and conditions as under the Indenture, and shall not be construed as an admission by the Trustee of the accuracy of any recital, or the effectiveness or sufficiency of this Supplemental Indenture as against any party other than the Trustee.

EXHIBIT D. FORM OF OFFICER'S CERTIFICATE

[For delivery in connection with any condition precedent under this Indenture as to which an Officer's Certificate is

required, including Section 8.01 (Defeasance), Section 12.01 (Satisfaction and Discharge), Section 11.02 (Amendments Without Consent of Holders), Section 18.01 (Designation of Unrestricted Subsidiaries), Section 19.01 (Additional Guarantees) and Section 20.01 (Merger, Consolidation or Sale of Assets)]

1. IDENTIFICATION. The undersigned, [_____], the duly elected [Chief Financial Officer / Treasurer / General Counsel] of [Issuer] (the "Issuer"), hereby delivers this Officer's Certificate to [Trustee], as trustee (the "Trustee") under the Indenture, dated as of the Issue Date, between the Issuer and the Trustee (the "Indenture"), pursuant to Section [_____] of the Indenture, in connection with [describe the action to be taken].

2. EXAMINATION. I have read the provisions of the Indenture relating to the action described in paragraph 1 above, including the definitions of the capitalized terms used in this Officer's Certificate that are relevant to that action, and I have made such examination or investigation as is, in my opinion, necessary to enable me to express an informed opinion as to whether or not the conditions precedent set forth in the Indenture relating to such action have been complied with.

3. OPINION. In my opinion, I have made such examination or investigation as is necessary to enable me to express an informed opinion as to whether or not such conditions precedent have been complied with, and, in my opinion, such conditions precedent have been complied with in accordance with the terms of the Indenture.

4. NO DEFAULT. To the best of my knowledge, no Default or Event of Default has occurred and is continuing under the Indenture, except as follows: [None] / [describe any Default or Event of Default and the status thereof].

5. RELIANCE. This Officer's Certificate is delivered to the Trustee with the understanding that the Trustee will rely on the statements made herein in determining whether the applicable conditions precedent under the Indenture have been satisfied, and that the Trustee shall be fully protected in relying on this Officer's Certificate, and shall have no duty to independently verify any statement contained herein, in accordance with Article X of the Indenture.

EXHIBIT E. FORM OF ASSET SALE OFFER NOTICE

[Notice from the Issuer to Holders commencing an Asset Sale Offer pursuant to Section 15.03 of the Indenture]

1. NOTICE OF ASSET SALE OFFER. Pursuant to Section 15.03 of the Indenture, dated as of the Issue Date, between [Issuer] (the "Issuer") and [Trustee], as trustee (the "Indenture"), the Issuer hereby notifies the Holders of the Notes that Excess Proceeds in the amount of $_____ have accumulated as a result of one or more Asset Sales, and that the Issuer is making an offer (the "Asset Sale Offer") to purchase up to $_____ aggregate principal amount of Notes at a purchase price equal to 100% of the principal amount thereof, plus accrued and unpaid interest to the Purchase Date.

2. PURCHASE DATE; PROCEDURES. The Purchase Date for the Asset Sale Offer is _____, 20__, which date is not less than 30 days nor more than 60 days after the date this notice is mailed. Holders wishing to have Notes purchased must complete the Asset Sale Offer Election Notice endorsed on their Notes (Exhibit A to the Indenture) and deliver the Notes to be purchased, together with the completed election notice, to the Paying Agent prior to the close of business on the Business Day immediately preceding the Purchase Date, or otherwise comply with the Depositary's applicable book-entry tender procedures if their Notes are held in global form.

3. WITHDRAWAL RIGHTS. Holders may withdraw any Notes previously tendered in the Asset Sale Offer by delivering a written notice of withdrawal to the Paying Agent prior to the close of business on the Business Day

immediately preceding the Purchase Date, stating the name of the Holder, the principal amount of Notes delivered for purchase, and the principal amount, if any, of such Notes that remains subject to the original Asset Sale Offer Election Notice.

4. PRORATION. If the aggregate principal amount of Notes and Pari Passu Indebtedness tendered in this Asset Sale Offer exceeds the Excess Proceeds available to purchase them, the Trustee shall select the Notes to be purchased on a pro rata basis, based on the accreted value or principal amount of the Notes tendered, in accordance with Section 15.03 of the Indenture, and any Notes not accepted for purchase because of such proration shall be returned to the applicable Holder promptly following the Purchase Date.